

The Railway Protection Force Rules, 1987

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[The Railway Protection Force Rules, 1987](#)

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[In exercise of the powers conferred by section 21 of Railway Protection Force Act, 1957 \(23 of 1957](#)

[\) the Central Government hereby makes the following rules,namely:-](#)

[Chapter 1](#)

[Preliminary](#)

[1.](#)

[Short title and commencement.](#)

[- 1.1 These rules may be called Railway Protection Force Rules, 1987.](#)

1.2

They shall come into force on the date of their publication in the Official Gazette.

1.3

These rules shall apply to all persons who are subject to the Act:

Provide that the provisions of rules 83 to 86 shall not apply to superior officers and other enrolled members of the Force appointed on deputation and officers appointed on contract who shall continue to be governed by their own rules and the terms of deputation or, as the case may be, by the conditions of their contract.

2.

Definitions.

- In these rules, unless the context otherwise requires, -

(a)

"Act" means the Railway Protection Force Act, 1957(23 of 1957);

(b)

"accoutrements" means personal articles of equipments and trappings, as approved by the Inspector-General, from time to time, which are issued to members of the Force for their use;

(c)

"battalion" means a unit of the Force constituted as a battalion by the Director-General:

(d)

"[Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

" means an officer, not below the rank of Deputy Inspector-General, who is the head of the Force in a zonal railway or a superior officer so appointed in the headquarters of the Director-General or in any other formation of the Force;

(e)

"close arrest" means confinement of any enrolled member of the Force within the force or the detachment of the Force or a Post quarter-guard, building or tent under charge of a guard;

(f)

"court of inquiry" means a court presided over by any member of the Force not below the rank of an Inspector and constituted to investigate into any disciplinary matter or any other matter specified in rules 265;

(g)

"detachment " in relation to the force, includes detachment of any part of the force required or ordered to proceed on duty away from the Headquarters;

(h)

"Directives" means directions issued by the Director-General under rule 28;

(i)

"division" means a portion of the railway declared to be a division for security purposes by the Central Government or the Director-General;

(j)

"Divisional Security Commissioner" means an officer, not below the rank of a Commandant, who is the head of the force of a division or in a railway establishment at any other place connected with the railways.

(k)

"extent Railway Rules" means the rules contained in the Indian Railway General Code, Indian Railway establishment Code, Indian Railway Establishment Manual, Indian Railway Code for Accoutrement, Indian Railway Code for Accounts Department, Indian Railway Code for Engineering Department and includes any rules made under the [Indian Railways Act, 1980]

[Now see the Railways Act, 1989 (24 of 1989

).]

for railway servants;

(l)

"open arrest" means confinement of any enrolled member of the Force, within the precincts of any barracks, lines or camp for the time being occupied by any detachment of the Force;

(m)

"Post" means any unit or place declared generally or specially by the [Principal Chief Security Commissioner] [Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)] to be a post and includes any railway are specified by the [Principal Chief Security Commissioner] [Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)] in this behalf;

(n)

"railway establishment" means any unit of the railways (other than zonal railway) which is engaged in research, development, designing, construction or production or rolling stock, its parts or other equipment used on a railway;

(o)

"RPF Staff Council" means that Staff Council of the Force constituted in accordance with rule 111.3;

(p)

"section" means a section of the Act;

(q)

"schedule" means a Schedule annexed to these rules;

(r)

"security Court" means a court of an officer invested with the powers of a Magistrate under rule 30;

(s)

"superior officer" means any of the officer appointed to the Force under section 41;

(t)

"zonal railway" means a portion of the railway declared as zonal railway by the Central Government by notification in the Official Gazette;

(u)

all other words and expressions used herein but not defined, and defined in the Act or the Indian Railways Act, 1890 shall have the meanings assigned to them in the Act or the Indian Indian Railways Act, 1890.

Chapter II

Organisation And Structure Of The Force

3.

Organisational set up at the headquarters of the Director-General-

The command, supervision and administration of the Force is vested in the Director-General, who shall be assisted by such superior officers at his headquarters as may be appointed for the purpose.

4.

Office and designation of superior officers and enrolled members of the Force.

- The superior officers and enrolled member of the Force holding office as specified in column 2 of Schedule I shall also be known by designations as specified in column 3 of that Schedule.

5.

Other Superior officers.

- The Central Government may, having regard to the provisions of sub-section (2) of section 15, appoint any other officer by notification in the Official Gazette to be the superior officer of the Force defining his rank, designation, powers and responsibilities.

6.

Superior officers and enrolled members of the Force headquarters of the Director-General.

-

6.1

The officers appointed under rule 3 shall discharge such duties and supervise the functioning of such other branches as provided in these rules as may be assigned to them by the Director-General from time to time.

6.2

All officers appointed under rule 3 may have under them a number of other superior officers and enrolled members of the Force as may be appointed from time to time, and shall exercise such powers over them as are prescribed under these rules and are exercisable by their counterparts of equivalent rank and designation in the zonal railways.

7.

Railway Protection Force.

-

7.1

The Force shall have a specially trained unit called the Railway Protection Special Force, to be raised as a reserve Force on the battalion pattern.

7.2

The number of battalions as also their strength and competition shall be such as may be determined by the Director-General.

7.3

Each battalion shall function as a division and shall have at its head an Officer not below the rank of Commandant who shall be known as commanding Officer.

7.4

A Commanding officer shall be assisted by such number of other superior officers and enrolled numbers of the Force as may be appointed from time to time.

7.5

Enrolled numbers of the Force who constitute the Railway Protection Special Force shall form a separate cadre for the purposes of fixation of seniority.

7.6

[Battalions will have trained wireless personnel like Armourers. These posts will be ex-cadre. The number of posts will be as decided from time to time. These posts will be governed by the Directives issued in this regard by D.G./R.P.F. from time to time.]

[Inserted by G.S.R. 313, dated 25-8-2004 (w.e.f. 18-9-2004).]

8.

Central Crime Bureau.

-

8.1

A Central Crime Bureau consisting of such number of superior officers and enrolled members of the Force as may be determined by the Director-General shall be maintained at the headquarters.

8.2

The Central Crime Bureau shall consist of a Central Detective Wing, a Central Records Wing and shall perform such duties, maintain such records, compile and submit such reports and returns as may be directed by the Director-General.

9.

Breeding-cum-training center for police dogs.

-

9.1

For better prevention and detection of crime, a breeding-cum-training center for 'Police dogs' shall be maintained under the charge of such officer as may be appointed by the Director-General.

9.2

This center shall undertake breeding of pups and their training as 'Police dogs' and shall undertake such other duties as may be specified by the Director-General.

10.

Central Weapons Store. - There shall be a Central Weapons Store under the immediate command and control of such superior officer as may be appointed by the Director-General for procurement and supply of arms, ammunition and ordnance stores.

11.

Arms workshop.

-

11.1

There shall be such number of arms workshop, each under the charge of an officer not below the rank of an Inspector, as may be set up for carrying out repair, phosphating of the arms held by the Force and such other functions as may be specified by the Director-General.

11.2

Notwithstanding anything contained in sub-rule (1), the administrative and technical control of the arms workshops shall also vest in such superior officer as may be appointed by the Director-General.

12.

Arms inspection teams.

- There shall be such number of arms inspection teams as may be constituted by the Director-General for carrying out periodical inspections of the arms held by the Force in all its units.

13.

Training institutions.

-

13.1

Railway Protection Force Academy:-There shall be a Railway Protection Force under the charge of a Principal, not below the rank of Deputy Inspector General, for providing initial, in-service, special and other advanced professional and technical training courses to the members of the Force.

13.2

The said Academy shall have such number of qualified instructors in various disciplines as may be appointed by the Director-General from time to time.

13.3

The Director-General may declare the Principal of the Academy or any other superior officer to be the officer-in-charge (training) for the Force and that officer shall exercise general supervision on behalf of Director-General over all the training institutions of the force, formulate training curricula and syllabi, arrange publication of training material and maintain close liaison with sister training institutions of other disciplines.

13.4

Zonal training institute:-Each zonal railway shall have a training institute for the Force under the charge of a superior officer for providing initial, induction, in-service and other refresher and promotional courses and to cater to the training needs of enrolled members of the Force of that zone or who may be specially sent for the purpose.

14.

organizational set up of zonal railway.

-

14.1

for the purposes of the Act, a unit of the Force shall be distributed over each zonal railway including railway establishments and other railway areas served by that zonal railway.

14.2

The head of the Security Department in each zonal railway shall be a [Principal Chief Security Commissioner] [Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)] and the entire unit of the Force posted on that railway (including railway establishments located on that railway) shall be under his command, supervision and administration.

14.3

A [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)] shall be assisted at his headquarters (hereinafter referred to as the Security Commissioner) by such number of Superior officers and enrolled members of the Force as may be appointed from time to time to look after the work of administration including personnel matters, crime and special intelligence, fire, [***]
[Omitted by Notification No. G.S.R. 719(E) dated by 31.10.2013 (w.e.f. 3.12.1987)] stores, reserve companies, training and claims prevention.

15.

Organisational set up in the division.

-

15.1

The Force on each zonal railway shall be further distributed over divisions railway establishments.

15.2

Each division or railway establishment shall be headed BY A divisional Security Commissioner, who shall be assisted by such number of other superior officers and enrolled members of the Force as may be appointed from time to time.

15.3

For operational purposes, a division may be divided in to sub-divisions each under the charge of a superior officer.

15.4

A division or sub-division shall consist of one or more static posts and mobile companies organized in the manner specified in sub-rules (2) and (3) or rule 17.

15.5

Each Post or a company shall be under the charge of an officer not below the rank of an Inspector who may be assisted by such number of enrolled members of the Force as may be determined from time to time by the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

.

15.6

A static post or a mobile company may have one or more out-posts or detachments attached to it, each headed by an officer not below the rank of sub-Inspector and comprising of such number of other enrolled members of the Force as may be determined by the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

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15.7

A fire Station shall be headed by an officer not below the rank of a sub-Inspector and consists of such number of other enrolled members of the Force as may be appointed from time to time for fire fighting and fire prevention.

16.

Branches of the Force on a zonal railway.

-

16.1

[Force deployed on each zonal railway shall consist of an Executive branch]

[Substituted by Notification No. G.S.R. 719(E) dated by 31.10.2013 (w.e.f. 3.12.1987)]

16.2

[Executive branch]

[Substituted for the words "These branches" by Notification No. G.S.R. 719(E) dated by 31.10.2013. (w.e.f. 3.12.1987)]

shall consists of such number of superior officers and other enrolled members of the Force as may be determined by the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]
with the approval of the Director-General.

[***]

[Omitted by Notification No. G.S.R. 719(E) dated by 31.10.2013 (w.e.f. 3.12.1987)]

[***]

[Omitted by Notification No. G.S.R. 719(E) dated by 31.10.2013 (w.e.f. 3.12.1987)]

17.

Executive Branch.

-

17.1

The Executive Branch shall consist of five wings, namely:-

(i)

static Wing

(ii)

Mobile Wing

(iii)

Crime Wing

(iv)

Special Wing and

(v)

Stores Wing

17.2

the static Wing shall be organized on a Post pattern comprising of such number or enrolled members of the Force as may be needed for ensuring better protection and security of railway property and combating crimes against it.

17.3

The Mobile Wing, organised Wing, organized on such company pattern as maybe decided by the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

concerned, shall preliminary perform the duties other than those required to be performed by the static wing under sub-rule2, especially those having inter post ramifications.

17.4

Crime Wing shall function as a specified squad for collection and collation of information pertaining to criminals prying on railway property detection of crime, inquires into difficult cases having wider ramifications, arrest of criminals and their prosecution. The [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

may attach some enrolled members of the Force working in this Wing of his Security Commissariat as also the Dog Squad and handlers to each division. Control over such staff shall be shared functionally between the division and the Security Commissariat as may be ordered by the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

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17.5

The [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

may deploy enrolled members of the Force working in special Wing of his Security Commissariat in the divisions for collection of intelligence affecting the security and functioning of the railways. All the members of the branch shall function directly under the control of the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

through the immediate supervision and control of a superior officer incharge of Special Wing at his commissariat. Intelligence requiring immediate attention and action of the part of the division shall be passed on directly to the Divisional Security Commissioner by the unit deployed in that division.

17.6

The Stored Wing shall look after and cater to the requirements of the Force for uniform accoutrements, arms, ammunition, equipment and other stores items. This wing shall also arrange for condemnation of unserviceable articles and their disposal. The [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

may attach some enrolled members of the Force working in this Wing to each division who may work under the control of the Divisional Security Commissioner.

[***]

[Omitted by Notification No. G.S.R. 719(E) dated by 31.10.2013 (w.e.f. 3.12.1987)]

19.

Fire Service branch.

-

19.1

A fire service branch shall be maintained the Security Commissariat and shall have a separate cadre for each zonal railway for its enrolled members. It shall have two Wings, namely:-

(a)

Operational - for attending to fire calls on the railways, and

(b)

Fire prevention and maintenance.

19.2

The strength of Fire Service branch shall be distributed among the divisions for posting at the Fire Stations and in fire Prevention and Maintenance Units. Control over the staff posted in the division shall be shared functionally between the divisions and the security Commissariat as may be ordered by the [Principal Chief Security Commissioner]
[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

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20.

Security Control Room.

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20.1

A Security Control Room shall be set-up at the headquarters of the Director-General, [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]
and the Divisional Security Commissioner.

20.2

It shall function round the clock and be manned by such members of the Force as may be appointed to it from time to time.

20.3

All information necessary for exercising constant vigil on the incidence and pattern of crime and the areas endemic to such crime or for any other purpose shall be promptly collected by the Security Control Room and swiftly disseminated to the authorities specified on this behalf by the respective functionaries listed in sub-rule(1) above.

20.4

In particular, any occurrence -

(a)

Which is a 'Special report' or 'Special Occurrence' case as defined in rules 229 and 230 or which is of unusual or of striking nature either in itself or because of its modus operandi;

(b)

Which involves destruction of or damage to railway property or of overhead traction or is a case of mischief by fire within railway premises;

(c)

Which is a case of suspected sabotage or tampering with track or any other manner has affected the movement of railway property or the Security and functioning of the railways.

(d)

In which a member of the Force or a railway employee on duty has been assaulted or arrested or has opened fire;

(e)

In which railway property exceeding the value, to be fixed by the Director-General, has been recovered or in which any other important case has been detected;

(f)

Which is likely to provoke reprisal from commuters and others;

(g)

Which is likely to arouse interest of or criticism from railways users; and

(h)

Which otherwise appears important to the Security Control Room, shall invariably be reported.

Chapter III

Direction And Control

21.

Superintendence of the Force.

- The superintendence of the Force shall vest in the Central Government and it may issue such directions relating to administration of the Act and these rules, as it may think necessary.

22.

Command, supervision etc. at the Union level.

-

22.1

Subject to the provision of rule 21, the command, supervision and administration of the Force at the union level shall vest in the Director-General who shall be responsible for the efficient functioning and management of the force in accordance with the provisions of the act and these rules.

22.2

Being the head of the Force, the Director General shall take all possible steps for the co-ordinated and integrated growth of intra-structural facilities for the development and well being of the Force.

22.3

the Director-General shall scrutinize the various proposals in the budget estimates of the force, as submitted by the General Managers of the railways to the Central Government, and make his own assessment and recommendations in respect of allotment of funds and issue such directions in this behalf to [Principal Chief Security Commissioner] [Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)] concerned as he may consider necessary.

22.4

The Director-General shall advise the Central Government in all matters relating to the service conditions of the members of the Force and exercise of disciplinary control over them.

22.5

All interference relating to the force from the zonal railway, railway establishments etc. to the Central Government shall be received and be processed through the Director-General and all orders of the Central Government in connection with the Force shall also be issued through him.

22.6

it shall be under directions of the Director-General that the administration of the Force on the zonal railways and any other railway establishment shall be carried out by the [Principal Chief Security Commissioner] [Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)] and he shall be their principal Controller and chief co-ordinator.

23.

Command, supervision etc. at the zonal railway level.

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23.1

Subject to any directions issued by the Central Government or the Director General, the administration of the Force in zonal railway shall be carried out by the [Principal Chief Security Commissioner] [Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)] who shall discharge his functions in relation to other departments of the zonal railway under the general supervision of the General Manager of such railway:

Provided that the powers of general supervisions of the General Manager shall not extend to giving any directions to any member of the Force with regard professional conduct of criminal cases or the exercise of any legal powers conferred on such member by the law for the time being in force.

23.2

The [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

shall be the head of the Security Department in the zonal railway administration and shall have, irrespective of his rank and pay, the status, financial and administrative powers and privileges of ahead of the department of the highest grade on the zonal railway.

23.3

The [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

shall maintain the Force under his command in a state of high efficiency, training, discipline and morale and shall take all such steps as he may consider necessary, from time to time, including inspections, supervision of cases, examination of records, calling for reports and issuing of necessary instructions to the superior officers and enrolled members of the

Force under his command.

23.4

The [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

shall ensure that all instructions and directions issued by the Director-General in accordance with the provisions of the Act and rule are followed and complied with by all superior and enrolled members under his command.

24.

Command.

-

24.1

An officer of the Force appointed to command shall have the power of command over all officers, irrespective of their seniority, placed under his command.

24.2

In the contingency of an officer being unable to exercise the command, due to any reason, the command shall -

(a)

devolve on the second-in-command. If one has been so appointed;

(b)

if no second-in-command has been appointed, it shall devolve on the officer who may be appointed to command by the immediate superior of the officer unable to exercise command; and

(c)

If no such officer has been so appointed, the command shall devolve on the senior most officer of the Force present.

Chapter IV

Powers And Responsibilities

25.

General powers and responsibilities of superior officers.

- The superior officers of the Force shall exercise such administrative and disciplinary powers over the members of the Force placed under their command as are specified in Schedules II to IV and such other powers as are conferred on railway servants of equivalent rank by any rules relating to such servants and discharge such responsibilities as are specified in these rules or may be specified in any directions issued by the Central Government or the Director-General in this behalf.

26.

Responsibilities of the Director-General connected with the security of the railways..

-

26.1

The Director General shall-

(a)

be responsible for providing better protection and security to railway property;

(b)

advise the Central Government, the State Governments and the zonal railway administration on all matters connected with railway security and handle all references concerning Police including railway police received from State Government or other Ministries of the Central Government;

(c)

guide the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

in the protection and security of railway property and in combating crime against it;

(d)

compile a monthly review on the performance of the Force in regard to its statutory duties and functions; and

(e)

do all such other acts as may be necessary or incidental to the discharge of his duties under the Act and the rules.

26.2

The Director-General may take all such steps as he considers necessary for effectively discharging his responsibilities

referred to in sub-rule (i) including steps by way of tours and inspections, supervision of case, examination of records, calling for reports and issuing of instructions and directions and holding periodical conferences and co-ordination meetings with the superior officers of police including railway police and civil and military administration and of the Force.

27.

Administrative powers of the Director-General.

-

General:

27.

1 General.

- The Director-General shall -

(a)

exercise all executive and administrative powers in relation to the Force and its deployment;

(b)

arrange recruitment of Assistant Commandants and Sub-Inspectors against such posts in the Force as are reserved for being filled up by direct recruitment;

(c)

order posting transfer including inter-zonal railway transfers and training of all superior officers and enrolled members of the Force;

(d)

select superior officers and enrolled members of the Force for specialized or advanced courses;

(e)

compile on an all India basis, a seniority list of all Inspectors and superior officers and maintain it up-to-date at his headquarters;

(f)

act as the appellate authority against the orders of a Chief Security Commissioner;

(g)

correspond with the State Governments and other Ministries of the Government of India for securing deputation of officers for appointments as superior officers of the Force.

27.2

Powers to constitute Departmental committees. - The Director-General may-

(a)

constitute such departmental committees as may be necessary for efficient functioning of the Force performance of duties;

(b)

Constitute the Departmental Promotion Committees, preferably in the beginning of each year, for selections to the rank of Assistant Commandant and above and maintain an up-to-date gradation list and dossiers of confidential reports of such officers;

(c)

Nominate the members of the Selection Board constituted under rule 49.1 for selecting direct recruits for the posts of Sub-Inspectors; and

(d)

Nominate the members of the selection Committee to select Sub-Inspectors for promotion to the rank of Inspectors on all zonal railways.

27.3

Powers to appoint Central Examination Committee:

(a)

the Director-General shall appoint a Central Examination committee as and when required, under the chairmanship of one of the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

, to conduct the final examination of Sub-Inspector cadres and of officers of higher rank undergoing training at any institution.

(b)
It shall be after his approval that the final examination results of such courses shall be declared.

28.

Powers of the Director-General to issue "Directives".

- The Director-General may, from time to time, issue such directions, in the form of Directives, relating to the enforcement and furtherance of the provisions of the Act and these rules, as he may think necessary and the superior officers and enrolled members of the Force shall be governed by such "Directives" in the performance and discharge of their duties.

29.

Powers of other superior officers to issue orders.

- The [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

at the headquarters of the Director-General on the zonal railway, the Divisional Security Commissioners and the commanding officer of the battalion may, in conformity with the provisions of the Act, the rule, the Directives and instructions of his superior officers, issue general or special orders to other superior officers and enrolled members of the Force under their command.

30.

Magisterial Powers.

-

30.1

All officers of the rank of Assistant Inspector General, Senior Commandant and Commandant of the Force, irrespective of their designation by virtue of their postings, who have rendered service for a period of not less than seven years as superior officers or combined service for a total period of not less than seven years as officers holding equivalent ranks in any Police service and as superior officers, shall exercise the powers of a -

(a)

Metropolitan Magistrate in relation to a metropolitan area;

(b)

Judicial Magistrate of the First Class in relation to any area outside a metropolitan area;

With respect to all or any of the matters specified in Part I of Schedule V;

(c)

Chief Judicial Magistrate or, as the case may be, Chief Metropolitan Magistrate with respect to all or any of the matters specified on Part II of Schedule V.

for the purpose of sub-section (3) of section 17:

Provide that the exercise of powers by the aforesaid officers with respect to any matter specified in Schedule V shall be without prejudice to the exercise of any power by such officers as Metropolitan Magistrate, Judicial Magistrate of the First Class, Chief Judicial Magistrate or Chief Metropolitan Magistrate under the Code of Criminal Procedure, 1973 for the matters mentioned in sub-section (3) of section 17.

31.

superior officers to exercise all those powers which can be exercised by their subordinates.

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31.1

For the purposes of sub-section (2) of section 4, a superior officer may exercise any such power or perform any such duty as is assigned by the Act, the rules or by a lawful order to any member subordinate to him.

31.2

In case, any duty is imposed on such subordinate, a superior officer may aid, supplement, supersede or prevent action of such subordinate by his own action or that of any person lawfully acting under his command or authority whenever the same shall appear necessary or expedient for giving a more complete or convenient effect to the law or for avoiding any infringement thereof.

32.

Powers and functions of superior officers at the headquarters or the Director General.

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32.1

The [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]
(Administration):

32.1.1

The [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

in charge of administration shall assist the Director-General in looking after all the matters connected with the administration of the Force and shall attend to such other duties as may be entrusted to him by the Director-General.

32.1.2

He may have under him one or more other superior officers to look after the following branches or such other branches as may be created by the Director-General:-

(i)

Administration including recruitment, deputation, induction, training, placement, transfer, promotion, pay and allowances, budget, discipline, legal matters and data processing.

(ii)

Planning and Development including manpower planning, career planning, appraisal of performance, job requirements, personnel's record and manuals, follow up action on inspection notes and publicity.

(iii)

Welfare and Service including grievances, employee relations, housing, education, sport, medical, provident fund, pension and other retirement and post-retirement benefits, welfare scheme, funds, canteen and messes.

32.1.3

The [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

in charge of administration shall be the ex officio Member Secretary of the Railway Protection Force Staff Council constituted under sub-rule (3) of rule III.

32.2

[Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

(Railway Security):

32.2.1

The [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

in charge of railway security shall assist the Director-General in providing better protection and security to railway property and collection, collation and dissemination of crime and special intelligence affecting the security and functioning of the railways.

32.2.2

He shall-

(i)

deal with logistics and transport for the force, procurement and distribution of clothing, stores, fire prevention measures on railways;

(ii)

assist his counterparts over the zonal railways in prevention and detection of crime and shall compile the monthly reviews on the performance of the Force in regard to its statutory duties and functions;

(iii)

deal with all matters concerning the police including the railway police as well as matters relating to security of referred to Director-General by the State Governments or any other organization.

(iv)

attend to such other duties as may be assigned to him by the Director-General.

32.2.3

. He may have under him a number of other superior officers and enrolled members of the force as may be appointed

from time to time to look after the railway security.

32.3

[Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]
(Railway Protection Special Force) :

32.3.1

. The [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]
in charge of the Railway Protection Special Force shall be responsible-

(i)
to the Director-General for efficiently maintaining the Railway Protection Special Force;

(ii)
to ensure that a uniform standard of refresher training is imparted to all enrolled members of the force in different battalions of the Force; and

(iii)
for procuring arms and ammunition for use by the Force and to exercise technical supervision over the arms workshops constituted under rule 11.

32.3.2

He shall undertake such other duties and discharge such other functions as may be assigned to him by the Director-General.

32.3.3

He may have under him a member of other superior officers and enrolled members of the force as may be appointed from time to time to look after the Railway Protection Force.

32.4

Other superior officers at the headquarters of the Director-General:-

All other superior officers posted at the headquarters of the Director-General shall look after branches or attend to such work as may be assigned to them by the Director-General or by their respective [Principal Chief Security Commissioner]
[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

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33.
Powers and responsibilities of commanding officers of Railway Protection Special Force battalion.

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33.1

The commanding officer of a battalion be responsible for(

(a)
the internal administration of economy, efficiency, morale, discipline, training and welfare of the members of the Force placed under his command;

(b)
safety and security of arms and for ensuring and for ensuring its proper maintenance, repairs and cleaning thereof;

(c)
correct and proper maintenance of clothing, uniform and other stores of the battalion; and

(d)
making a physical check of all inventories at least once a year.

33.2

When at headquarters, he shall attend morning parade and hold orderly rooms at least once a week and meet his men, as stipulated in rule 109, once a month.

33.3

He shall exercise powers as laid down in Schedule II to Schedule IV and under the extant Railway Rules and be guided by such instructions as may be issued to him from time to time and submit such returns and reports as may be prescribed by [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

in charge of Railway Special Force or the Director-General.

34.

Powers and responsibilities of other officers of Railway Protection Special Force.

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34.1

The powers and responsibilities of other superior officers of the Railway Protection Special Force be such as may be specified in the Directives.

35.

Powers and responsibilities of the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)] of the zonal railway.

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35.1

The [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

shall be the head of the Security organization of the zonal railway assigned to him and shall exercise such powers as are prescribed for the Head of Departments under the extant Railway Rules.

35.2

Subject to the provisions contained in the Act, Rules and the Directives, he shall exercise administrative, executive and operational control over all members of the Force placed under his command.

35.3

He shall deal with-

(i)

all establishment and welfare matters pertaining to the Force and shall keep the Force at a high pitch efficiency particularly through effective personnel and financial management and inspection of branches under his control;

(ii)

all matters referred by the police including railway police or any other agency to the zonal railway concerning railway security.

35.4

He shall be responsible for providing in his jurisdiction better protection and security to railway property and deal with all matters connected therewith and to perform inter alia the following functions:-

(i)

to arrange collection and dissemination of crime and special intelligence affecting the security and functioning of the railway, maintenance of statistics, records and files relating thereto;

(ii)

to devise and means for reducing incidents of theft, pilferages, losses and shortages of booked consignments leading to claims for compensation and for combating crimes affecting railway revenue;

(iii)

to arrange through enquiries into cases of thefts of railway property or goods in transit or into cases of loss of railway revenue arising from misappropriation, evasion of wharfage and demurrage, cheating, etc;

(iv)

to maintain close liaison, on behalf of the railways, with the State Police including the railway Police as well as the civil administration by holding meetings and conferences with his counterparts for ensuring better protection and security to the railway property.

(v)

To watch and monitor the progress of disciplinary action recommended by the Security Department against the delinquent railway servants.

36.

Powers and responsibilities of [Chief Security Commissioner]

[Substituted 'Additional' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

Deputy [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

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36.1

The [Chief Security Commissioner]

[Substituted 'Additional' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

or the Deputy Security Commissioner, as may be posted as Deputy Head of the Security Organisation of the zonal railway, shall exercise all such financial, administrative and disciplinary powers as are delegated to him under these rules or through Directives or as provided for railway servants of corresponding rank under the extant Railway Rules.

36.2

He shall-

(a)

represent the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

concerned at all official meetings in his absence or when especially deputed for the purpose;

(b)

assist the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

concerned in discharge of his functions pertaining to protection and security of railway property and to combat crime against it, prosecution of criminals, maintenance of statistics, collection of crime intelligence-its collation and dissemination, enforcement of the fire prevention measures, liaison with other railway departments etc.; and

(c)

perform the following other functions:-

(i)

review the cases of losses, thefts, pilferages, shortages and misappropriation of railway property with a view to bringing down their incidence;

(ii)

Watch and study the trends of claims arising under clause © (i) and intimate appropriate measures for their prevention in conjunction with Claims Organisation as well as with his counterparts on the other zonal railways;

(iii)

Scrutinize special reports cases of crime and other important cases under the Railway Property (unlawful possession) Act, 1966 coming to commissariat and issue instructions as considered necessary; and

(iv)

Organize and attend meetings and conferences with police including railway police and other civil departments directed by [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

concerned to ensure better protection of railway property and take follow up action on the decision taken therein.

36.3

He shall also-

(i)

look after the logistics, transport, procurement and distribution of arms, ammunition, clothing, stores, etc.;

(ii)

ensure and correct replies to all questions received from parliament, Estimate Committee, public Accounts Committee etc. pertaining to his zonal railway;

(iii)

be the incharge of the Zonal Security Commissioner and shall monitor and take appropriate action on messages received by it;

(iv)

carry out inspections of the offices and units of the Force in the zonal railway as may be entrusted to him by the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

concerned and suggest way and means for their better functioning; and

(v)

conduct such enquiries and attend to such other duties as may be entrusted to him by [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

concerned.

37.

Powers and responsibilities of Staff Officer or Personal Assistant..

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37.1

The Staff Officer or personal Assistant shall assist the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

concerned in the discharge of the following functions-

(a)

Administration - including recruitments, deputation, training, placement, transfer, promotion, pay and allowances, budget, discipline, legal matters and data processing, reserve companies, band etc.;

(b)

Planning and Development-including manpower planning, career Planning, appraisal of performance, job requirement, personnel's record and manuals, follow up action on inspection notes and publicity;

(c)

Welfare and service-including grievances, employee relations, housing, education, sports, medical, provident fund, pension and other retirement and post retirement benefits, welfare schemes, funds, canteen and messes.

37.2

He shall also be responsible for

(a)

organization periodical meetings required to be covered at the headquarter level;

(b)

maintaining liaison with other departments of the railway at headquarters;

(c)

organization ceremonial parades, VIP visits and other matters of like nature.

37.3

He shall exercise the same administrative and disciplinary powers in respect of ministerial staff posted at the Security Commissariat as prescribed for his counterparts under these rules and/or under the extant Railway Rules and shall discharge such other duties as may be entrusted to him by the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

concerned.

38.

Powers and responsibilities of other superior officers posted In Security Commissariat.

- The responsibilities of other superior officers posted in-charge of crime, special intelligence, [***]

[Omitted by Notification No. G.S.R. 719(E) dated by 31.10.2013 (w.e.f. 3.12.1987)]

and fire service etc. shall be such as may be specified through Directives or by the order of the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

concerned.

39.

Powers and responsibilities of the Divisional Security Commissioner.

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39.1

The Divisional Security Commissioner shall be directly responsible to the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

concerned for better protection, security the smooth movement of railway property as well as for efficient administration

of the Force in his jurisdiction and shall deal with all establishment matters concerning the enrolled members of the Force placed under his control.

39.2

He shall exercise such powers in respect of establishment and other matters as are given in Schedule II to IV and under the extant Railway Rules.

39.3

The Divisional Security Commissioner shall devise ways and means for providing better protection and security to railway property in his division and matters connected therewith and shall carry out such directions as may be given to him on the subject by the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

concerned or on his behalf by any other superior of the Force.

39.4

He shall keep in close touch with the superior officers posted in the division, Post Commanders and Company Commanders for ensuring effective co-ordination amongst them and to aid, advise or direct their activities for providing better protection and security to railway property.

39.5

He shall inspect, as frequently as possible and in any case not less than once a year, the work of his Assistant Security Commissioners, all Railway Protection Force Posts, companies important Posts, detachments, etc. coming in his jurisdiction and take such action as may lie within his competence or issue such directions as considered necessary to remedy existing defects or to streamline the working.

39.6

His other functions shall include-

(a)

attending parades and kit inspections at important stations and holding monthly meetings with superior officers, Post commanders and Company Commanders of his division to review crime situation;

(b)

ensuring effective and result-oriented deployment of Force placed under his command;

(c)

studying all basic security arrangements against thefts, pilferage and other crimes against railway property and suggesting such improvements to the authorities concerned as may be called for;

(d)

ensuring correct account of crime, through and prompt enquires for recovery of stolen railway property and prosecution of offenders and receivers;

(e)

liaison with his counterparts in the police including railway police, civil administration and other railway departments for taking effective measures for better protection and security of railway property and matters connected therewith;

(f)

keeping a watch over claims preferred and paid on account of theft, pilferages, losses and shortages of booked consignment and taking preventive measures in co-operation with his counterpart in the Claims Prevention Office to arrest the upward trend in incidents leading to such claims noticed anywhere in his jurisdiction.

(g)

Submitting to his superior officers such reports and returns as may be called for including reports on subversive and other objectionable activities affecting the security and functioning of the railway noticed anywhere in his divisions; and

(h)

Ensuring full compliance by all concerned under his command of all directions and instructions issued by the Director-General or the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

concerned under the Act and these rules.

40.

Powers and responsibilities of other superior and subordinate officers of the division.

- The powers and responsibilities of other superior and subordinate officers posted to assist the Divisional Security

Commissioner shall be such as may be specified in the Directives.

41.

General Powers and functions of enrolled member of the Force.

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41.1

The primary functions of the enrolled members of the Force shall be-

(a)

to protect and safeguard railway property and to combat crime against it;

(b)

to do any other act conducive to better protection and security of railway property;

(c)

to remove any obstruction in the movement of railway property; and

(d)

to perform other functions of an armed force of the Union and to exercise powers of a railway servant as conferred by or under the [Indian Railways Act, 1980.]

[Now see the Railways Act, 1989 (

24 of 1989

).]

41.2

The other functions of enrolled members of the Force shall be-

(i)

to identify the situation that have potential for the commission of crime against the railway property either static or in transit or mobile and take remedial measures or suggest improvement in basic security arrangements or faulty procedures where necessary, the railway administration.

(ii)

To reduce the opportunities of thefts, pilferages, misappropriation, trades, etc., against railway property and leakage of railway revenue through supervisory preventive checks or other appropriate measures like detailing of patrols in vulnerable sectors, posting of guards and pickets at black spots, escorting of affected trains, keeping open or unobtrusive watch at workshops, stores, goods-sheds, depots, parcel offices, yards and other such places and at any station or enroute the destination of railway property;

(iii)

to aid, co-operate and co-ordinate the measures of other railway agencies or the police or other authorities in implementing other appropriate measures for ensuring prevention of crime against the railway property and providing for its better security;

(iv)

to interpose at any time or place for preventing any attempt to steal, misuse, damage or tamper with the railway property or to convert it into private use without lawful authority and to intimate action against offenders;

(v)

to register and take up enquires under the Railway Property (Unlawful Possession) Act 1966, apprehend the offenders and participate in subsequent legal proceedings connected therewith;

(vi)

to register or to promptly pass on reports for registration to the local police of all cognizable offences against the railway property, conduct enquires and collect evidence for localizing the crime or which is otherwise considered necessary and render such other assistance as may be possible in investigation of such cases;

(vii)

to obtain intelligence relating to the commission of or intention to commit any offence specified in clauses (i), (ii), (iii), (iv), (v), (vi), (vii), (viii), (ix) of sub-section (1) of section 39 of the Code of Criminal Procedure, 1973 on the railways and to lay such information and to take such other steps consistent with law and with the orders of his superiors as shall be best calculated to bring offenders to justice and to prevent the commission of cognizable and, within his view, of non-cognizable offences;

(viii)

to collect intelligence about subversive and other objectionable activities affecting the security and functioning of the railways as well as the activities of criminals and suspects prying on railway property;

(ix)

to study all cases of suspected sabotage or tampering with track or obstruction to movement of railway property with a view to suggesting preventive measures to railway administration and the police;

(x)

subject to rule 42 to assist the railway administration during strikes and lockouts as well as the police during mob violence or civil disturbances or for maintenance of law and order and control of railway crime or when deputed anywhere in India in aid to civil power.

(xi)

To assist the commercial and other departments of the railway during raids on ticket less travellers, alarm chain pullers, unauthorized hawkers and on those indulging in, hose pipe disconnections or infringing other provisions of the [Indian Railways Act, 1980]

[Now see the Railways Act, 1989 (

24 of 1989

).]

;

(xii)

To aid any other member of the Force when called upon by such other member or in the case of need in the discharge of the duty of such other member, in such ways as would be lawful and reasonable on the part of the member thus aided;

(xiii)

To use his best endeavours to prevent any loss damage by fire to railway property;

(xiv)

To record and study all cases or fire incidents involving railway property and suggest preventive measures and to operate and maintain firefighting equipment at railway stations, installations, etc;

(xv)

To guard cash office of railway and escort their pay clerks;

(xvi)

To take prompt measures to procure necessary medical help for any wounded or sick person under the arrest or in custody;

(xvii)

To arrange for the proper sustenance and shelter to every person who every person who is under arrest or in custody;

(xviii)

To undertake any other security duty assigned to the Force by or with the concurrence of railway administration for the execution of which necessary resources have been provided and approval of the Director-General of the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

, as the case may be, obtained; and

(xix)

To promptly obey and execute all orders lawfully issued to him by any superior officer or the Force and to discharge such other duties as are imposed upon him by any law for time being in force or case on him by any railway rule.

42.

Restriction on deployment of Force.

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42.1

Notwithstanding anything contained in this Chapter, no member of the Force shall be called upon to carry out any functions relating to law and order (except when detailed under Chapter XVI) or to attend to problems which are purely of an administrative nature requiring certain standard of discipline to be maintained by the railway servants or users of the railways:

Provided that the Force may be deployed to combat mob violence against the safety and security of railway property where there is delay in arrival of the Police or the Magistrate.

42.2

Without prejudice to rule 41.2(x) the force may make adequate arrangements during strike and lock-outs for ensuring protection and security of railway property and provide protection to the loyal workers and for maintenance of law and order with the assistance of Local Police or otherwise.

42.3

Except for reason to be recorded in writing, no member of the Force shall be deployed in railway colonies-

(a)

for rounding up and removal of stray cattle, hawkers, beggars, anti-social elements such other duties;

(b)

for regulating the crowd for ensuring law and order in the sale of controlled commodities by railway co-operative societies;

(c)

to perform traffic duties, to control the crowd and to regulate vehicular traffic;

(d)

to collect toll taxes; or

(e)

to guard the schools and colleges run by the railway administration:

Provided that the Force may be deployed in any railway colony for guarding vital installation like sub-stations, pump houses, etc.

[42.4 Whenever the Force is called upon to help remove encroachments and unauthorized occupations either on railway stations or in the railway premises, it shall be the duty of the Force to render such help as is necessary, to the authority seeking help subject to the following restrictions:-

(a)

The force shall not be called upon to help evict railway employees from railway quarters or trade union from railway buildings. Nor shall the Force be called upon to help evict any Government or semi-Government agency from railway quarters, railway stations, railway buildings or railway premises;

(b)

the requisition for help shall be made in writing to the Post commander by Railway Officer not below the rank of an Assistant Officer;

(c)

the Post Commander, while rendering assistance to the Railway Officer requisition assistance, shall follow such procedure as may be prescribed by the Directives.]

42.5

No member of the Force shall be deployed for serving order of dismissal or removal from service or suspension on any railway servant or to verify the antecedents or character of any employee.

42.6

No member of the Force shall be called upon to remove any posters which seem objectionable to the railway administration but if any other railway servant is commissioned to remove such posters, the Force shall provide protection to him.

43.

Procedure on arrest.

- For the purpose of section 14, while handing over a person arrested under section 12 to the police office or at the nearest police station, a brief note giving the time, date and reasons of arrest shall also be furnished and a record of the same kept at the post.

44.

Search.

- For the purposes of section 13 of the Act, if any railway property reasonably suspected of having been stolen or unlawfully obtained is found during any search of a person or his belongings that person shall be arrested and dealt with under the provisions of the Railway Property (Unlawful Possession) Act, 1966 or sent to the Police along with the property thus recovered as the circumstances of the case may warrant.

Chapter V

Recruitment, Training And Career Planning

45.

Recruitment.

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45.1

Direct recruitment to the Force shall be made at the level of Constables, Sub-Inspectors and Assistant Commandants and all other posts shall be filled in by promotion or through a limited departmental compensation from amongst the eligible enrolled members of the Force or by taking personnel on deputation in accordance with these rules.

45.2

The [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

concerned shall work out each year the number of vacancies in each rank shall take steps to fill them up in accordance with these rules.

45.3

The procedure for filling up these posts and other matters not so specified in these shall be such as may be specified in the Directives.

46.

Ineligibility

:-No person-

(a)

who is not a citizen of India, or

(b)

who has entered into or contracted a marriage with a person having a spouse living, or

(c)

who having a spouse living, has entered into or contracted a marriage with any person,

Shall be eligible for appointment as member of the Force

47.

Establishment standards.

- Physical standard : The minimum physical standard for enlistment as an enrolled member of the Force (including ancillary staff specified in Schedule I) shall be as under :

(a)

[Height - 165 cms.]

[Substituted by G.S.R. 574, dated 7-11-1994 (w.e.f. 19-11-1994).]

(b)

Chest : unexpanded - 80 cms.

Expanded - 85 cms.

[***]

[First proviso omitted by G.S.R. 574, dated 7-11-1994 (w.e.f. 19-11-1994).]

[Provided]

[Substituted by G.S.R. 574, dated 7-11-1994 (w.e.f. 19-11-1994).]

that for persons who have not attained the age of 20 years, a relaxation of 2.5 cms. in height and 5 cms. in chest measurements may be allowed if the Divisional Medical Officer certifies that the person concerned is likely to attain the minimum prescribed standard on attaining the maximum age applicable in the case:

Provide further that the Director-General may prescribe separate physical standard for female candidates for direct recruitment.

48.

Age and educational qualifications .

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[***]

[Omitted by Notification No. G.S.R. 719(E) dated by 31.10.2013 (w.e.f. 3.12.1987)]

48.2

A candidate for the post of Constable, by direct recruitment,]

(i)

must be above the age of 18 years but below the age of [25 years]

[Substituted by G.S.R. 374, dated 24-7-1992 (w.e.f. 8-8-1992).]

on the date of notification of recruitment, and

(ii)

must have passed High school Examination or its equivalent from a recognized Board or University :

Provided that the upper age limit for posts to be filled by direct recruitment may be relaxed for candidates belonging to the Scheduled Castes or Scheduled Tribes and other special categories of persons in accordance with orders issued by the Central Government from time to time in this regard:

Provided further that proficiency in games, sports, and athletics, music, membership of national Cadet Corps and other organization or institutions as may be approved by the Director-General shall be given due weightage as [Chief Security Commissioner]

[Substituted 'Additional' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

qualification :

Provide further that preference may be given to the children of the members of the Force who, while facing criminal or operational duty, are killed or become disabled or invalidated out of service in case such children are otherwise eligible and suitable for the post.

49.

[Procedure of recruitment.

[Substituted by G.S.R. 114, dated 14-6-2007 (w.e.f. 23-6-2007).]

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49.1

Direct recruitment to the post of Sub-Inspectors shall be made through competitive examination held by a Selection Board by the Director-General and comprising (a) a [Principal Chief Security Commissioner]

[Substituted by G.S.R. 756(E), dated 2-11-1999 (w.e.f. 5-11-1999).]

as Chairman, (b) officer-in-charge training in the office of the Director-General, (c) a sociologist or an academician and (d) personnel management expert or a psychologist:

Provided that the Director-General may nominate any officer from amongst the superior officers of the Force as a member of the Selection Board, referred to in (c) or (d) above who, in his opinion, is capable of discharging that role.

49.2

Direct recruitment to the posts of Constables shall be made by a Committee consisting of a Chairman and two other members nominated by the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

of the Zonal Railway or the Railway Protection Force, as the case may be :

Provided that the Chairman of the Committee shall be a serving Security Commissioner and the other members shall be persons who have retired from Railway Protection Force in a rank not lower than Security Commissioner.

49.3

Places for holding selections shall be so fixed as to attract best talent from various regions and need not be restricted merely to the applicants sponsored by the employment exchange or other such government agencies.

49.4

Procedure of selection shall be so evolved as to-

(a)

reduce the chances of impersonation; and

(b)

eliminate at the initial stage all such candidates who are unfit for consideration.

49.5

Final selection shall be based on uniform standards of tests and viva voce for which guidelines shall be prescribed by the Director-General.]

50.

Appointment in special cases.

- The Central Government may, for reason to be recorded in writing, provide for appointments being made otherwise than as prescribed in this Chapter to give effect to special claims or to meet any special case or situation.

51.

Medical examination .

-

51.1

No candidate who is not certified by the Divisional Medical Officer to be in good mental and bodily health of prescribed standard and free from any physical deformity or defect likely to interfere with the efficient performance of his duties in the Railway Protection Force shall be called in for training or appointment to the Force.

51.2

Candidates who use spectacles or have knock-knee or flat-foot not be eligible for appointment to the Force [***]

[Omitted by Notification No. G.S.R. 719(E) dated by 31.10.2013 (w.e.f. 3.12.1987)]

.

52.

Verification .

-

52.1

As soon as a recruit is selected but before he is formally appointed to the Force, his character and antecedents shall be got verified in accordance with the procedure prescribed by the Central Government from time to time.

52.2

Where after verification, a recruit is not found suitable for the Force, he shall not be appointed as a member of the Force.

53.

Execution of agreement, etc.

- Every person shall -

(a)

at the time of his joining the initial course, execute an agreement in the form specified in Schedule VI, and

(b)

on appointment as a member of the Force, make solemn affirmation in the form specified in Schedule VII and also receive a certificate of appointment in the form specified in the Schedule of the Act.

54.

Cadre of superior officers of the Force.

-

54.1

The cadre of superior officers of the Force shall be manned by-

(a)

direct recruits through the Civil Services Examination conducted by the Union Public Service Commission,

(b)

Promoted from lower ranks or the Force,

(c)

Deputationists from Indian Police Service and other State Police Services,

(d)

Occasional admission of other qualified persons on the recommendation of the Union Public Service Commission, who would enter laterally as considered necessary from time to time.

54.2

The strength of the cadre and its composition shall be such as may be determined by the Central Government from time to time.

[***]

[Proviso omitted by G.S.R. 45, dated 12-1-1996 (w.e.f. 27-1-1996).]

55.

Recruitment and promotion of superior officers.

-

55.1

Subject to these rules, recruitment of superior officers and promotion to the rank of Assistant Commandants and from one rank of superior officer to the other rank of superior officers shall be made in accordance with the Railway Protection Force (Group 'A' and 'B' Posts) Recruitments Rules, 1981, as amended from time to time.

55.2

confirmation and regularization in each rank shall be made on all India availability of the posts in that rank.

56.

Appointment to the Force .

- All appointments to the Force -

(a)

in respect of Group 'A' shall be made by the Central Government, and

(b)

in respect of enrolled members shall be made by the authorities as specified in Schedule II.

57.

Probation.

-

57.1

Every member on appointment to the Force either by direct recruitment or by promotion shall be on probation for a period of two years: Provided that the controlling authority may extend the period of probation in accordance with the instructions or orders issued by the Central Government from time to time in this regard:

Provided further that any decision for extension of a probationary period shall be taken immediately after the expiry of the probationary period and communicated in writing to the concerned member of the Force together with the reasons for so doing within a period of two months from the expiry of the probationary period.

57.2

On successful completion of the period of probation or any extension thereof, a member of the Force shall be retained in his appointment on regular basis and be confirmed in due course against the available substantive vacancy.

57.3

if, during the period of probation any extension thereof, as the case may be, the appointment authority is of the opinion that the member of the Force is not fit for permanent appointment, the appointing authority may terminate the services of a direct recruit or revert the member of the Force to the post held by him prior to such appointment.:

Provided that in case of termination of service a probationer shall be given a notice of one month to that effect or pay in lieu thereof: Provided further that a notice or pay in lieu thereof shall not be required where the termination of service results as a consequence of the failure of the probationer to pass the initial training courses or a repeat course, if any.

57.4

During the period of probation or any extension thereof, a member of the Force may be required by the appointing authority to undergo such courses of training and instructions and to pass such examinations and tests as may be specified by it for satisfactory completion of the probation.

58.

Refund of cost of training .

- A person appointed as a member of the Force shall ordinarily serve for a period of three years. In the event of such person resigning from service, he shall refund the cost of training as determined by the appointing authority or three months' pay whichever is less.

Training

59.

Initial training of direct recruits.

-

59.1

Every person on entering service as direct recruit in any shall undergo an initial training course for the efficient performance of his duties.

59.2

Officers coming on deputation to the field postings shall undergo an orientation course as may be specified by the

Director-General from time to time.

59.3

Deputation of subordinate ranks may undergo the orientation course at the Railway Protection Force Academy or in any other Zonal Training Institute of the Force as may be specified by the [Principal Chief Security Commissioner] [Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)] concerned.

60.

Standard of training and syllabus.

-

60.1

The Director-General shall specify the standard of training and syllabus for different ranks as well as for refresher, orientation, promotional, special and other in-service course and fix the duration of training for such courses.

60.2

The ancillary staff specified in Schedule I may only be given a short training in discipline, wearing of uniform, rudiments of drill including saluting etc.

61.

Syllabus for basic training .

- The syllabus for basic training for all direct recruits shall be such as may be specified by the Director-General as and shall inter alia include the following matter, in addition to practical training, namely:-

(a)

Out-door-

(i)

correct wearing of uniform, ie. clothing and accoutrements;

(ii)

ceremonial drill and guard mounting;

(iii)

Squad, platoon and company drill and extended order movements;

(iv)

Weapon training including field craft, tear gas smoke, riot drill and handling of explosives;

(v)

Physical training; and

(vi)

Self-defence, karate, swimming and leadership.

(b)

In-order-

(i)

organization of the railways, the Railway Protection Force and their working;

(ii)

establishment and accounts matters and procedure of Railway Protection Force;

(iii)

general duties of Railway Protection Force including prevention and investigation of crimes connected with railway property and prosecution of offenders;

(iv)

law with special emphasis on criminal law, Indian Railways Act, 1980, Railway Protection Act, 1957, Railway Protection Force Rules, Directives and Railway property (Unlawful possession) Act, 1966;

(v)

Psychology, criminology and scientific aids to investigation including finger prints;

(vi)

First aid and fire fighting;

(vii)

Scriptory work at the posts and Company headquarters;

(viii)

Intelligence course and security work including security of prisoners;

(ix)

Insurgency against mass transportation and measures to combat it;

(x)

Working of the transportation, commercial, mechanical, electrical, signal and tele-communication and other allied departments of railway and liaison with them;

(xi)

Liaison with Police (including railway police) and other agencies when detailed in aid to Civil Power;

(xii)

Dealing with weaker sections, e.g. Women, juveniles, lunatics, including their search, arrest, questioning etc.

(xiii)

Codes of conduct and behaviour for railway Protection Force personnel;

(xiv)

Disaster management and public relation work in order to help create better image of Railway Protection Force; and

(xv)

Any other matter which may be considered desirable to be introduced by the Director-General.

62.

Special Courses.

- The [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

concerned may, at any time, depute any member of the Force to undergo a course of training of instructions having a bearing on the Railway Protection Force work conducted by the Central Government or the State Government or by any training establishment or the Railway Protection Force or any instruction or Directorate of Co-ordination (Police Wireless) or railway training institution or any other institution:

Provide that in the case of superior officer, the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

concerned shall obtain prior permission of the Director-General.

63.

Regulation of training period.

-

63.1

subject to sub-rule(2) the period of training including in-service courses shall be treated as duty for all purposes.

63.2

During the period of training, the recruits shall be paid stipend or pay and allowance as may be specified from time to time.

64.

Promotion Courses.

-

64.1

Enrolled member of the Force on being regularly selected or promotion to the rank of Naik, Head Constable, Assistant Sub-Inspector and Sub-Inspector shall undergo a special course (hereinafter referred to as promotion course) at any training institution of the Force a duration which may be fixed by the Director-General: Provided that the promotion course of promotee Sub-Inspectors (Fire) eligible for admission to the National Fire Service College Nagpur shall be at the said college.

64.2

Passing of pre-promotional course shall be essential for regular promotion which will take effect from the date on which such enrolled member of the Force reports for duty against a clear vacancy after passing the said course.

65.

Examination on conclusion of course at any training institution of the Force.

-

65.1

At the conclusion of each course at any training institution of the Force, the final examination shall be conducted by a Board of Examiners which shall be nominated by -

(a)

the Director-General in case of training courses for Sub-Inspectors and above, and

(b)

the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

concerned in case of training courses for other members of the Force.

65.2

Pass marks. - In order to pass the examination, the candidates would be required to obtain minimum of 50 per cent. Marks in each subject and 60 per cent. Marks in the aggregate.

[65.3 Second attempt : Any candidate who fails the examination shall be allowed a second attempt to appear for that subject or course in such manner as may be specified by the Director General or the [Principal Chief Security Commissioner]

[Substituted by Notification No. G.S.R. 556 (E) dated 16.8.2013 (w.e.f. 3.12.1987)]

concerned, without any stipend or any other remuneration:

Provided that candidates belonging to the Scheduled Castes/Scheduled Tribes categories shall be given a second attempt with stipend or remuneration and a third attempt, without any stipend or any other remuneration.]

65.4

On failure in the second attempt, or where the candidate is eligible for the third attempt, on failure in the third attempt, the candidate shall be discharged from service without notice or reverted to his substantive rank.

65.5

Approval of results. - - The Board of examiners on conclusion of examination of each course, shall submit the proceedings and results of the Examination to the authority which constituted the Board for approval.

65.6

The authority on receipt of proceedings and result may approve or for reasons to be recorded in writing, pass such other orders as it may deem fit in the circumstances of the case.

66.

Refresher courses. -

66.1

Members of the Force while in service may be required to undergo such refresher courses, for such durations and at such places as may be determined by the Director-General.

66.2

a roster in respect of members of the Force who are required to attend in-service training or special training shall be prepared and maintained at the Security Commissariat of the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

concerned for strict compliance and orders shall be issued to the concerned members of the Force well in advance.

66.3

The release of members of the Force for training shall under no circumstances be deferred except in exceptional circumstances and when such postponement has been made, it shall not be deferred further beyond the immediate next course.

66.4

A member deputed for training shall, so long as possible, be posted back to the place from when he has proceeded on training on he is otherwise not due for transfer on promotion.

67.

Disciplinary control .

-

67.1

The staff and trainees at any training institution of the Force, shall, so long as they are at such institution or undergoing training at some other place, be under the disciplinary control of the principal of that training institution.

67.2

A direct recruit selected for being appointed as enrolled member, till such time he is not formally appointed to the Force, is liable to be discharged at any stage if the [Principal Chief Security Commissioner]
[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]
for reasons to be recorded in writing, deems it fit so to do in the interest of the Force.

Promotion and career planning

68.

Cadre review.

- A cadre review of all branches of the Force shall be undertaken once in five years or earlier as decided by the Central Government.

69.

Basis of promotion .

-

69.1

Promotion of member of the Force upto rank of Commandant shall be made on the basis of merit having due regard to seniority.

69.2

Promotion to rank higher than that of the Commandant shall be made on the basis of merit only.

70.

Procedure for promotion of enrolled members of the Force.

-

70.1

The age limit, length of service and other matters relating to promotion procedures for determining the seniority on appointment or on promotion shall be in accordance with these rules or where no provision has been herein for these matters be in accordance with the Directives.

70.2

A panel shall be drawn up preferably each year by the Departmental Promotion Committee for each specified category of posts which are required to be filled on the basis of promotion.

70.3

The number of candidates called for selection under rule 71 shall, ordinarily, be three times the number required to be empanelled and their names shall be notified thirty days in advance of the date fixed for holding selection:

Provided that the name of any enrolled member who has continuously failed to qualify in three attempts shall not be taken into consideration for three subsequent selection for that rank, while calling the candidates for selection as specified above:

Provided further that a candidate whose work and conduct has been assessed as below average or whose integrity has been found to be doubtful in two or more out of the five years preceding the selection shall not be empanelled.

70.4

The size of a panel drawn up in accordance with sub-rule (2) shall ordinarily be such as shall provide for all existing vacancies and vacancies anticipated within the next twelve months from the date on which Departmental Promotion Committee is constituted plus ten percent. Of such total and limited to percentage if any, specified in Schedule IV against that category.

70.5

Nomination of members of Departmental Promotion Committee for holding selections to various ranks mentioned in column (1) of the Table below shall be made by the superior officers mentioned against that rank, in column (2) of the said Table.

TABLE

(i)

[***]

[Omitted by G.S.R. 229, dated 15-7-1999 (w.e.f. 24-7-1999).]

, Head Constable and Assistant Sub-Inspector

[Chief Security Commissioner or Deputy Chief Security Commissioner]

[Substituted 'Deputy Chief Security Commissioner' by Notification No. G.S.R. 1067(E), dated 25.10.2018 (w.e.f. 3.12.1987).]

(ii)

Sub-Inspector

Chief Security Commissioner

(iii)

Inspector

Director-General

70.6

The Composition of Departmental Promotion Committee shall be as under:

(i) []

[Entry (ii) renumbered as entry (i) by G.S.R. 229, dated 15-7-1999 (w.e.f. 24-7-1999).]

[Promotion from constable to Head Constable]

[Substituted by G.S.R. 229, dated 15-7-1999 (w.e.f. 24-7-1999).]

Three Assistant Security Commissioners

(iii) []

[Entries (iv) and (v) renumbered as entries. (iii) and (iv) by G.S.R. 229, dated 15-7-1999 (w.e.f. 24-7-1999).]

Promotion from Head Constable to Assistant Sub-Inspector

Two Security Commissioners and one Assistant Security Commissioner

(iii)

Promotion from Assistant Sub-Inspector to Sub-Inspector

Three Security Commissioners

(iv) []

[Entries (iv) and (v) renumbered as entries. (iii) and (iv) by G.S.R. 229, dated 15-7-1999 (w.e.f. 24-7-1999).]

Promotion from Sub-Inspector to Inspector

[Three Principal Chief Security Commissioners or Chief Security Commissioners]

[Substituted 'Three Principal Chief Security Commissioners' by Notification No. G.S.R. 1067(E), dated 25.10.2018 (w.e.f. 3.12.1987).]

70.7.1

All panels drawn up by the Departmental Promotion Committee shall be submitted for appropriate authority who nominated the said Committee.

70.7.2

If the said authority does not accept the recommendations of the said Committee, it shall record reasons for the same and the matter shall be referred to the next higher authority, which may, for reasons to be recorded in writing pass such orders as are considered appropriate.

70.8

A panel drawn up in accordance with this rule shall remain operative for a period of one year from the date of its approval or till it is exhausted, whichever is earlier.

71.

[Guidelines for Departmental Promotion Committee for holding selection under rule 70.

[Substituted by Notification No. G.S.R. 1067(E), dated 25.10.2018 (w.e.f. 3.12.1987).]

(1)

Allocation of marks for written examination shall be as follows, namely: -

Maximum marks

Qualifying marks

80

48.

Provided that the mode of conducting written examination shall be such as may be specified by Directives.

(2)

Candidates qualifying in the written examination shall be considered for assessment of service record for which marks may be awarded as specified in the Directives, and the maximum marks shall be as follows, namely: -

Maximum marks

Record of service

20.

(3)

A panel shall be drawn from amongst the candidates securing sixty per cent or more marks in the order of their respective seniority in the rank.

(4)

Qualifying marks for candidates belonging to the Scheduled Castes and the Scheduled Tribes shall be forty marks under sub-rule (1) and fifty per cent under sub-rule (3)]

72.

Guidelines for holding limited departmental competition.

-

72.1

Applications from eligible candidates for appearing in the limited departmental competition to the rank of Head Constable and Assistant Sub-Inspector shall be invited thirty days in advance of the proposed date of holding the said competition.

72.2

The procedure for holding the said competition shall be the same as provided in rules 70 and 71 except sub-rule (3) of the said rules.

72.3

A panel shall be drawn from amongst the candidates securing sixty per cent marks or more in the order or merit.

[***]

[Rule 73 omitted by G.S.R. 229, dated 15-7-1999 (w.e.f. 24-7-1999).]

73.

Promotion of special deserving Naiks.

-

73.1

Specially deserving Naiks who have been consistently outstanding in their performance in that rank during the last seven consecutive years may be promoted to the rank of Head Constables, out of turn, by the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

concerned, in accordance with procedure that may be specified in the Directives, provided that such promotions shall be given rarely and in any case shall not exceed 10 per cent. of the total number of promotions thus being made at a particular selection.

74.

Promotion to short term vacancies .

-

74.1

Promotion to short term vacancies may be made on an officiating basis if the exigencies of service so require.

74.2

Such promotion may be made from amongst persons who are on the panel or there is no candidate on the panel then on the basis of seniority subject to rejection of unfit.

75.

Special provision for ancillary staff.

-

75.1

Ancillary staff, as specified in Schedule I, shall form part of the enrolled members of the Force.

75.2

Notwithstanding anything contained in sub-rule 48.2(ii) and rule 49, a candidate who, in the opinion of the authority, is otherwise qualified and proficient in his trade or skill may be enlisted as a Constable for that trade or skill.

75.3

Notwithstanding anything contained in rules 7 and 16, for purpose of promotion and advancement in career, the ancillary

staff shall form a separate cadre for each trade or skill on the zonal railway, or as the case may, on the Railway Protection Special Force and shall be promoted to the next higher rank of their category on the basis of seniority subject to rejection of unit.

76.

Deputation of officers to the Force.

- Notwithstanding anything in this Chapter, with a view to ensuring highest professional standard and closest liaison with Police recruitment may be made by taking personnel on deputation from the Police on such terms and conditions as may be specified by the Central Government from time to time. The period of deputation of Police Officers shall not normally be less than four years or more than seven years.

Provided that the deputation of officers to the Posts of the Inspectors shall be limited to fifteen percent. Unless the concerned [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

is of the opinion that sub-Inspectors who fulfil the conditions of eligibility for promotion to the posts of Inspectors are not available or such candidates are available they are not proved merit and ability.

77.

Deputation of members of the Force to other departments.

-

77.1

No member of the Force shall directly approach any other department for deputation.

77.2

With the prior approval of the Director-General or the concerned [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

, is as the case may be, members of the Force may be allowed to proceed on deputation in public interest to other departments of the Railways or to other Government departments on such terms and conditions as may be offered by the borrowing department.

Chapter VI

Pay, Remuneration And Duration Service

78.

Pay and allowances.

-

78.1

The pay of superior officers and enrolled members of the Force shall be as follows or as may be prescribed by the Central Government from time to time:-

Superior Officers

Rank

Scale of pay

Director-General

Rs.

7600 (Fixed)

Inspector General

Rs.

5900-200-6700

[***]

[Omitted 'Additional Inspector General' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

[***]

[Omitted 'As may be prescribed' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

Deputy Inspector General

Rs.

5100-150-5400-150-6150

.Rs.

5400 in 18th year or later)

Senior Commandant

Rs.
4100-125-4850-150-5300
Commandant
Assistant Inspector General
Rs.
3000-100-3500-125-4500
[***]
[Omitted 'Deputy Commandant' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]
[***]
[Omitted 'As may prescribed' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

Assistant Commandant

Rs.
2200-75-2800-EB-100-4000
Provided that whenever the posts of Deputy Inspector for General and Assistant Inspector General (in selection grade or otherwise) are held by IPS officers, these posts shall carry a special pay of Rs. 400 each subject to the condition that the pay plus special pay shall not exceed the maximum of the scale of pay of the post to which the special pay is attached.

Enrolled members of the force

'[Inspector
[Substituted by G.S.R. 14, dated 24-1-2007 (w.e.f. 27-1-2007).]
[Rs.6500-200-10,5001]
[Substituted by G.S.R. 14, dated 24-1-2007 (w.e.f. 27-1-2007).]

Sub-Inspector

Rs. 1400-40-1800-EB-50-2300

Assistant Sub-Inspector

Rs.
1320-30-1560-EB-40-2040

Head Constable

Rs.
975-25-1150-EB-30-1660

[* *
*]
[Omitted by G.S.R. 229, dated 15-7-1999 (w.e.f. 24-7-1999).]

Constable

Rs.
825-15-900-EB-20-1200

Driver Grade I

Rs.
1320-30-1560-EB-40-2040

Driver Grade II

Rs.
1200-30-1440-EB-30-1800

Driver Grade III

Rs.
950-20-1150-EB-25-1500 -

Fire Extinguisher

(Gr. I)

Rs.
1320-30-1560-EB-40-2040

Fitter, Hose Repairer

Fitter/Mechanic,

(Gr.II)

Rs. 1200-30-1440-EB-30-1800

Fire Extinguisher

(Gr. III)

Rs.

950-20-1150-EB-25-1500

Painter

Trailer Pump

(Gr. I)

Rs.

1320-30-1560-EB-40-2040

Operator

(Static Unit) (Gr.II)

Rs.

1200-30-1440-EB-30-1900

Tailor

Pump Operator-cum (Gr. III)

Rs.950-20-1150-EB-25-1500

Driver

(Mobile Unit)

Ancillary Staff

Ancillary staff, as specified in Schedule I, shall draw the same scale of pay as is admissible to other enrolled members holding that rank.

[**]

[Omitted by G.S.R. 803(E), dated 31-10-2008.]

78.2

The fixation of pay shall be done in accordance with extent railway Rules as they apply for such fixation in relation to other organized of the railways.

78.3

The superior officers and enrolled members of the Force shall also be eligible ,in accordance with the orders of the Central Government in this behalf to specialpay and allowances as are or may be admissible to a railway servant of correspondingrank or grade and to any concession as may be sanctioned to the holder of anyparticular or technical post in the Force.

78.4

The principal and other members of the Force deployed on instructional duties at the Railway Protection Force Academy and other zonal training institutes shall bepaid a monthly instructions allowance or special pay at the rate as admissible to theircounterparts in the corresponding training institution of the Railway.

79.

Special allowances and perquisites.

- To enable the Force to efficiently its functions of-

(a)

Protection and safeguarding of railway property and to combat crime against it;

(b)

`railway servants' within the meaning of the [Indian Railway Act, 1890]

[Now see the Railways Act, 1989 (

24 of 1989

).]

; and

(c)

an armed force of the Union;The Central Government may also provide for payment of such other specialallowances

and perquisites as it considers appropriate.

80.

Provident fund, gratuity, pension, medical facilities, passes etc...

-

80.1

In matters relating to-

(i)

Provident fund,

(ii)

Gratuity,

(iii)

Pension,

(iv)

Medical facilities,

(v)

Pass and Privilege Ticket Orders.

(vi)

Educational assistance

(vii)

Traveling and transfer allowance, and

(viii)

Other financial matters,

Superior officers and enrolled members of the Force shall be governed by the provisions of these rules or where no specific provisions has been made in these rules then by the extant Railway Rules in the same manner as officers holding the corresponding ranks or grades in the railway are governed by the Railway Rules;

Provided that the extant Railway Rules relating to the aforesaid matters may be modified by the Central Government from time to time in their application to the members of the Force.

80.2

A Provident fund Account book shall be governed to each members of the Force in which deductions made by the Pay drawing Authority shall be periodically entered and authenticated.

81.

Deduction from pay and allowances.

-

81.1

Without prejudice to any other action that may be taken any delinquent member, it shall be lawful for the superior officers under whom an enrolled member may be serving to order deduction of the following from his pay and allowances after giving such member an opportunity to show cause-

(a)

any sum required by way of compensation as may be fixed for any loss, damage or destruction caused by him to-

(i)

the railways or to any of its buildings or property; or

(ii)

any fund of the Force;

(b)

any sum required to make good the pay and allowances, of any person subject to this Act, which he has lawfully taken on any authority letter and unlawfully retained or unlawfully refused to pay the same;

(c)

pay and allowances for every day of absence either on discretion or without leave and for every day of imprisonment awarded by a criminal court or a Security Court;

(d)

any sum required to be as fine imposed by a criminal court or Security Court or by an authorized officer in an Orderly

Room.

81.2

The amount so realized under clause (a)(ii) of sub-rule(1) shall be credited to the relevant fund of the Force. 81.3 Limit of deductions:

81.

3.

Limit of deductions.-The total deduction from the pay and allowances of a member made under sub-rule(1) except clause (a) thereof or where he is being dismissed, removed or retired from service, shall not exceed in any one month one-half of his pay and allowances for that month.

81.4

Remission of deductions:-Any authority superior to the one ordering any deduction under this rule shall be competent to remit, for reasons to be recorded in writing, the whole or any part of the said deductions on appeal made to him.

82.

Duration of appointment

82.1

Superior officers and enrolled members of the Force may be appointed either permanently or temporarily for specified periods or in an officiating or on tenure basis or on deputation for a period as may be specified by the appointing authority.

83.

Circumstances under which an enrolled member of the Force may resign.

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83.1

Resignation of any enrolled member may be accepted by the officer empowered to appoint him

83.2

An enrolled member who intends to resign from service shall to the appointing authority a three months notice in writing to that effect and shall not be permitted to withdraw himself from duty before formal acceptance of the resignation:

Provided that the appointing authority may at its discretion permit an enrolled member of the Force to withdraw himself from duty on his crediting to the Government three months pay in lieu of notice

83.3

No member whose resignation has been accepted by the appointing authority shall be permitted to withdraw from duty until he has fully discharged all debts due from him to the Government or to any Railway Protection Force Fund and has surrendered his certificate of appointment, arms, accoutrements, uniform and all other Government property in his possession and has also rendered a complete account of all government money and property for which he is responsible.

84.

Retirement on grounds of unsuitability.

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84.1

Whenever a Security Commissioner or an officer of a higher rank is of the opinion that a member of the Force (being an armed force of the Union) is unfit to be retained in service because of a steep fall in his competence, efficiency, effectiveness or otherwise and where action under Chapter XII is not feasible, he may recommend to the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]
concerned that the member be retired from service:

Provide that where the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]
has formed such opinion in relation to a superior officer of which he is not the appointing authority, he may submit the case to the Director General for obtaining the orders of the appointing authority.

84.2

The said [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

or, as the case may be, the said appointing authority may, on receipt of such recommendations and after giving the member of the Force an opportunity to explain his case, pass such order as he or it may deem fit:

Provided that whenever the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

or the Central Government, as the case may be, is of opinion that it will not be in the interest of the Security of the State to give an opportunity to the member of the Force to explain his case, he or it may pass orders as aforesaid without giving such an opportunity.

85.

Retirement on ground of physical and mental unfitness.

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85.1

While in service, all members of the Force shall remain in good mental and bodily health in accordance with the medical category as may be prescribed in the Directives. The Director-General may also prescribe the periodicity for medical examination of each class and rank of the members of the Force while in service.

85.2

Whenever an appointing authority, on receipt of a report or otherwise, considers that a member of the Force has become unfit to perform his duties as a member of the Force because of his physical or mental conditions, it may order that the member be examined by a Medical Board.

85.3

Where the Medical Board considers the member to be unfit for service, the appointing authority shall communicate to the said member the findings of the Medical Board and call upon him to submit any representation as he may think proper within fifteen days of the date of receipt of such communication.

85.4

The appointing authority, on receipt of the representation, may pass orders as it deems fit:

Provided that the case of a member of the Force who fails in the vision test or otherwise becomes physically incapable of performing other duties or the case of a member of the Force who is completely incapacitated for further service in the Force may be regulated in accordance with the extant Railway Rules.

86.

Retirement on superannuation.

- Superior officers and enrolled members of the Force shall retire from the service on attaining the age of superannuation in accordance with the provision of the extant Railway Rules.

Chapter VII

Distribution And Transfer Of Members Of The Force

87.

Distribution .

- The enrolled members of the Force shall ordinarily be employed throughout service on the zonal railway or the Railway Protection Special Force to which they are distributed on first appointment under these rules and shall have no claim as of right for transfer to another zonal railway or to the Railway Protection Special Force formations and vice versa.

88.

Assistant commandants.

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88.1

Directly recruited Assistant Commandants shall be distributed among the zonal railways and Railway Protection Special Force in such manner as may be considered necessary by the appointing authority in public interest.

88.2

All other Assistant Commandants promoted from the ranks shall continue to retain their lieu on the parent zonal railway or on the Railway Protection Special Force.

89.

Enrolled members.

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89.1

Sub-Inspector:-On successful completion of initial training, direct recruits shall be distributed amongst the zonal railways and Railway Protection Special Force in such manner as may be considered necessary by the appointing authority in public interest.

89.2

Constables:-On successful completion of initial training, direct recruits shall be distributed for enrolment amongst the divisions, production units and Railway Protection Special Force battalions in such manner as may be considered necessary by [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]
concerned in public interest.

Transfers

90.

General.

- Transfer of members of the Force may be ordered from one place to any other place in India in the exigencies of service or for administrative reasons or to avoid local entanglements of such members or for any other consideration.

91.

Inter-zonal transfer.

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91.1

Superior officers of the Force:-The Director-General on the recommendations of the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]
concerned or otherwise may transfer any superior officer from one zonal railway to another zonal railway or from Railway Protection Special Force to a zonal railway or vice versa in the interest of administration of the Force.

91.2

Enrolled members of the Force:-All inter-zonal railway transfers of the enrolled members of the Force shall be ordered by the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]
concerned after obtaining the concurrence of the Director-General.

92.

Periodical transfers.

-

92.1

Transfer of Superior officers within the zonal railway :-Transfer of superior officers within the zonal railway may be made by the concerned [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]
with the concurrence of the Director-General:

Providing that nothing contained in this sub-rule shall restrict the power of the Director-General to order transfer of any superior officer suo motu within a zonal railway.

92.2

Transfer of enrolled members of the Force:-Transfer of enrolled members of the Force may be ordered by the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]
concerned and other officers specified in Schedule II.

93.

General principles for effecting periodical transfers.

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93.1

In the interest of continuity of command, discipline and accountability, the Director-General may prescribe a tenure of posting for various ranks in various places.

93.2

Ordinarily, no member of the Force shall be transferred from one station to another unless he has been at that station for

the normal prescribed tenure for he shall be allowed to remain at that station for more than one year thereafter without the specific approval of the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

concerned in respect of enrolled members of the Force and of the Director-General in respect of superior officers:

Provided that the members of the Force posted to bad climate areas or out of the way places may be transferred after they have in such area or place for about two years.

93.3

No one shall ordinarily be so posted that his town falls within 100 Kms. of a railhead of his posting nor to a place where he holds or acquires immovable property nor he be posted back in the same capacity unless it is considered essential in public interest.

93.4

Members of the Force who have been transferred out of a particular place or division or complaint of corruption or misconduct shall not be posted back to that post or place division even if they so request.

93.5

Members of the Force who have got adverse entries or enjoy poor reputations shall not be posted to sensitive posts till they get good entries for three consecutive years.

93.6

Any member of the Force temporarily transferred to any place shall not be allowed to continue at that place for more than four months without the specific approval of the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

concerned and such member shall not again be temporarily posted to the same place without an interval of two years

93.7

Where a member of the Force before completion of his normal tenure at a particular place, wishes to get himself transferred to another place so that his children may have continuity of education at the new station for next few years, such member may be allowed transfer, before completion of normal tenure, after taking into account the interest of administration.

93.8

Request from members of the Force for mutual transfers within the division or from one division to the other shall be decided on merits keeping in view the general policy regarding transfer and postings and as far as possible, such requests shall be considered only during the time to periodical transfers.

93.9

Any members of the Force facing departmental proceedings and who is due for periodical transfer on completion of normal tenure may not ordinarily be transferred unless such transfer is in public interest or where such transfer is in the interest of expeditious finalisation of disciplinary proceedings.

93.10

If a member of the Force under of transfer applies for leave, it shall not be granted to him without prior permission of the transferring authority:

Provided that where a transferred member is hospitalized as an indoor patient or in such other serious cases, he may be allowed leave under intimation to the transferring authority:

Provided further that the provisions contained in sub-rule (2) and (3) shall not apply to members of the Force, who are going to their last posting before superannuation.

Chapter VIII

Internal Management And Conditions Of Service Seniority

94.

Seniority in initial grade.

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94.1

Inter seniority among the incumbents of posts in a rank be determined on the basis of continuous regular appointment in that after completion of initial and practical training, if any, and the grant of pay higher than initial pay shall not confer any special right to seniority.

94.2

When in exigencies of service, the training period of enrolled members of the Force who are direct recruits is curtailed or extended, the date of joining the post(hereinafter in this Chapter referred to as working post) in case of such direct recruits shall be the date when they would normally have come to the working post after completion of prescribed period of training.

95.

Seniority of superior officers.

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95.1

In a particular rank-

(i)

a superior officer appointed in a substantive capacity shall be senior to an officer appointed in an officiating capacity;

(ii)

Seniority of superior officers appointed to any post in a substantive capacity shall be determined in accordance with the date of appointment to that post in a substantive capacity and where two or more officers are appointed to a post in a substantive capacity on the same date, their seniority shall be determined in accordance with their order of selection for appointment to that post.

(iii)

Seniority of officers appointed to any post in an officiating capacity shall be determined in accordance with the order of selection for appointment to that post;

(iv)

Officers appointed on promotion as Assistant Commandant against the quota of vacancies reserved for them shall be placed below or above a particular batch or direct recruits accordingly as their dates for increments in time scale are earlier or later than the earliest date on which any one of the direct recruits in a particular batch joined service.

95.2

Subject to the provisions of sub-rule (1) inter seniority amongst officers the same rank shall be as follows, namely-

(i)

seniority of officers promoted on the same day shall be determined in the order in which they are selected for promotion to that rank;

(ii)

Seniority of direct recruits shall be the same as determined by the Union Public Service Commission;

(iii)

Seniority of re-employed officers in a particular rank shall be determined from the date of re-employment in that rank;

(iv)

Within a particular rank, an officer on deputation shall maintain his seniority as between himself and other officers of his service on deputation;

(v)

Seniority between an officer on deputation and other officer shall be determined from the date of regular continuous appointment in that rank; and

(vi)

Seniority of officers recruited under sub-rule 1 (d) of rule 54 shall be governed by their date of appointment to the grade.

96.

Seniority of directly recruited candidates.

- The seniority of candidates directly recruited shall be determined as under:

(i)

Candidates who are sent for initial training school shall rank in seniority in the relevant grade, in the order of merit obtained at the examination held at the end of training period being posted and those who pass examination in the second attempts shall rank junior to those who passed in the first attempt but shall rank senior to those who pass in the next or subsequent batches and where candidates secure equal marks, the seniority shall be determined by the date of birth, the elder candidate being senior;

(ii)

In case of candidates who are not required to undergo any training, the seniority shall be determined on the basis of their

order of selection;

(iii)

When two or more candidates are of equal merit at one and the same examination or selection, their relative seniority shall be determined by the date of birth - the elder candidate being the senior;

(iv)

When a candidate whose seniority has fixed under the above rules cannot join within three months from the receipt of order of appointment, his seniority as the candidates selected at the same examination or selection shall be reckoned from the date to be determined by the appointing authority;

(v)

Candidates selected for appointment at earlier an selection shall be senior to those selected later irrespective of the date of joining;

(vi)

Relative seniority of employees in an intermediate rank belonging to different seniority units appearing for a selection in higher rank shall be determined by the total length of continuous service in the same or equivalent rank irrespective of the date of confirmation of an employee. Only non-fortuitous service is to be taken into account for the purpose;

(vii)

When a quota has been prescribed for direct recruitment of special categories of persons or class of persons, such seniority shall continue to be assigned under normal rules and such quota shall have no relevance. Short fall in quota for any category of one year but in such cases benefit of seniority shall not be given retrospectively.

97.

Seniority of departmental promotees.

- The seniority of promotees shall be determined according to the position assigned to them in the select panel by the Departmental Promotion Committee. Those who fail to qualify in the initial or pre-promotion training course and qualify in the second attempt shall be placed below all those who had qualified in the first attempt in order of their names on the select panel.

98.

Inter se seniority of direct recruits and promotees.

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98.1

Inter se seniority in posts of enrolled members of the Force filled up partly by direct recruitment and partly promotion shall be so determined as not to disturb the inter se seniority of direct recruits and promotees. Criterion for determination of such seniority shall be the date of promotion in the case of promotees and the date of joining the working post as referred to in sub-rule (2) of rule 94 in the case of direct recruits. When the date of entry into a grade of a promoted enrolled member of the Force and a direct recruit are the same, they shall be given alternative positions starting with promotees eg. 1 promotee II - Direct recruits, III - promotees, IV - Direct recruits and so on. This rule shall apply to recruitments both in initial and intermediate grades.

98.2

In combined seniority list of candidate qualifying in the second attempt, the promotees shall maintain their seniority according to the panel position and direct recruits according to merit position and they shall be placed in the seniority list alternative as provided in sub-rule(1).

98.3

Inter se seniority of enrolled members especially promoted without their appearing for the normal selection and without undergoing prescribed initial or pre-promotion training for such ranks shall be determined in order of seniority in their previous rank. While fixing their seniority vis-à-vis directly recruited enrolled members and promotees, such especially promoted enrolled members and promotees such especially promoted enrolled members shall be placed below all of them including those who passed initial pre-promotion training at the second attempt.

99.

Determination of seniority on inter-zonal transfer.

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99.1

When transfer ordered in interest of administration:-Seniority of an enrolled member of the Force on transfer from one

zone to another or to the Railway Protection Special Force and vice versa made in the interest of administration shall be regulated by the date of appointment to the grade or rank as the case may be, where the date of appointment of the transferred member of the Force is the same as that of another member of the Force already serving on that zonal railway Protection Special Force, the relative of the date of confirmation or officiating service of the transferred member of the Force.

99.2

Transfer on own request or on mutual exchange:-Seniority of an enrolled member of the Force transferred on his own request or on mutual exchange from one zonal railway to another or to the Railway Protection Special Force and vice-versa shall be fixed below that of all existing confirmed and officiating enrolled member of the Force in the relevant rank of that railway or Railway Protection Special Force irrespective of the date of confirmation or length of officiating service of the transferred member of the Force.

100.

Effect of reduction in rank, grade, or pay on seniority.

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100.1

Reduction in a scale of pay, as distinct from reduction from higher rank or grade, shall not affect the position of a member of the Force on the seniority list.

100.2

in the case of reduction to a lower rank or to a lower scale of pay:-

(i)

if a member of the Force is punished with reduction to a lower scale of pay specified period, his seniority and pay shall be restored as soon as the period of punishment is over;

(ii)

if the member of the Force is punished with reduction to a lower rank or grade for a specific period, he shall be re-promoted automatically to the rank from which he was reduced, The seniority of such member of the Force shall be fixed at a position in the higher rank or grade at which it would have been but for his reduction;

(iii)

if the member of the Force has been punished by way of reduction from a higher rank or grade to a lower or grade, his seniority in the lower rank or grade shall be fixed with reference to which he would have been entitle debut for his promotion to the higher rank or grade from which he was reduced.

101.

Miscellaneous provision governing seniority.

- All other cases of seniority, not specially covered in the above provisions, shall be decided-

(a)

in the case of superior officer by the Central Government;

(b)

in the case of enrolled members of the Force by the appointing authority, in accordance with the Directives or on the advice of the Director-General.

102.

Representation against assignment of seniority.

- A member of the Force may represent to the appointing authority about his seniority position within a period of one year from the date of publication of the seniority list.

Leave

103.

Quantum of leave.

- Superior officer and enrolled members of the Force shall be governed by the leave rules applicable to railway servants of corresponding rank. Those who are on deputation to the Force shall be governed by the leave rules applicable to them as if they were not on deputation to the Force or by the terms of their appointment.

104.

General condition governing grant of leave.

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104.1

The powers of superior officers and subordinate officers of the Force in respect of grant of leave shall be as specified in Schedule II.

104.2

Leave of every description may be sanctioned, refused or revoked subject to exigencies of public service.

104.3

No member of the Force shall leave his station even on holidays without the specific permission of authority empowered to grant him casual leave.

104.4

A member of the Force before proceeding on leave shall record his leave address in office at which orders of recall or other communication will reach him with certainty.

104.5

Leave certificate:-A leave certificate in the prescribed form shall be issued to every enrolled member of the Force proceeding on leave, other than casual leave and such certificate shall be presented by the member personally on his rejoining from leave to the officer-in-charge of the place at which he rejoins, who shall endorse on the certificate the hour and date of rejoining and forward the same to the office where his leave account is maintained.

104.6

Recall from leave:

The member of the Force on leave may be, -

(i)

recalled at any time by the authority empowered to sanction their leave:

(ii)

directed to report for duty either headquarters or proceed direct to the place at which their services required:

Provided that on being recalled, the members of the Force shall be entitled to duty passes and travelling allowance as on tour by the shortest route.

104.7

Return to duty from leave:-

No member of the Force who has been granted leave on medical certificate can resume duty without first producing medical certificate of fitness. The authority competent to sanction leave may require a similar certificate in the case any member of the Force who has been granted leave for reasons of his health even though such leave was not actually granted on medical grounds.

105.

Restriction on grant of leave.

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105.1

Whenever mobilization of the Force under rule 241 is likely or is in force or a member of the Force is detailed or is likely to be detailed for training of any type, leave of any kind including casual leave shall not ordinarily be sanctioned except on emergent and compassionate grounds by an officer not below the rank of the Divisional Security Commissioner.

105.2

Leave shall not be granted to a member of the Force whose conduct is under inquiry except when it is required for hospitalization purposes or in extreme emergent cases.

105.3

Similarly, leave shall not be granted to a member of the Force who is under orders of transfer unless he is admitted in a hospital as an indoor patient.

Provide that if such member has been taken on a sick list by a railway doctor as an outdoor patient in situation not stipulated in rule 272, such member shall report the matter forthwith to his controlling authority and shall not leave his head quarters without obtaining prior sanction of that authority.

106.

Performance appraisal .

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106.1

General:

The performance appraisal system shall be as follows, namely:-

(i)

a continuous performance appraisal which will be correctional and developmental in its impact, and

(ii)

the annual performance appraisal which will be for organizational purposes including those connected with training, confirmation, placement and promotion.

106.2

The said appraisal system shall apply to all ranks.

106.3

For the purpose of continuous performance appraisal, every subordinate and superior officer shall maintain a running record (hereafter in this Chapter referred to as Critical Incidents Record) for each of his subordinates especially entrusted to him by the controlling authority for the purpose. He will record therein from month to month specific instances of good and bad work, coming to his notice subordinates besides making a quarterly work their overall performance.

106.4

Every subordinate and superior officer referred to in sub-rule(3) shall hold, as far as may be possible, a quarterly counselling session for the members of the Force for whom he is maintaining Critical Incidents Record. A Record of such counselling shall also be maintained. The counselling be aimed at encouragement of a positive behaviour of the member concerned or for correcting his behaviour in the light of the quarterly rating. All officers of the Force during their periodical inspections may also record their assessment in the Critical incidents Record and, if necessary, suitably counsel the member concerned.

107.

Annual performance appraisal .

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107.1

Annual performance appraisal by any reporting superior officer for writing the confidential report n mentioned in rule 108 may not be carried out without having conducted atleast one Inspection of the work of the subordinate unless the subordinate is one with whom such superior officer is interacting frequently or has been maintaining for him the Critical Incidents Record mentioned in sub-rule (3) of Rule 106 or has actually scrutinized such record.

107.2

For the purposes of sub-rule (1), the proximity between the appraise and his reporting superior officer shall be maintained at all levels. Such an appraisal shall be made by superior officer only so as to ensure that the appraisal is professional,objective and presents the truest possible picture of the appraise with regard to all facets of his works.

108.

Confidential reports .

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108.1

Confidential reports in respect of Constables and under officers:

Confidential reports in respect of constables and under officers shall be recorded in individual book form to be known as " Character and Service Rule" the format of which shall be prescribed by the Director General. The said report shall be recorded during inspection or visit to the Post where the member of the Force is or was posted and after taking stock of the work claimed to have been done by concerned member of the Force, if he is present during such inspection or visit, and the views of his controlling officer or as may have been recorded in the Critical incidents Record.

108.2

Confidential reports of subordinate officers:

The formats for writing of confidential reports in respect of subordinate officers shall be prescribed by the Director-General having regard to the specific nature of duties for each job and based on a detailed job evaluation. The format should reflect the essential requirements of professional competence, performance, personality and managerial attributes.

108.3

Confidential Reports of superior officers:

108.3.1

The formats for writing annual confidential reports in respect of superior officers shall be as prescribed for officers of corresponding ranks or the Indian Police Service under the All India Service (Confidential Rol) Rules, 1970, whether the superior officer has been holding the post substantively or in an officiating capacity.

108.3.2

When any superior officer is transferred, similar report for a broken period, if any, shall also be recorded by his superior officer.

108.3.3

When the reporting superior officer vacates his post on account of transfer leave, etc. and is not likely to return to the post during the year or if he vacates his post on account of retirement, he shall before making over charge of his post to his successor, record his assessment of performance of all superior officers who have served under him for a period of three months or more.

108.3.4

The number of copies of confidential reports to be prepared in respect of each category of superior officers and the authorities to whom it should be sent for record shall as much as may be specified through the Directives.

108.4

The overall rating shall be given as outstanding, very good, good, average or below average.

108.5

Specific comments shall be made about the integrity of the officer reported upon so far as they relate to performance of his official duties or its consequential effect, if any on the organizational strength and weakness of the Force under his command.

108.6

The accepting authority shall communicate to the officer reported upon within thirty days of acceptance of a report of any adverse remarks recorded of in his confidential report and certify so in that report.

108.7

The officer reported upon shall submit his representation within thirty days of receipt of such communication to the said authority who may take into account the circumstances of the case and if it deems fit interview the member and expunge or drop the remarks, if called for. The decision of the accepting authority shall be final such cases and shall also be communicated to the officer reported upon.

Redressal of Grievances

109.

Redressal of individual grievances.

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109.1

For redressal of individual grievances concerning-non-payment of salary, T.A.,D.A., issue of kit passes, grant of leave and advances, allotment of family quarters,transfers, posting, etc. of members of the Force, the Superior officers shall avail themselves of every opportunity during their tours and inspections to hold meetings provided under sub-rule(2) and listen to such grievances and take appropriate remedial measures within their powers.

109.2

The officer-in-charge of the Post or Company shall also hold such meetings atleast once a month. During the meetings, he shall disseminate to the enrolled members of the Force information on all important matters affecting them and enable them to ventilate their legitimate grievances, difficulties and their reaction to current affairs to him in the presence of all ranks. He shall refer to higher authorities all such cases where he cannot redress the grievances at his level and monitor the progress under intimation to the enrolled member concerned.

109.3

The officer-in-charge of the Post or Company shall maintain a "Meeting Minutes Book" in which the proceedings of each meeting held by all level of officers shall be recorded together with final action taken on each point.

109.4

The Superior officers shall inspect this book during their inspections of the Posts and their inspection notes shall include

comments on this aspect also.

110.

Representation against wrongs.

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110.1

Any member of the Force who deems himself wronged by any superior officer or other of the force may represent within thirty days of the Act complained against to the officer under whose command or orders he is serving:

Provided that each complaint shall be accompanied by a certificate asunder from the aggrieved member of the Force:

I undertake that any false statement or false accusation made by me in the complaint shall render me liable for disciplinary action under Chapters XI and XII of the Railway Protection Force, 1987".

110.2

When the officer complained against is the Officer to whom any representation should, under sub-rule (1) preferred, the aggrieved member may represent to such officer's next superior officer .

110.3

Every officer receiving any such representation make or cause to made as complete an investigation into it as may be possible for giving full relief to the complaint or where necessary refer the representations to the higher authority for redressal:

Provided that if on enquiry the matter alleged against any such officer turns out to be false, vexatious or malicious, deterrent disciplinary action shall betaken against the complainant.

110.4

Except as otherwise provided in sub-rule (1), no action shall be taken on any complaint - anonymous or pseudonymous - received against any superior officer or other officer of the Force in respect of any matter covered by that sub-rule.

[111. Redressal of collective grievances through departmental channel. -

The superior officers of the Force shall personally assess the collective grievances of the members of the Force posted under them and submit their recommendations to the [Principal Chief Security Commissioner]

[Substituted by Notification No. G.S.R. 312(E), dated 13-5-2004 (w.e.f. 3.12.1987)]

concerned or the Director-General as the case may be. These officers in turn, shall keep the General Manager of the Railway or the Central Government fully posted about the nature of major grievances and highlight the need for issuing suitable orders for their redressal.]

Rule 111 Substituted by Notification No. G.S.R. 312(E), dated 13-5-2004 (w.e.f. 3.12.1987)

111. [Redressal of collective grievances through departmental channel.

[Substituted by G.S.R. 312(E), dated 13-5-2004 (w.e.f. 13-5-2004).]

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111.1The machinery for redressal of collective grievances shall be departmental channel as well as through the Railway Protection Force Staff Council constituted under sub-rule(3).

111.2The superior officers of the Force shall personally assess the collective grievances of the members of the Force posted under them and submit their recommendations to the[Principal Chief Security Commissioner]concerned or the Director-General as the case may be. These officers in turn, shall keep the General Manager of the Railway or the Central Government fully posted about the nature of major grievances and highlight the need for issuing suitable orders for their redressal.]

111.3For redressal of collective grievances and major problems at the level of the Central Government, the Director-General shall constitute a Staff Council, to be known as the Railway Protection Force Staff Council. It shall consist of the following members to be nominated by the Director-General:-

{|

Chief Security Commissioner-

Member Secretary

(Administration)'

ex officio Chief Security Commissioner

Member

(Railway Security)' ex officio Chief Security Commissioner

Member

Railway Protection Special Force) ` ex officio Assistant to Director-General, ex officio -
Member
Chief Security Commissioner
2(Members)
Security Commissioner
2(Members)
Assistant Security Commissioner
2(Members)
Inspector
2(Members)
Sub-Inspector or Assistant Sub-Inspector
2(Members)
Head Constable, Naik, Constable, ancillary staff-
9(Members)

111.4The

Director-General, unless he himself is acting as Chairman at a meeting under sub-rule (1) of rule 112, shall act as a link between the Force and the Central Government during the meeting of the Staff Council stipulated under sub-rule (2) of rule 112.

111.5No

on who has received any punishment in the last three years or is facing any disciplinary inquiry or has put in three years service in that rank as on 1st January of the year of nomination shall be nominated by the Director-General to the Staff Council. Nominations shall be valid for two years and shall be so made as to give a fair representation to all the zonal railways. A member once nominated shall not be eligible for renomination without an interval of three years.

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[***]

[Rule 112 omitted by G.S.R. 312(E), dated 13-5-2004 (w.e.f. 13-5-2004).]

Rule 112 omitted by G.S.R. 312(E), dated 13-5-2004 (w.e.f. 13-5-2004)

112. Meetings of the Staff Council.

-

112.1The Director-General may, on the request of five members of the Council (Including any two [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

s) or of his own, convene meetings of the Staff Council to share discuss the problems affecting the efficiency, morale and welfare of the Force.

112.2The Central Government (Minister-in-charge of Railways) shall hold a meeting with the staff Council at least once in six months to discuss important matters pertaining to morale, welfare and other establishment matters affecting the efficiency of the Force. Ordinarily, only matters which have already been raised in the manner mentioned in sub-rule (2) of rule 111 or discussed under sub-rule (1) but have not been resolved satisfactorily shall be discussed.

112.3Raising of cases of individuals of any attempt to drive a wedge between different ranks of the Force on the part of any member be construed as a misconduct for purposes of action under Chapters XI and XII.

112.4All members of the Staff Council while attending the business of the Council shall be treated as on duty.

113.

Redressal of grievances through outside influence.

-

113.1

Members of the Force are forbidden to approach officials of other departments, members of the legislatures or private persons for support in pressing individual claims or obtaining redressal of their grievances. All members of the Force are similarly forbidden to approach members of legislatures with a view to having their individual grievances made the subject of interpellation in the legislatures.

114.

Redressal of grievances through litigation.

- Any member of the Force seeking redressal of his individual grievances arising out of his employment or conditions of service shall first avail himself of all remedies available to him under these rules as to redressal of grievances before taking the issue to a court of justice. No permission from the department shall however, be necessary if a member wants to agitate the matter before a court of justice.

Restrictions on Fundamental Rights

115.

Grant of sanction under section 15A.

- The authority for purposes of granting sanction under sub-rule (1) of section 15A shall be the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]
for his zonal railway and the Director-General for the entire Force.

116.

Political and non-military activities.

-

116.1

No person subject to the Act and these rules shall attend, address, or take part in any meeting or demonstration held for a political party or for any political purposes or join or subscribe in the aid of any political association or movement.

116.2

No person subject to the Act and these rules shall issue an address to electors or in any other manner publicly announce himself to be publicly announced as a candidate or as a prospective candidate for election to parliament, the Legislature of a State or a local authority, or any other public body or act as a member of a candidate's election committee or in any way actively promote or prosecute the interests of any such candidate.

117.

Other conditions of service.

- In all other matters not prescribed in these rules all members of the Force, irrespective of their ranks shall be governed by the provisions contained in the extant Railway Rules as applicable to railway servants of corresponding grades: Provided that the Central Government may by notification in the Official Gazette modify the extant Railway Rules in their application to members of the Force on the above matters, where that Government is of the opinion that it is necessary so to do in the interest of the Force, being an armed force of the Union.

Chapter IX

Encampment And Accommodation

118.

residential accommodation.

-

118.1

Members of the Force shall be classified as "essential" for the purpose of allotment of residential accommodation as they are required to live as near to the place of their duty as possible for the proper discharge of their duty.

118.2

Enrolled members of the Force with less than three years service or who are unmarried shall normally be allotted barrack accommodation which shall be rent free.

118.3

Enrolled members of the Force, who have either been accommodated in barracks or given family accommodation or who have been offered any such accommodation but wish to stay outside under their private arrangements, shall obtain written permission from their superior officers.

118.4

Enrolled members of the Force accommodated in barracks but keeping their families away from them in other towns shall be entitled to the payment of house rent allowance as may be admissible to them under the extant Railway Rules.

119.

Location of barrack and other accommodation.

-

119.1

The location or barrack or residential accommodation for the enrolled members of the Force shall, preferably, be provided in separate cluster(s) away from those of other railway employees.

119.2

The barracks shall be of approved pattern with built-in space for recreation purposes besides having adequate open space for use as parade and play ground.

119.3

The enrolled members of the Force living in barracks shall be provided with steel cots, mattresses, kit boxes and lockers. Wherever twenty or more persons are accommodated in a barrack, cooking utensils for the mess and one cook and one kahar for every twenty members shall be provided.

119.4

The scale of ancillary staff at Company Headquarters and training institutions shall be such as may be specified by Directives.

119.5

Adequate built-in space for office, quarter-records, armour, malkhana, lockups, etc. on the standardized patterns shall also be provided.

120.

Maintenance and vacation of residential accommodation.

-

120.1

If any residential accommodation is allotted to a member of the Force, he shall reside therein subject to such conditions and terms as may be specified by the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

concerned and shall be responsible for maintaining it in a good state.

120.2

It shall be a condition of his service that he shall vacate the accommodation on his ceasing to be a member of the Force or on his transfer from that place or whenever an officer not below the rank of security Commissioner, for reasons to be recorded in writing, finds it necessary and expedient for him to do so.

120.3

If any enrolled member of the Force who is required under sub-rule (2) vacate any premises fails to do so, such superior officer may after giving him an opportunity of being heard, direct any officer subordinate to him. With such assistance as may be necessary, to enter upon and open the premises and remove therefrom any person found therein and to take possession of the premises and deliver the same to any person specified in the order.

Chapter X

UNIFORM AND EQUIPMENT 121. General instructions.

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121.

1. The Director-General may, by order, specify from time to time dress and pattern of various types of dresses for members of the Force.

121.2

The badges of rank of all members of the Force holding their appointments on a regular basis shall be as specified in Scheme VIII:

Provided that the appointing authority while promoting a member of the Force under rule 74 may, looking to the nature and duration of the appointment, allow him to wear the uniform and badges of the rank of that higher appointment.

121.3

All officers are forbidden to introduce or sanction for experimental or other purposes any unauthorized deviation from the specified pattern of dress, clothing, equipment and badges.

122.

Uniform and Plain cloths.

-

122.1

All members of the Force shall be in possession of uniform and shall invariably wear it as hereinafter provided except

when specially deployed on plain clotheswork.

122.2

Mufti shall be worn when off duty.

122.3

No superior officer or enrolled member of the Force shall appear at any time dressed partly in uniform and partly in plain clothes while on duty.

123.

Uniform when to be worn.

-

123.1

All superior officers and enrolled members of the Force shall wear uniform when attending parades, orderly room, courts of justice, official funerals or while inspecting guards or when an inspecting officer is present in office and on all other occasions when required to do so. Official uniform or any of its shall not be worn when off duty:

Provided that there may not be any objections its use in departmental cultural shows.

123.2

No member of the Force shall turn up for duty unless properly dressed nor shall he smoke nor, chew 'paan' in the open when on duty in uniform.

123.3

All superior officers and enrolled members of the Force shall wear with all types of uniform engraved name tabs above the right breast pocket in a manner that the lower edge of the tab shall be just above the top seam of the pocket flap. Name tab shall be of the size of 8.23x0.16 cm. Of formica or similar material suitable for engraving. Letters shall be squat type up to fourteen in number.

123.4

No unauthorized ornaments or emblem, sign or mark shall be worn with the uniform.

123.5

Watch chains, trinkets, fountain pens, etc. shall not be worn with uniform so as to be visible. The wearing of signet ring is, however, permitted.

123.6

Sun-glasses shall not be worn with uniform, except under medical advice, on the following occasions:

(i)

on ceremonial parades or while on VIP duty, and

(ii)

when on quarter guard duty or inspecting a guard or attending a parade.

124.

Growth and dressing of the hair.

-

124.1

Non-sikh personnel.-The hair or the head shall be kept short. The hair and underlip shall be shaved daily unless permission to grow the same is taken in writing for a specified period. Whiskers and moustaches, if worn, shall be of moderate length.

124.2

Sikh-personnel.

Sikh personnel shall dress up their hair and beard properly. "Thathas" shall not be used over beard when in uniform.

124.3

In the case of women serving in the Force, hair shall be neatly kept and made up, if used shall be inconspicuous. Highly coloured nail varnish shall not be used.

125.

Scale of uniform.

-

125.1

All enrolled members of the Force, including trainees, shall be furnished free of charge a set of uniform (i.e. clothing and

other necessary articles) of such description and in such quantity and composition as may be specified by the Director-General from time to time.

125.2

The enrolled members of the Force, employed in the Crime Wing and the Special Wing, including plain clothes staff in divisions, shall be granted an out-fit allowance at the rates sanctioned by the Central Government from time to time.

125.3

In the case of enrolled members of the Force posted in the wings mentioned in sub-rule (2) the uniform shall not be withdrawn and they shall be entitled to the aforesaid out-fit allowance in addition, for the duration of the period they work in such wings.

125.4

Superior officers of the Force shall provide themselves with all articles of uniform and accoutrements of the specified pattern for which they shall be paid out-fit allowance ascribed by the Central Government from time to time.

125.5

All members of the Force serving at locations at an altitude of 1000 meters above the sea level or more shall be entitled to an extra issue of woolen garments.

125.6

The particular stations at which such extra clothing shall be admissible will be modified by the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

concerned in zonal railways and by the Deputy Inspector General, Railway Protection Special Force in the case of members serving in Railway Protection Special Force battalions, through specific orders and such extra clothing shall be replaced on expiry of its period of serviceability as specified by the Director-General.

125.7

An enrolled member of the Force on ceasing to be posted at a station for which extra issue of clothing is authorized, shall deposit the same in the stores of the Railway Protection Force or the Railway Protection Special Force.

126.

Replacement of uniform.

-

126.1

The life of each of uniform shall be specified by the Director-General through the Directives.

126.2

Periodical inspections of kit issued to each enrolled member of the Force shall be held by the Divisional Security Commissioner or the Assistant Security Commissioners and articles which are no longer fit for use may be condemned and sent to stores for replacement.

126.3

If life of any article has not expired, proportionate cost (listed) shall be deducted from the enrolled member concerned, provided that no deduction may be made, if the article has been rendered unserviceable owing to fair wear and tear or has been lost through no fault of the member concerned, and the amount realized shall be credited to Government.

127.

Arms and accoutrements.

-

127.1

The members of the Force to whom arms and accoutrements are issued or given or who are required to keep them under their charge shall personally be responsible for their safe custody and up-keep while in their charge and possession.

127.2

The Director-General may issue orders relating to the procedure for safe custody, maintenance, storage, inspection of arms, etc.

127.3

Enrolled members of the Force shall not be permitted to take arms while going on leave. Accoutrements shall be deposited while proceeding on leave, other than casual leave, for more than thirty days.

128.

Disposal of uniform due to transfer.

- An enrolled members of the Force when transferred shall take with them their uniform except the articulated distinguishing particular divisions of branches or the battalions of the Railway Protection Special Force as the case may be. The latter shall be deposited in the stores of the divisions or battalion concerned and re-issued to other members for the unspent period of serviceability.

129.

Disposal of uniform due to dismissal, discharge, etc..

-

129.1

All articles of clothing and equipment issued to enrolled member of the Force shall be withdrawn from him when-

(a)

he is placed under suspension;

(b)

he is served with order of discharge;

(c)

he is removed or dismissed from service; and

(d)

his resignation is accepted.

129.2

Articles or uniform withdrawn from an enrolled member of the Force placed under suspension shall be kept in safe custody by the Company Commander or Post Commander concerned for a period of four months. If within this period of four months the member is reinstated in service, his uniform shall be restored to him.

129.3

If the enrolled member continues under suspension beyond a period of four months, the uniform withdrawn from him shall be transferred to the stores of the division or branch or battalion concerned and shall be restored to him at the time of his reinstatement in service.

130.

Resuming or uniform articulated on ceasing to be enrolled member of the Force.

-

130.1

When an enrolled member of the Force ceases to belong to the Force, his kit shall be examined and serviceable articles brought on the resumed stock and subsequently re-issued. When any such resumed article is re-issued, its authorized life period shall include the period for which article has remained issued earlier:

Provided that the kit of a person, who was suffering from contagious diseases such as T.B. etc. shall be destroyed by burning in the presence of a superior officer after obtaining the orders of the Divisional Security Commissioner or the Commanding officer in each case:

Provided further that items of uniform shall not be withdrawn in the case of death of enrolled member while in service.

131.

Retention of articles of uniform on retirement.

- An enrolled member of the Force on his retirement or on superannuation shall be allowed to remain the uniform items to be worn only on ceremonial occasions or at the time of formally calling upon superior officers of Armed Forces and Central or State Police organizations. The facility of wearing the uniform on the above mentioned occasions may be withdrawn at any time in the public interest under the orders or the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)] concerned.

Chapter XI

Discipline And Conduct

132.

Rules governing discipline.

-

132.1

Save as otherwise provided in these, rules, the Railway Servants(Discipline and Appeal) Rules, 1968 as amended from time to time shall, so far as may be , apply tosuperior officers subject to the modifications that-

(a)

in sub-rule (1) of rule 3 of the said rules, clause (b) shall be omitted;

(b)

reference to "General Manager", wherever they occur in the said rules, shallbe substituted by reference to "Director-General, Railway Protection Force."

132.2

The enrolled members of the Force shall, in such matters, be governed by therules in this Chapter and Chapter XII:

Provided that a recruit trainee, unless he has been formally enrolled as amember of the Force, shall not be governed by these rules.

133.

Suspension.

- The enrolled members of the Force who may be placed undersuspension and the authorities by whom they may be do placed, shall be as specifiedin schedule III:

Provided that in exceptional circumstances, an Assistant Security Commissioner may place a Sub-Inspector under suspension and an Inspector mayplace any member of and below the rank of under office under suspension:

Provided further tat where any action is taken under the forgoing proviso, theauthority suspending an enrolled member of the Force shall forthwith report to theauthority competent to place such enrolled member under suspension, thecircumstances under which the order was made and obtain his approval and whereapproval is not granted, the suspension order shall become void and in-operative abinitio

Explanation - For the purpose of this rule, where an enrolled member of the Force isofficiating in a higher post, he shall be placed under suspension only by the authoritycompetent to place an enrolled member of the Force holding such officiating rankunder suspension.

134.

Any superior officer or an enrolled member of the Force may be placed under suspension:

(a)

where a disciplinary proceeding against him is contemplated or is pending; or

(b)

where a preliminary inquiry into allegation made has revealed a prima faciecase justifying criminal or departmental proceedings which are likely to leadto his conviction or dismissal, removal or compulsory retirement from service;or

(c)

where a case against him in respect of any criminal offence is underinvestigation inquiry or trial; or

(d)

where his continuance in office will prejudice investigation, any inquiry ortrial, or

(e)

where his continuance in office is likely so seriously subvert discipline in theoffice in which he is working; or

(f)

where his continuance in office appears to be against the wider public interest;or

(g)

where he is suspected to have engaged himself in activities prejudicial to theinterest of the security of the State.

135.

Public interest shall be the guiding factor in deciding whether or not a member of the Force, including when he is on leave , should be placed under suspension.

Provided that before taking a decision on suspension, the competent authoritymay consider whether the purpose would be served if the member is transferredfrom his post or sanctioned leave:

Provided further that charge on which a member has been placed undersuspension shall be furnished to him within a period of thirty days from the date ofsuspension after which the incumbent shall be deemed to have been reinstated if nosuch charge is made available to him;

Provided further that the above provision of thirty days shall not apply to caseswhere a member has been placed under suspension on grounds that he has engagedhimself in activities prejudicial to the interest and security of the State or a

Criminal case involving moral turpitude is pending against him.

136.1

A member of the Force shall be deemed to have been placed under suspension by an order of the competent authority :-

(a)

with effect from the date of his detention, if he is detained in custody, whether on a criminal charge or otherwise, for a period exceeding forty-eight hours; or

(b)

with effect from the date of his conviction, if in the event of a conviction for an offence he is sentenced to a term of imprisonment exceeding forty-eight hours and is not dismissed or removed or compulsorily retired from service under rule 162 consequent to such conviction.

Explanation :- The period of forty-eight hours referred to in clause (b), shall be computed from the commencement of the imprisonment after the conviction.

136.2

Notwithstanding anything contained in sub-rule (1), in cases where a detention or conviction results from an act committed by a member of the Force while acting or purporting to act in the discharge of his official duty, decision in each case shall be taken on merit.

137.

Where a penalty of dismissal, removal or compulsory retirement from service imposed upon a member of the Force under suspension, is set aside in appeal or revision and the case is remitted for further inquiry or action or with any other directions, the order of his suspension shall be deemed to have continued in force on and from the date if the original order of dismissal, removal or compulsory retirement and shall remain in force until further orders.

138.

Where a penalty of dismissal, removal or compulsory retirement from service imposed upon a member of the Force is set aside or declared void in consequence of or by a decision of a court and disciplinary authority on consideration of the circumstances of the case, decides to hold a further inquiry against him on the allegations on which the punishment of dismissal, removal or compulsory punishment was originally imposed, the member of the Force shall be deemed to have been placed under suspension by the competent authority from the date of original order of dismissal, removal or compulsory retirement and shall continue to remain under suspension until further orders.

Provided that no such further inquiry shall be ordered unless it is intended to meet a situation which the court has passed an order purely on technical grounds without going into the merit of the case.

139.1

Notwithstanding anything contained in rule 135 where member of the Force is suspended (whether in connection with any disciplinary proceedings or otherwise) and any other disciplinary proceedings, commenced against him during the continuation of that suspension, the authority competent to place him under suspension may, for reasons to be recorded in writing, direct that the member of the Force shall continue to be under suspension until the termination of all or any of such proceedings.

139.2

An order of suspension made or deemed to have been made may, at any time, be modified or revoked by the authority which made the order or is deemed to have made the order or by any authority to which that authority is subordinate.

140.

The order and the period of suspension shall be recorded in the character roll and service book of the member of the Force concerned.

141.

A member of the Force, under suspension or deemed to have been placed under suspension, shall draw subsistence allowance and other allowances in accordance with extant Railway Rules.

142.

When a member is reinstated after suspension, the period of suspension shall be regularised in accordance with the extant Railway Rules.

143.

Responsibilities of member of the Force during suspension.

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143.1

A member of the Force shall not, by reason of his suspension, cease to be a member of the Force during the period of his suspension. The power vested in him as such member shall be in abeyance but he shall be subject to the same responsibilities and discipline and penalties to which he would have been subject if he were on duty.

143.2

Every member of the Force shall during the period of his suspension stay at his headquarters or at such place which may be specified by the disciplinary authority and shall present himself daily for attendance to the authority nominated by the disciplinary authority:

Provided that the disciplinary authority may, for special reasons, grant permission in writing to the member to leave the station for a specified period and on revocation of such suspension the period of such absence shall be regularised as a kind of leave due in case the period of suspension is treated as period spent on duty.

143.3

An enrolled member of the Force under suspension shall deposit his arms and accoutrements with the Quarter Master or such officer as may be specified by the disciplinary authority.

143.4

A member of the Force under suspension shall not wear his uniform nor shall he be employed on ground duty nor on any such duty which might exercise of his power as a member of the Force nor shall be issued arms and ammunition.

143.5A

member of the Force under suspension shall be allowed reasonable facilities for the preparation of his defence in connection with the charges leveled against him.

144.

Retirement while under suspension.

-

144.1

The right of voluntary retirement for a member of the Force under suspension, shall be subject to the prior approval of the appointing authority.

144.2

A member of the Force, under suspension, may not be retired on attainment of the age of superannuation. The appointing authority shall decide such cases in accordance with the provisions of the extant Railway Rules.

145.

Rules governing conduct.

- The Railway Services (Conduct) Rules, 1966 as amended from time to time shall, so far as may be, apply to all members of the Force as they apply to Railway servants.

146.

Code of behaviour for members of the Force.

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146.1

All members of the Force, irrespective of their ranks, shall submit themselves to the requirement of the following code of behaviour, both on and off duty. It shall be incumbent upon all members of the Force to respect the code of behaviour and of an attitude of complete discipline and maintain to it. Any breach of these provisions on the part of any member of the Force shall constitute misconduct and shall be punishable under the Railway Servants (Discipline and Appeal) Rules, 1968 as applied to superior officers or, as the case may be, under section 9 or section 17.

146.2

Neglect of duty:- No member of the Force without good and sufficient cause shall -

(I)

Neglect or omit to attend to or fail to carry out with due promptitude and diligence anything which is his duty as a member of the Force to attend to or carry out; or

(II)

Fail to work his beat in accordance with orders or leave the place of duty to which he has been ordered or having left his place of duty for a bonafide purpose fail to return thereto without undue delay; or

(III)

Be absent without leave or be late for any duty; or

(IV)

Fail properly to account for, or to make a prompt and true return of any money or property received by him in the course of his duty.

146.3

Disobedience of Orders :-No member of the Force shall -

(i)

disobey or omit or neglect to promptly carry out any lawful orders, written or otherwise, or

(ii)

contravene any provision of the Act, these rules or Directives containing restriction on the private lives of the members of the Force or requiring him to notify the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

concerned that he, or relation included in his family, has business interest in his jurisdiction within the meaning of these rules and Directives.

146.4

Discreditable conduct. - No member of the Force shall act in any manner prejudicial to discipline or conduct himself in such a manner which is reasonably likely to bring discredit to the reputation of the Force.

146.5

Misconduct towards a member of the Force:-No member of the Force shall-

(a)

conduct himself towards another member of the force in oppressive or abusive manner; or

(b)

assault or misbehave with such manner.

146.6

Falsehood or fabrication:-No member of the Force shall-

(i)

knowingly or through neglect make any false, misleading or inaccurate oral or written statement or entry in any record or document made, kept or required for the purpose of Force; or

(ii)

either willfully and without proper authority or through lack of due care destroy or mutilate any record or document made, kept or required for the purpose of the Force; or

(iii)

without good and sufficient cause alter or erase or add to any entry in such a record or documents; or

(iv)

knowingly or through neglect make any false, misleading or inaccurate statement in connection with his appointment to the Force.

146.7

Corrupt or improper practice:-No member of the Force shall-

(i)

in his capacity as such member and without the written consent of the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

concerned directly or indirectly solicit or accept any gratuity, present or subscription; or

(ii)

Place himself under a pecuniary obligation to any person in such a manner as might affect the proper discharge of his duties as such member; or

(iii)

improperly use or attempt so to use, his position as such member for his personal.

146.8

Abuse of authority:-No member of the Force shall-

(a)

without good and sufficient cause make an arrest; or

(b)

use any unnecessary violence towards any under trial prisoners or other persons with whom he comes into contact in the execution of his duty.

147.

Offences relatable to duties of enrolled members.

- -Commission of any of the following act or acts by an enrolled members of the Force -

(i)

violation of any duty;

(ii)

willful breach or neglect of any provisions of this Act or any rule or Directives or of any other lawful orders which he is bound to observe or obey;

(iii)

disobeying lawful command of superior officers;

(iv)

withdrawing from duty of his office without permission;

(v)

quitting his guard, picket, party or patrol without being duly relieved or without leave;

(vi)

absenting himself without proper intimation to his controlling authority or without sufficient cause overstaying leave granted to him or failing without reasonable cause to report himself for duty on the expiry of such leave;

(vii)

engaging himself without authority for any employment other than his duty as an enrolled member of the Force;

(viii)

being guilty of cowardice;

(ix)

being in a state of intoxication while on duty or after having been alerted for any duty;

(x)

malinger or feigning or voluntarily causing hurt or infirmity to himself or intentionally delaying his disease or infirmity with the intention to render himself unfit for any duty or for the service;

(xi)

resisting his lawful arrest or being under arrest or in confinement leaving his arrest or confinement before he is set at liberty by unlawful authority;

(xii)

assaulting or otherwise ill-treating any enrolled member of the Force subordinate to him in rank position;

(xiii)

being grossly insubordinate or insolent to his higher officer or using or attempting to use criminal force against his colleague or higher officer whether on or off duty, knowing or having reason to believe him to be such;

(xiv)

designedly or through neglect injuries, or losing or fraudulently disposing of or unlawfully lending his colleague or higher officer whether on or off duty, knowing or having reason to believe him to be such;

(xv)

taking part in procession, gherao, demonstration, shouting slogans or resorting to pamphleteering or otherwise indulging in any intimidating or coercive act, or dharna, hunger strike for forcing under duress or threats any supervisory authorized to concede anything or striking work;

(xvi)

being guilty of using insulting or threatening language in the case of security Court of causing any interruption or disturbance in the proceedings of such court;

(xvii)

offering unwarrantable personal violence to any person.

(xviii)

Entering or searching without lawful authority or reasonable cause any building or place;

(xix)

Seizing vexatiously and unnecessarily the property of any person;

(xx)

Detaining, searching or arresting any person vexatiously and without reasonable suspicion or cause;

(xxi)

Holding out any that, inducement or promise not warranted by law; or

(xxii)

Aiding or abetting or attempting to commit any of the offences under this Act or these rules or doing act towards the commission of such offence; Shall render him liable for punishment under section 9 or section 17 or both.

Chapter XII

Disciplinary And Penal Punishment

148.

description of punishment.

-

148.1

Any of the following punishments may for good and sufficient reasons and as hereinafter provided, be imposed on an enrolled member of the Force.

148.2

Major punishments:

(a)

Dismissal from service (which shall ordinarily be a disqualification for future employment under the Government.)

(b)

Removal from service (Which shall not be a disqualification for future employment under the Government)

(c)

Compulsory retirement from service.

(d)

Reduction in rank or grade.

148.3

Minor punishment:- (a) Reduction to a lower stage in the existing scale of pay.

(b)

Withholding of next increment with or without corresponding postponement of subsequent increments.

(c)

Withholding of promotion for a specific period.

(d)

Removal from any office of distinction or deprivation of any special emoluments.

(e)

Censure.

148.4

Petty punishment:- (a) Fine to any amount not exceeding seven days' pay.

(b)

Confinement to quarter-guard for a period not exceeding fourteen days with or without punishment drill, extra guard duty, fatigue duty or any other punitive duty.

(c)

Reprimand.

148.5

Explanation.-

The following shall not amount to a punishment within the meaning of this rule, namely :-

(a)

withholding of increment of an enrolled member of the Force for failure to pass a departmental examination in accordance with the rules or orders governing class or grade or rank or post or as per the terms of his appointment;

(b)

stoppage of an enrolled member of the Force at the efficiency bar in the existing scale of pay on the ground of his unfitness to cross the bar;

(c)

non-promotion of an enrolled member of the Force, whether in a substantive or officiating capacity, due to his failure to pass the pre-promotion course, to a rank or grade to which he is eligible or has been empanelled;

(d)

reversion of an enrolled member of the Force officiating in a higher rank or a grade to a lower rank or grade on the ground that he is considered to be unsuitable for such higher rank or grade or any administrative grounds not connected with his conduct;

(e)

reversion of an enrolled member of the Force appointed on probation to his permanent rank, grade or post, during or at the end of the period of probation in accordance with the terms of his appointment or the rules and orders governing probation;

(f)

repatriation of an enrolled member of the Force to his parent cadre of department;

(g)

retirement of a member of the Force under rules 84 and 85 on grounds of unsuitability or physical and mental unfitness respectively,]

(h)

suspension of enrolled member of the Force under rule 134;

(i)

termination of service of an enrolled member of the Force-

(1)

appointed on probation, during the period of probation or any extension thereof in accordance with the provisions of sub-rule (3) of rule 57; or

(2)

reduction or withholding of the maximum pension admissible under the Pension Rules for a specified period.

149.

Other minor punishment.

-

149.1

Enrolled member of the Force, being railway servant shall also be subject to the following minor punishments-

(a)

Withholding of the privilege of passes or privilege Ticket Orders or both for a specified period;

(b)

Reduction or withholding of the maximum pension admissible under the Pension Rules for a specified period.

150.

Effect of departmental punishment on prosecution.

- Any punishment specified in rules 148 and 149 which has been imposed on an enrolled member of the Force shall not affect his liability to prosecution and punishment under this Act or under any other law for the time being in force.

151.

Disciplinary Authority.

-

151.1

The disciplinary authority in respect of any enrolled member of the Force for the purpose of imposing any particular punishment or the passing of any disciplinary order shall be the authority specified in this behalf in Schedule III in whose administrative control the member is serving and shall include any superior to such authority.

151.2

The disciplinary authority, in the case of an enrolled member of the Force officiating in a higher rank, shall be determined with reference to the officiating post held by him at the time of taking action.

152.

Authority to institute proceedings.

-

152.1

The appointing authority or any authority otherwise empowered by general or special order, may -

(a)

institute disciplinary proceedings against any enrolled member ; or

(b)

direct a disciplinary authority to institute disciplinary proceedings against any enrolled member of the Force on whom the disciplinary authority is competent to impose, under these rules, any of the punishments specified in rules 148 and 149.

152.2

A disciplinary authority competent under these rules to impose any of the minor punishments may institute disciplinary proceedings for the imposition of any of the major punishments notwithstanding that such disciplinary authority is not competent, under these rules, to impose any of the latter punishments.

153.

Procedure for imposing major punishments.

-

153.1

Without prejudice to the provisions of the Public Servants Inquiries Act, 1850, no order of dismissal, removal, compulsory retirement or reduction in rank shall be passed on any enrolled member of the Force (save as mentioned in rule 161) without holding an inquiry, as far as may be in the manner provided hereinafter, in which he has been informed in writing of the grounds on which it is proposed to take action, and has been afforded a reasonable opportunity of defending himself.

153.2.1

. Whenever the disciplinary authority is of the opinion that there are grounds for inquiring into the truth of any imputation of misconduct or misbehaviour against an enrolled member of the Force, it may itself inquire into or appoint an Inquiry Officer higher in rank to the enrolled member charged but not below the rank of Inspector, or institute a Court of Inquiry to inquire into the truth thereof.

153.2.2

. Where the disciplinary authority itself holds the inquiry, any reference to the Inquiry Officer in these rules shall be construed as reference to the disciplinary authority.

153.3

On receipt of complaint or otherwise, the disciplinary authority on going through the facts alleged or brought out shall decide whether it is a case for major punishment. No attempt shall be made to convert cases punishable under section 16 A or section 17 into disciplinary cases nor divert cases in respect of which major punishments are impossible to the category of cases where minor or petty punishments are possible.

153.4

Where it is proposed to hold an inquiry against an enrolled member of the Force under this rule, the disciplinary authority may order that the enrolled member shall not be transferred to any other place nor given leave without its written permission till the conclusion of the disciplinary proceedings, and the disciplinary authority shall draw up or cause to be drawn up -

(a)

the substance of the imputations of misconduct or misbehaviour into definite and distinct articles of charge;

(b)

a statement of the imputations of misconduct or misbehaviour in support of each article or charge which shall contain,-

(i)

a statement of all relevant facts including any admission or confession made by the enrolled member of the Force;

(ii)

a list of documents by which and a list of witnesses by whom the articles of charge are proposed to be sustained.

153.5

The disciplinary authority shall be delivered to the delinquent member, at least seventy-two hours before the commencement of the inquiry, a copy of the articles of charge, the statement of imputations of misconduct or

msbehaviour and alist of documents and witness by which each article of charge is proposed to besustained and fix a date when the inquiry is to commence; subsequent dates beingfixed by the Inquiry Officer.

153.6

Where the enrolled member charged has absconded or where it is not possibleto serve the documents on him in person or where he deliberately evades service, theprocedure laid down in sections 62, 64, and 69 of the Code of Criminal Procedure,1973 shall be adopted by the Inquiry Officer for service of such documents and thesame shall be deemed to be a conclusive proof of service.

153.7

For securing the presence of private prosecution witness, the Inquiry Officermay allow free travel passes according to their status in accordance with extant Railway Rules.

153.8

The enrolled member charged shall to be in a legal practitioner at theproceedings but he may be allowed to take the assistance of any other member of the Force(hereinafter referred to as :friend Where in the opinion of the Inquiry Officermay, at the request of the party charged, put his defence properly. Such "friend" mustbe a serving member of the Force of or below the rank of Sub-Inspector for the timebeing posted in the same division or the battalion where the proceeding are pendingand not acting as a "friend" in any other proceedings pending any where. Such"friend" shall, however, not be allowed to address the Inquiry Officer nor to crossexamine the witness.

153.9

If the enrolled member charged fails to turn up on the day fixed for the start ofinquiry and no reasonable excuse is offered for not being present on the fixed timeand day, the Inquiry Officer may commence the inquiry ex parte.

153.10

At the commencement of the Inquiry, the party charged shall be asked to enter a plea of "guilty" or "not guilty" after which evidence necessary to establish thecharge shall be let in. The evidence shall be material to the charge and may either beoral or documentary. If oral-

(a)

it shall be direct;

(b)

it shall be recorded by the Inquiry Officer in the presence of the partycharged; and

the party charged shall be allowed to cross-examine the witness.

153.11

If the witnesses are government officers of a rank superior to the party charged, the Inquiry Officer may, at the request of the party charged, put the questionsto such officer.

153.12

If the evidence shall be recorded, in the presence of the party charged, by the Inquiry Officer himself or on his dictation by a scribe. Cross-examination by the partycharged or the fact of his declining to cross-examine the witness, as the case may be,shall also be recorded. The statement of each witness shall be read over to him andexplained, if necessary, in the language of the witness, whose signature shall beobtained as a token of his having understood the contents. Statement shall also be signed by the Inquiry officer and the party charged. Copy of each statement shallgiven to the party charged who shall acknowledge receipt on the statement of witnessitself. The Inquiry Officer shall recorded a certificate of having read over thestatement to the witness in the presence of the party charged.

153.13

Documentary exhibits, if any, are to be numbered while being presented by theconcerned witness and reference of the number shall be noted in the statement of thewitness. Such documents may be admitted in evidence as exhibits without beingformally proved unless the party charged does not admit the genuineness of such adocument and wishes to cross-examine the witness who is purported to have signed it.Copies of the exhibits may be given to the party charged on deemed except in the caseof voluminous documents, where the party charged may be allowed to inspect thesame in the presence of Inquiry Officer and take notes.

153.14

Unless specifically mentioned in these rules, the provisions of the Code of Criminal Procedure,, 1973 and the Indian Evidence Act, 1872 shall not apply to thedepartmental Proceedings under these rules.

153.15

The party charged shall then be examined and his statement recorded by the Inquiry Officer. If the party charged has pleaded guilty and does not challenge the evidence on record, the proceedings shall be closed for orders. If the party pleads "not guilty" he shall be required to file within 10 days a written statement together with a list of such witnesses as he may wish to produce in his defence and giving therein a gist of evidence that each witness is expected to give. If he declines to file a written statement, he shall again be examined by the Inquiry Officer on the expiry of the period allowed and his statement, if any, recorded.

153.16

If the party charged refuses to produce any witnesses or produce any evidence in his defence, the proceedings shall be closed for orders, if he produces any evidence, the Inquiry officer shall be produced to record the evidence. If the Inquiry Officer considers that the evidence of any witness or any document which the party charged wants to produce in his evidence is not material to the issue involved in the case, he may refuse to call such witness or to allow such document to be produced in evidence, but in all such cases he must briefly record his reasons for considering the evidence inadmissible. When all relevant evidence has been brought on record, the proceedings shall be closed for orders after recording the statement, if any, of the party charged and obtaining any clarification, if necessary, from him.

153.17

Under no circumstances [Chief Security Commissioner]

[Substituted 'Additional' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

prosecution witness shall be examined after the defence has been let in unless supplementary defence witness have been allowed on that ground. However, if at any stage during the inquiry, it appears to the Inquiry Officer that examination of any witness who has not been produced by either party so far or recall of any witness who has already been examined is essential in the interest of justice or to clear any doubt, he may summon him for the purpose and examine him as a witness of the Inquiry Officer after recording his reasons for doing so. Such a witness may also be cross-examined by the party charged, if desired.

153.18

Whenever any Inquiry Officer after having heard and recorded the whole or any part of the evidence in an inquiry, cases to exercise jurisdiction therein and succeeded by another Inquiry Officer who has and exercises such jurisdiction, the Inquiry Officer so succeeding may act on the evidence so recorded by his predecessor, or partly recorded by his predecessor and partly recorded by him or himself record it fresh as he deems expedient.

153.19

At the conclusion of the inquiry, the Inquiry Officer shall prepare a report on the inquiry recording his findings on each of the charges with reasons therefore. The findings must be of "guilty" or "not guilty" and no room shall be allowed for "benefit of doubt" or personal surmises. A charge shall be deemed to have been proved if after considering the evidence before him, the Inquiry Officer believes the ingredients constituting the charge to exist or considers their existence so probable that a prudent man ought, under the circumstances of the particular case, to act upon the supposition that they exist.

153.20

If in the opinion of the Inquiry Officer, the proceedings of the inquiry establish charges different from those originally framed, he may record his findings on such charges:

Provided that findings on such charges shall not be recorded unless the party charged has admitted the facts constituting them and has had an opportunity of defending himself against them.

154.

Action on the Inquiry Report .

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154.1

If the disciplinary authority, having regard to its own findings where it is itself the Inquiry Officer or having regard to its decision on all or any of the findings of the Inquiry Officer, is of the opinion that the punishment warranted is such as is within its competence, that authority may act on the evidence on record. However, in a case where it is of the opinion that further examination of any witness is necessary in the interest of justice, it may recall the witness, examine him and allow the party charged to cross-examine him. After that, it may impose on the party charged such punishment as is within its competence according to these rules.

154.2

While communicating the order imposing the punishment, a copy of the findings of the Inquiry Officer shall also be given to the party charged.

154.3

Where such disciplinary authority is of the opinion that punishment warranted is such, as is not within its competence, that authority shall forward the records of the inquiry to the appropriate disciplinary authority who shall act in the manner as hereinafter provided.

154.4

The disciplinary authority, if it is not itself the Inquiry Officer may, for reasons to be recorded, remit the case to the Inquiry Officer for further Inquiry and report. The Inquiry Officer shall thereupon proceed to hold further inquiry according to the provisions of rule 153 and submit to the disciplinary authority the complete records of such inquiry along with his report.

154.5

The disciplinary authority shall, if it disagrees with the findings of the Inquiry Officer on any articles of charge, record its reasons for such disagreement and record its own findings on such charge, if the evidence on record is sufficient for the purpose.

154.6

If the disciplinary authority having regard to its findings on all or any of the articles of charge is of the opinion that any of the major punishments should be imposed on the party charged, it shall, notwithstanding anything contained in rule 158, make an order imposing such punishment.

154.7

If the authority, having regard to its findings on all or any of the articles of charge and on the basis of evidence on record, is of the opinion that any of the major punishments should be imposed on the party charged, it shall make an order imposing such punishment and it shall not be necessary to give to the party charged any opportunity of making representation on the punishment proposed to be imposed.

155.

Determination of punishment.

- In determining the punishment, the character, previous bad record and punishment of party charged shall not be taken into consideration unless in a case where they are made subject-matter of a specific charge in the proceeding itself. Offences connoting moral turpitude shall be carefully distinguished from smaller lapses of conduct. It is essential that the punishment shall be inflicted keeping in view the nature of duties expected from the member of the Force and the misconduct by him.

156.

Imposing of punishment, of dismissal, etc..

- Before coming to any lower punishment, the disciplinary authority with a view to ensuring the maintenance of integrity in the Force shall consider the award of punishment of dismissal or removal from service to any member of the Force in the following cases namely:-

(a)

Dismissal:

(i)

Conviction by criminal court;

(ii)

serious misconduct or indulging in committing or attempting or abetting an offence against railway property;

(iii)

discreditable conduct affecting the image and reputation of the Force;

(iv)

neglect of duty in or likely to result in loss to the railway or danger to the lives of persons using the railways;

(v)

insolvency or habitual indebtedness; and

(vi)

obtaining employment by concealment of his antecedents which would ordinarily have debarred him from such employment.

(b)

Removal from service:

(i)

any of the misconduct for which he may be dismissed under clause (a) above;

(ii)

repeated misconducts;

(iii)

absence from duty without proper intimation or overstay beyond sanctioned leave without sufficient cause.

157.

Reduction in the rank, grade or in the scale of pay.

-

157.1

No enrolled member of the Force be reduced to a rank lower than that to which he was first appointed to the service nor shall he be reduced penalty in the sense that he shall never be eligible for repromotion however meritorious his subsequent service may be.

157.2

When reduced to a lower rank, grade or a lower stage in the scale of pay is ordered, the order shall also specify:-

(i)

the date from which it will take effect and the period (in terms of years and months) for which the punishment shall be operative;

(ii)

the stage in the scale of pay (in terms of rupees) to which the enrolled member of the Force is reduced; and

(iii)

the extent (in terms of years and month, if any, to which the punishment referred to at (i) above shall be with or without cumulative effect:

Provided that when the punishment of reduction to a lower stage in the scale of pay is imposed during the currency of reduction in rank, the disciplinary authority shall clearly indicate in the punishment order whether the two punishments shall run concurrently or the subsequent punishment shall be implemented after the expiry of the first punishment.

157.3

Withholding of increment. - In the case of withholding of increments as a punishment, the order shall state the period for which the increment is to be withheld and whether it shall have the effect of postponing further increments.

158.

Procedure for imposing minor punishments .

-

158.1

The disciplinary authority may impose any of the minor punishments provided in sub-rule (3) of rule 148 and in rule 149 after -

(a)

informing the enrolled member of the Force charged in writing of the proposal to take action against him and of imputations of misconduct or misbehaviour on the basis of which action is proposed to be taken and giving him a reasonable opportunity of making such representation within a period of 10 days from the date of the communication as he may wish to make against the proposal;

(b)

taking the representation, if any, submitted by the party charged under clause (a) into consideration and recording a finding on each imputation of misconduct or misbehaviour.

158.2

Notwithstanding anything contained in clause (a) of sub-rule (1), if it is proposed, after considering the representation, if any, made by the party charged under the said clause (a) to withhold increments of pay and such withholding of increments is likely to affect adversely the amount of pension payable to the party charged or to withhold increments of pay for a period exceeding three years or to withhold increments of pay with cumulative effect for any period or to reduce him by more than three stages in his scale of pay, an inquiry shall be held, as far as possible, in the manner laid down in

rule 153 before making any order imposing on the party charged any such punishment.

159.

Departmental proceeding file

: - Every Departmental proceeding File shall contain documents in the following order with an index sheet:-

(i)

Order sheet,

(ii)

Preliminary papers,

(iii)

Charge,

(iv)

Statement of Prosecution witness,

(v)

Prosecution exhibits,

(vi)

Defence statement of "guilty" or "not guilty",

(vii)

Statement of defence witness,

(viii)

Written statement of defence, if any,

(ix)

Findings of the Inquiry Officer,

(x)

Order of the Disciplinary Authority,

(xi)

Appeal and Order.

160.

Procedure for imposing petty punishment.

-

160.1

Petty breaches of discipline and petty cases of misconduct by the enrolled members of the Force shall, as far as possible, be inquired into and disposed of in Orderly Room by an officer authorized to award petty punishment under Schedule I II to any such enrolled member of the Force who is for the time being subject to his authority. Inquiries in the Orderly Room shall be held, as far as possible, at least once a week on a fixed day.

160.2

If the offence calls for more severe punishment than the officer dealing with it is authorized to inflict, he shall:

(i)

if at headquarters, have the delinquent member brought before the Assistant Security Commissioner or the Divisional Security Commissioner concerned as the case may be;

(ii)

if away from the headquarters, forward the record with his recommendations to the Assistant Security Commissioner or the Divisional Security Commissioner concerned as the case may be, for orders and further action.

160.3

Proceedings of such inquiries shall be recorded in the Orderly Room Register.

160.4

Punishment awarded in Orderly Room may be carried out in Reserve Lines, training institutes of Posts as may be specified by the officer awarding the punishment.

160.5

Fatigue duty and any other duty shall, however, be awarded only to constables and Naiks and may consist of any one or more of the following duties, namely:-

(a)

pitching and tending of tents and their mending;

(b)

tending of gardens, farms, ponds etc. of the Force;

(c)

cutting of grass and moving of lawns;

(d)

cleaning of jungles and cutting of wood;

(e)

cleaning and making of parade ground;

(f)

cleaning and dusting of arms, equipment, stores, mess, class rooms and barracks; or

(g)

repairing of huts, butts and similar other works in the Reserve Lines, Post, etc.

161.

Special procedure in certain cases.

- Notwithstanding anything contained anywhere in these rules-

(i)

where any punishment is imposed on an enrolled member of the Force on the ground of conduct which has led to his conviction on a criminal charge; or

(ii)

where the authority competent to impose the punishment is satisfied for reasons to be recorded by it in writing that it is not reasonable practicable to hold an Inquiry in the manner provided in these rules;

(iii)

where the President is satisfied that in the interest of Security of State and the maintenance of integrity in the Force, it is not expedient to hold an inquiry in the manner provided in these rules; the authority competent to impose the punishment may consider the circumstances of the case and make such orders thereon as it deems fit.

162.

procedure to be followed in case of conviction by a criminal court.

-

162.1

The Divisional Security Commissioner or the Commanding Officer shall go through the record of every case brought against an enrolled member of the Force in the court, and shall take departmental cognizance of every Criminal case in which an enrolled member of the Force is convicted or acquitted or discharged (except when the case is false) and record on appropriate order.

162.2

Effect of imprisonment. - Every enrolled member of the Force punished with imprisonment or released on probation after conviction for an offence implying moral turpitude, such as theft, perjury, rape, or with imprisonment exceeding one month for any other offence or for any matter specified in section 17 shall be proceeded against for dismissal, and shall ordinarily be dismissed from service.

162.3

Effect of fine. - When an enrolled member of the Force is sentenced to fine by a criminal court, disciplinary authority may examine the circumstances of the case and if necessary in the interest of the Force, draw up proceedings for dismissal.

162.

4.

Form of charge in such cases

162.4.1

The charge in proceedings under sub-rule (2) and (3) shall be that the accused has been convicted, imprisoned or fined, as the case may be, for the offence concerned.

162.4.2

Without prejudice to the right of the accused on final acquittal, such proceedings shall be taken up as soon as the first trial court has passed orders on conviction and disposed of immediately in order to avoid the wasteful

expenditure involved in allowing the enrolled member of the Force under suspension.

162.5

Proceedings in case of discharge:-When an enrolled member of the Force is prosecuted before a court but discharged for insufficiency of evidence or on any technical ground or by giving him the benefit of doubt, the disciplinary authority shall examine the possibility of instituting departmental proceedings after an objective consideration of all the facts and circumstances of the case and may take such action as deemed appropriate.

163.

procedure when two or more enrolled members are involved.

- Where two or more enrolled member of the Force including those on deputation to the Force are involved in any case, the disciplinary action against two or all of them may be taken in a common proceeding.

164.

Provision regarding enrolled member of the Force whose services are lent to other departments of Central or state Government, etc.

-

164.1

Where the services of an enrolled member of the Force are lent to any other Ministry or Department of the Central Government or to a State Government or an authority subordinate thereto (hereinafter in this rule referred to as "the borrowing authority") of the borrowing authority shall have the powers of the authority competent to place such member under suspension and of the disciplinary authority for the purpose of conducting disciplinary proceedings against him:

Provide that the borrowing authority shall forthwith inform the authority which lent the services of the enrolled member (hereinafter in this rule referred to as "lending authority") of the circumstances leading to the orders of his suspension or the commencement of the disciplinary proceedings, as the case may be.

164.2

In the light of the findings in the disciplinary proceedings conducted against the enrolled member of the Force-

(i)

if the borrowing authority is of the opinion that any of the minor punishment should be imposed on such member, it may, after consultation with the lending authority, make such orders in the case as it deems necessary:

Provided that in the event of a difference of opinion between the borrowing authority and the lending authority, such member shall be repatriated; and

(ii)

if the borrowing authority is of the opinion that any of the major punishment should be imposed on such member, it shall replace his service at the disposal of the lending authority and transmit to it the proceedings of the inquiry and thereupon the lending authority may, if it is the disciplinary authority, pass such orders thereon as it may deem necessary or if it is not the disciplinary authority, submit the case to the disciplinary authority which shall pass such orders on the case as it may deem necessary:

Provided that before passing such orders, the disciplinary authority shall comply with the provisions of sub-rules (4) and (5) of rule 154:

Provided further that the disciplinary authority may make an order under this clause on the record of the inquiry transmitted to it by the borrowing authority of after holding such further inquiry as it may deem necessary, as far as may be, in accordance with rule 153.

165.

provision regarding enrolled member of the force in deputation .

-

165.1

Where the services of any person is borrowed for appointment as an enrolled member of the Force on deputation, the authority which appointed him as an enrolled member of the Force (hereinafter in this rule referred to as "borrowing authority") shall have the powers of the authority which lent the services of such person (hereinafter in this rule referred to as the "lending authority") for the purpose of placing him under suspension or for conducting disciplinary proceedings against him:

Provided that where an order suspending such person is made or disciplinary proceedings commenced against such person, the borrowing authority shall forthwith inform the lending authority of the circumstances leading to the order of

suspension or as the case may be, the commencement of the disciplinary proceedings against him.

165.2

In the light of the findings in the disciplinary proceedings conducted against such person -

(i)

if the borrowing authority is of the opinion that any of the minor punishments specified in the rules by which such person is governed should be imposed on him, it may, after consultation with the lending authority, pass such orders in the case as it deems necessary, in accordance with the said rules:

Provided that in the event of a difference of opinion between the borrowing authority and lending authority, the services of such person shall be replaced at the disposal of the lending authority; or

(ii)

If the borrowing authority is of the opinion that any of the major punishments specified in the rules by which such person is governed should be imposed on him, it shall replace his services at the disposal of the lending authority and transmit to it the proceedings of inquiry and thereupon the lending authority may pass such orders as it may deem necessary.

166.

Entry of punishment in service roll.

- Any punishment imposed on an enrolled member of the Force shall be entered in the service roll of such enrolled member.

Penal punishments

167.

Penal punishments.

- Penal punishment on the enrolled members of the Force shall be imposed either by the ordinary criminal courts in accordance with the provisions of the Code of Criminal Procedure, 1973 or by the Security Court under the Act, in accordance with the provisions hereinafter contained.

168.

Composition and constitution of Security Court.

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168.1

The Assistant Inspector General, the senior Commandant referred to in rule (hereinafter referred to as the presiding Officer) shall constitute a Security Court.

168.2

The proceedings may be attended by two other members of the Force as observers who shall not be required to take oath or make affirmation [***]

[Omitted by Notification No. G.S.R. 719(E) dated by 31.10.2013 (w.e.f. 3.12.1987)]

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168.3

The Presiding Officer and the said observers shall be in their prescribed uniform during the trial.

169.

Powers of Security Court.

-

169.1

The Security Court may try any enrolled member subject to the Act and these rules.

169.2

Any trial by a Security Court under these rules shall be deemed to be a judicial proceedings within the meaning of sections 193 and 228 of the Indian Penal Code, 1860 and the Security Court shall be deemed to be a Court within the meaning of sections 345 and 346 of the Code of Criminal Procedure, 1973.

169.3

The findings and sentence of the Security Court shall not be required to be confirmed by the commissioner who may dispose of the same, as provided in rule 210.

169.4

A petition against an order of the Security Court may be made to the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

, who may dispose of the same, as provided in rule 210.

170.

Investigation charges.

-

170.1

On receipt of information or otherwise that an enrolled member of the Force has committed an offence under the Act or the rules made there under, the Security Commissioner or the Commanding Officer of a unit shall assemble a Court of Inquiry referred to in rule 265 or commission any other member of the Force for conducting the investigation.

170.2

On receipt of the report, the Security Commissioner or the Commanding Officer may dismiss a charge brought against an enrolled member of the Force if, in his opinion, the evidence does not show that an offence under the Act has been committed, any may do so if, in his discretion, he is satisfied that the charge ought not to be proceeded with.

170.3

Where such an officer is of the opinion that the charge ought to be taken cognizance of, he shall, without unnecessary delay, decide whether the case be dealt:-

(a)

under the provisions of section 9; or

(b)

by the Security court; or

(c)

by an ordinary criminal court:

and take further action accordingly.

Provided that where the offence has been reported to the local police or otherwise registered by them and they after investigation have sent the accused enrolled member of the Force for trial before the ordinary criminal court, the Security Commissioner or Commanding Officer may, with the prior permission of the [Principal Chief Security Commissioner] [Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)] , call for such a case from such court for trial by a Security Court under these rules:

Provided further that an accused may not be claimed for trial by a Security Court where the offence is committed by him along with any other person not subject to the Act.

171.

Convening the Security Court.

- In all cases, where it is decided to try the accused enrolled member of the Force by the Security Court, the Security Commissioner or the Commanding Officer shall move the [Principal Chief Security Commissioner] [Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)] concerned who may, on being satisfied, convene the Security Court:

Provided that where a Security Commissioner or Commanding Officer is of the opinion that it is necessary to take immediate action and such prior approval cannot be obtained without detriment to discipline, he may convene the Security Court pending approval of the [Principal Chief Security Commissioner] [Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

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172.

Choice of jurisdiction between the Security Court and the Criminal Court.

- Subject to the provisions or the proviso to sub-section (3) of section 17 where an offence is committed by the accused enrolled member of the Force-

(a)

in the course of performance of his duty as such member; or

(b)

in relation to property belonging to the Government or the Force or a person subject to the Act; or

(c)

against a person subject to the Act, he shall be tried by a Security Court.

173.

Prescribed authority for purposes of proviso to sub-section (3) of section 17.

- For the purposes of the proviso to sub-section (3) of section, 17 the authority who may require inquiry into, an offence by an offence by an ordinary criminal court shall be the Security Commissioner or the Commandants, as the case may be, within the limits of whose jurisdiction the offence has been committed.

174.

The period of limitation for trial.

- No trial under these provisions shall commence-

(a)

after the expiration of a period of 12 months from the date of such offence, or

(b)

if a pension has ceased to be an enrolled member.

175.

Force Custody.

-

175.1

Where a Security Commissioner or Commanding Officer is of opinion that any enrolled member of the Force has committed an offence and should be tried by the Security Court, it shall be lawful for him, with the prior approval of the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

, to order the enrolled member of the Force to be taken in to Force Custody and kept either in close arrest or open arrest as he may deem fit from time to time depending on the gravity of the charge and the attending circumstances:

Provided that no enrolled member of the Force shall be detained in Force Custody for a period of more than eight days without a Security Court for his trial having been convened or without a punishment having been awarded to him under section 9.

Provided further that where further detention is considered essential, such officer shall seek written approval of the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

, who may sanction further detention for a specific period, which he may extend from time to time by not more than eight days subject to a total period of detention for two months.

175.2

In each division or battalion, there shall be one or more places of confinement, as may be considered necessary by the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

, where arrested enrolled members of the Force shall be confined under this Act. Such places shall be under the supervision of the Divisional Security Commissioner or Commanding Officer of the unit, who shall be responsible for their upkeep.

175.3

If any enrolled member of the Force in Force custody escapes or is rescued, the member of the Force from whose custody he escaped or was rescued should report the escaped or rescue to his officer-in-charge and may immediately pursue and arrest such enrolled member in any place in India.

176.

Framing of charges.

-

176.1

A charge-sheet shall contain the whole issue to be tried by a Security Court at one time.

176.2

A charge means an accusation contained in a charge-sheet that an enrolled member of the Force has been guilty of an offence.

176.3

A charge-sheet may contain one charge or several charges.

177.

Contents of charges.

-

177.1

Each charge shall state one offence only and in no case shall an offence be described in the alternative in the same charge.

177.2

Each charge shall be divided into two parts-

(a)

statement of offence, and

(b)

statement of particulars of the act, neglect or omission constituting the offence.

177.3

The particulars shall state such circumstances respecting the alleged offence as will enable the accused to know what act, neglect or omission is intended to be proved against him as constituting the offence.

177.4

The particulars in one charge may be included wholly or partly by a reference to the particulars in another charge, and in that case so much of the latter particulars as are so referred to shall be deemed to form part of the first mentioned charge as well as of the other charge.

177.5

Where it is intended to prove any facts in respect of which any deduction from pay and allowances can be awarded as a consequence of the offence charged, the particulars shall state those facts and the sum of the loss or damage it is intended to recover.

178.

Signature on charge-sheet.

- The charge-sheet shall be signed by the Security Commissioner or the Commanding Officer under whose administrative control the enrolled member of the Force may be serving for the time being and shall contain the place and date of holding such trial.

179.

Construction of charge-sheet.

- In the construction of a charge-sheet or charge, there shall be presumed in favour of supporting the charge, every proposition which may reasonably be presumed to be impliedly included though not expressed therein.

180.

Warning to accused for trial.

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180.1

The accused before he is arraigned shall be informed by any member of the Force of every charge for which he is to be tried and also that, on his giving the names in writing of witness whom he desires to call in his defence twenty-four hours before the trial, reasonable steps will be taken for procuring their attendance and those steps shall be taken accordingly.

180.2

The interval between his being so informed and his arraignment shall not be less than ninety-six hours or where the accused person is on active duty it shall not be less than seventy-two hours.

180.3

The member of the Force at the time of so informing the accused shall give him a copy of the charge-sheet and shall, if necessary, read and explain to him the charges brought against him. If the accused desires to have it in a language which he understands, a translation thereof shall also be given to him.

180.4

The accused shall also be furnished a copy of the relevant record or abstract of evidence collected against him and a notice of any [Chief Security Commissioner]

[Substituted 'Additional' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

evidence which the prosecution intends to adduce.

180.5

The concerned member of the Force shall, if the accused so desires, give him the name of the Presiding Officer and also the names of other two members of the Force who will be attending as observers.

181.

Joint trial several accused persons.

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181.1

Any number of accused may be charged jointly, may be tried together for an offence averred to have been committed by them collectively.

181.2

Any number of accused persons, although not charged jointly, may be tried together for an offence averred to have been committed by one or more of them and to have abetted by the other or others.

181.3

Where the accused are so charged under (1) or are to be tried together under sub-rule (2) any one case or more of them at the same time be charged with and tried for any other offence averred to have been committed individually or collectively, provided that, all the said offences are based on the same facts, or from or are part of a series of offences of the same or similar character.

181.4

In the cases mentioned above, notice of the intention to try the accused persons together shall be given to each of the accused at the time of his being informed of the charge, and any accused persons may claim either by notice to the authority convening the Security Court, or when arraigned before the Security Court, by notice to that court, that he or some other accused be tried separately on one or more of the charges included in the charge sheet, on the ground that the evidence of one or more of the other accused persons proposed to be tried together with him will be material to his defence, or that otherwise he would be prejudiced in his defence.

181.5

The authority convening the Security Court, if satisfied that the evidence will be material or that the accused may be prejudiced in his defence as aforesaid, and if the nature of the charge admits of this, shall allow the claim, and such accused person, or as the case may be, other accused person or persons whose separate trial has been claimed, shall be tried separately.

182.

Preparation of defence by the accused.

- An accused who has been remanded for trial, shall be afforded reasonable opportunity for preparing his defence and shall be allowed proper communication with his 'friend' who can be another enrolled member of the Force or a legal practitioner. A person so assisting him may advise him on all points and suggest the question to be put to witness but shall not examine or cross-examine witness or address the Security Court:

Provided that in a case instituted on the charge-sheet of the Police where a Public Prosecutor appears for presenting the case, 'friend' of the accused shall also be allowed similar facility to examine and cross-examine the witness or address the Security Court.

183.

Attendance of witness.

- The provisions of section 69 of the Code of Criminal Procedure, 1973 shall apply for procuring the attendance of witness.

184.

Commencement of proceedings.

- The Presiding Officer holding the trial, shall record, or cause to be recorded all the proceedings of the Security Court in English or in Hindi language, get the signature or the witness on their statements and may give a copy of the proceedings to the delinquent enrolled member (hereinafter referred to as the accused), free of charge, on demand.

185.

Recording of evidence.

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185.1

The provisions contained in the Indian Evidence Act, 1872(excepting sections 25 and 26) shall apply to the Security Court unless they are repugnant to the express provisions of these rules.

185.2

all evidence taken in the course of trial shall be on oath or affirmation and taken in the presence of the accused.

185.3

All evidence shall be taken down in a narrative form, as nearly as possible in words used, but in any case where the Presiding Officer considers it material, the question and answer shall be taken down verbatim.

185.4

All evidence so taken down shall be by the Presiding Officer and the witness and shall form part of the judicial record.

185.5

If the witness gives evidence in a language other than Hindi or English, it may, if practicable, be taken down in that language. If it is not practicable to do so, a true translation in Hindi, or in English of the evidence shall be prepared and kept on record.

185.6

The statement of a witness taken down as stated above, shall be read over and if necessary be corrected. When a witness denies the correctness of the same, the Presiding Officer instead of correcting the evidence, may make a memorandum of objection made by such witness and shall record such remarks as he thinks necessary.

186.

Evidence when translated.

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186.1

When any evidence is given in a language which the Presiding Officer or the accused does not understand, the evidence shall be translated for the Presiding Officer or the accused in a language which the Presiding Officer or the accused understands.

186.2

The Presiding Officer shall for this purpose either appoint an interpreter or shall himself act as interpreter after taking the oath or affirmation specified in rule 188.1.

186.3

When documents are produced for the purpose of formal proof, it shall be in the discretion of the Presiding Officer to cause as much to be interpreted as appears necessary to him.

187.

Commencement of trial.

- When the Presiding Officer, the interpreter, if any, and the members of the Force, if any, who may attend as observers are assembled the accused shall be brought before the Security Court and oath or affirmation specified in rule 188 shall be taken by the persons mentioned therein.

188.

Oath or affirmation of Presiding Officer and Interpreter.

188.1

The Presiding Officer shall take oath or make affirmation in any one of the forms given in Schedule IX or in such other form to the same purport which would, according to the religion or otherwise, be binding on the conscience of the Presiding Officer.

188.2

The presiding Officer or any other person empowered by him in his behalf, shall administer to the interpreter (if any) an oath or affirmation in any of the forms given in Schedule IX or in such other form to the same purport as the Presiding Officer considers to be according to the religion or otherwise binding on the conscience of the person who is to act as interpreter.

189.

Oath or affirmation of Presiding Officer to try several accused persons.

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189.1

The presiding Officer shall take oath or make affirmation at one time to try any number of accused persons then present

it, whether those persons are to be tried collectively or separately.

189.2

In the case of several accused to be tried separately, the Presiding Officer when talking oath or making affirmation, shall proceed with one case postponing the other cases and taking them afterwards in succession.

189.3

Where several accused persons are tried separately upon a charges arising out of the same transaction, the Presiding Officer may, if he considers it to be desirable in the interest of justice, postpone consideration of any sentence to be awarded to anyone or more such accused persons until the trials of all such accused persons have been completed.

190.

arraignment of accused.

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190.1

After the Presiding Officer and interpretation if any, have taken oath or made affirmation as mentioned in rule 188, the accused shall be arraigned on the charges against him.

190.2

The charges on which the accused is arraigned shall be read and, if necessary, translated to him and explained and he shall be required to plead separately to each charge.

191.

Objection to jurisdiction.

- If a plea to the general jurisdiction of the Security Court or a plea in bar of trial is offered by the accused, the Security Court shall dispose of such plea before proceeding further.

192.

Amendment of charge.

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192.1

At any time during the trial or when objected to by the accused, if it appears to the Security Court that there is mistake in the description of the accused in the charge-sheet, it shall amend the charge-sheet so as to correct that mistake.

192.2

If during the course of trial, it appears to the Security Court at any time before it has begun to examine the witness, that in the interest of justice any addition, or omission from or alteration in, the charge is required, it may amend such charge and may, after due notice to the accused and with the sanction of the [Principal Chief Security Commissioner] [Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)] who conveyed the court for trial, proceed with the trial on such amended charge.

193.

Adjournment.

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193.1

The proceedings of the trial shall be held as expeditiously as possible and in particular when the witness has once begun the same shall be continued from day to day until all the witness in attendance have been examined unless it appears to the Security Court that an adjournment is necessary for the ends of justice or that such continuance is impracticable.

193.2

If the Security Court after taking cognizance of an offence commencement of trial, find necessary or advisable to postpone the commencement of or adjourn any inquiry or trial, it may from time to time, for reasons to be recorded, postpone or adjourn the same on such terms as it may think fit, for such time as it considers reasonable, and may by a warrant remand the accused if in custody.

Provided that when witness are in attendance, no adjournment or postponement shall be granted without examining them except for special reasons to be recorded in writing.

194.

procedure of trial by Security Court.

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194.1

Where the accused is brought before the Security Court, the particulars of charge-sheet already served upon him under rule 180 shall be stated to him and he asked whether he pleads guilty or has any defence to make.

194.2

If the accused admits the accusation and pleads guilty, the Security Court shall record the plea of the accused, as nearly as possible in words used by him, and may in its discretion convict the accused and pass a sentence on him accordingly: Provided that before convicting the accused, the Security Court shall read the record or abstract of evidence and annex it to the proceedings, or if there is no such record or abstract, the Security Court shall take and record sufficient evidence to enable it to determine the sentence, and also to enable the authority, to whom the accused may petition, to know all the circumstances connected with the offence.

194.3

If the accused refuses to plead or does not plead intelligibly either one way or the other, a plea of "not guilty" shall be recorded on each charge.

194.4

Upon the record of plea "guilty" if there are other charge (s) in the same charge-sheet to which the accused pleads "not guilty", the trial shall be proceeded with respect to that charge for which he pleaded "guilty" upon any one of the alternative charges to which he had pleaded "guilty" or "not guilty" upon all the other alternative charges which precede such charges.

194.5

If there are alternative charges, the security Court may either proceed with respect to all the charges as if the accused not pleaded "guilty", to any charge or may, instead of trying him, record a finding of "guilty" upon any one of the alternative charges to which he had pleaded "guilty" and finding of "not guilty" upon all the other alternative charges which precede such charges.

195.

Withdrawal of plea of "not guilty".

- The accused may, if he thinks fit at any time during the trial, withdraw his plea of "not guilty" and plead "guilty" and in such case, the Security Court shall record a plea and finding of "guilty" and finding of "not guilty" upon all the other alternative charges which precede such charges.

196.

Procedure on plea of "not guilty".

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196.1

After the plea of "not guilty" to any charge is recorded, the evidence for the prosecution shall be taken.

196.2

For the said purpose, the Security Court shall fix a date for the examination of witness and shall also issue summons to witness directing them to attend or produce any document or any other thing on the fixed date.

196.3

On the date so fixed, the Security Court shall proceed to take all such evidence as may be produced in support of the prosecution. In recording the evidence, the Security Court shall strictly adhere to the admissibility and relevancy of evidence as provided in the Indian Evidence Act, 1872 as applied for the purposes of these rules by rule 185.1

196.4

Every witness shall be subject to examination-in-chief in the first instance on behalf of the prosecution, then cross-examined by the accused and then re-examined by the prosecution to explain the matters which might have arisen in the course of cross-examination. Cross-examination of a witness may in the discretion of the Security Court, be deferred until any other witness or witnesses have been examined. The Security Court may also recall any witness for further cross-examination.

196.5

At the close of the evidence for the prosecution, the accused shall be asked if he has any thing to say in his defence. After the accused has entered upon his defence, the Security Court may, on his application, issue process for compelling the attendance of any witness including witness to character for the purpose of examination, or cross-examination or production of any document or other thing unless the Security Court considers, for reasons to be recorded, that such application be refused. Similarly, the Security Court may not issue process to complete the attendance of a witness for the

purpose of cross-examination if it feels that the accused, before he entered on his defence, had already cross-examined the witness or had the opportunity to cross-examine such witness.

197.

witness in reply to defence.

- The Security Court may, if it thinks it necessary in the interest of justice, recall any witness in reply to the defence.

198.

Charges in different charge-sheet.

- When the charges at a trial by Security Court are contained in different charge-sheets, the accused shall be tried on each charge-sheet separately up to and including the stage of finding.

199.

Clearing the Court .

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199.1

The Presiding Officer holding the trial may clear the Security Court to consider the evidence or for any other purpose connected with the trial.

199.2

Subject to the provisions of sub-rule (1), all other proceedings of the Security Court including inspection of any place shall be in open court and in the presence of the accused.

200.

Verdict.

- The Security Court shall after the evidence for prosecution and defence has been heard, give its opinion as to whether the accused is guilty or not guilty of the charge or charges.

201.

Findings.

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201.1

The findings on every charge upon which the accused is arraigned shall be recorded and except as otherwise provided in these rules such findings shall be of "guilty" or of "not guilty".

201.2

When the Security Court is of the opinion as regards any charge that the facts proved do not disclose the offence charged or any offence of which he might under the Act legally be found guilty on the charge as laid, the Security Court shall find the accused "not guilty" of that charge.

201.3

The Security Court shall not find the accused guilty on more than one of two or more charges laid in the alternative, even if conviction upon one charge necessarily connotes guilt upon the alternative charge or charges.

202.

Procedure on acquittal.

- When the findings on each of the charges in charge-sheet is "not guilty" the Security Court shall date and sign the proceedings and the findings shall be announced on open Court and the accused shall be released if in Force custody in respect of those charges.

203.

Sentence.

- The Security Court shall award one sentence in respect of all the offences committed in one transaction and on which accused is found guilty.

Provided that the Security Court shall take into consideration while awarding the sentence, the general character, age, service, rank, and any recognized acts of gallantry, or distinguished conduct of the accused and previous convictions of the accused other than by a Security Court or a Criminal Court, any previous punishment awarded to him after a departmental proceeding, the length he has been in arrest or in confinement on any previous sentence and any decoration, or reward, of which he may be in possession or to which he may be entitled.

Provided further that the Security Court, where it also the appointing authority of the accused, may also pass suitable orders under section 9 read with sub-rule (2) of rule 162 and rule 207. In other cases, the Security Court shall order, the

proceedings to be sent to the appointing authority for taking suitable action under that section.

204.

Authentication of proceeding.

- The Presiding Officer shall affix his signature and the date to the finding and such signature shall be deemed to authenticate the whole of the proceedings

205.

Promulgation of sentence.

- The sentence of a Security Court shall be promulgated in the manner prevalent in the Force at the earliest opportunity after it has been pronounced and shall subject to the provisions of the Act be carried out without delay after promulgation.

206.

Transmission of proceedings of Security Court.

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206.1

The proceedings of every Security Court including the report of the Court of Inquiry referred to in rule 265 shall, without delay, be forwarded to the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

within whose command the trial was held for his information.

[***]

[Omitted by Notification No. G.S.R. 719(E) dated 31.10.2013 (w.e.f. 3.12.1987)]

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207.

Execution of sentence.

207.1

Subject to the provision of rule 162.2 every person sentenced under this Act to imprisonment may be dismissed from the Force and shall further be liable to forfeiture of any medals and decorations received by him.

207.2

Every such person shall, if he is so dismissed, be imprisoned in the civil prison, but if he is not so dismissed from the Force.

He may be confined in the quarter-guard or such other place as the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

may consider suitable.

208.

Warrants.

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208.1

Warrants for-

(a)

committing a person to civil prison to undergo imprisonment;

(b)

continued detention of a prisoner or getting him back into Force Custody by the Petitionary Authority;

(c)

discharge of a prisoner when he is pardoned or his trial is set aside or the unexpired portion of the sentence is remitted. Shall be in Form, A, Form B or as the case may be, Form C specified in Schedule X.

208.2 Such warrants shall be signed by the Presiding Officer or by the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

concerned.

209.

Sentence of dismissal.

- Sentence of Dismissal shall take effect from the date of promulgation of such sentence or from any subsequent date as may be specified at the time of promulgation by the appointing authority.

210.

Petition.

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210.1

Every accused convicted by the Security Court shall be allowed to put in one petition against the sentence to the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

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210.2

Such a petition shall be made within thirty days (excluding the time taken in procuring the copy) from the date of promulgation of the sentence. Provided the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

may entertain a petition after the expiry of the period of thirty days if he is satisfied that the petitioner was prevented by sufficient cause from filing the petition in time.

210.3

The [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

, while disposing of such petition shall consider the correctness, legality or propriety of the proceedings and of the sentence awarded by the Security Court and pass suitable orders including fresh trial by another Security Court.

210.4

The [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

may annul the proceedings of any Security Court at any stage on the ground that they are not being carried on in accordance with provisions of the Act and the rules or that they are likely to result in miscarriage of the justice and may pass such orders as he deems fit.

Chapter XIII

Appeals And Revision

211.

appeals against orders of suspension.

- An enrolled member of the force may appeal against an order or suspension to the authority to which the authority which made or is deemed to have made the order is immediately subordinate.

212.

Appeal against orders imposing punishments.

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212.1

An enrolled member may appeal against an order imposing upon him any of the punishments specified in rules 148 and 149 to the authority immediately superior to the authority imposing the punishment

Provided that there shall be no appeal against the Judgment of the Security Court or against an order of discharge of a recruit trainee who has not been formally enrolled as a member of the Force.

Provided further that appeals against the orders of a [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

or the Deputy Inspector General, Railway Protection Special Force, shall lie to the Director-General and against the orders of the Director-General to the Central Government.

212.2

There shall be no second appeal. But when the appellate authority imposes a punishment higher than the one appealed against, an appeal shall lie to the authority next superior to the appellate authority only if the punishment imposed by the appellate authority is higher than what was within the competence of the authority which imposed the original punishment.

213.

Form and contents of appeal.

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213.1

Every enrolled member of the Force submitting an appeal shall do so separately and in his own name. An appeal forwarded through or counter-signed by a legal practitioner or a defence counsel on a "friend" shall not be entertained and the same shall be returned to the appellant with the direction to submit it directly and under his signature.

213.2

The appeal shall be addressed to the authority to whom the appeals lie, shall contain all material statements and arguments on which the appellant relies, shall not contain any disrespectful or improper language, or irrelevant allegations and shall be complete in itself.

214.

Submission of appeals.

- Every appeal, whether the appellant is still in the force or not, shall be submitted to the authority made the order appealed against:

Provide that if such authority is not the head of the office under whom the appellant may be serving, or if he is not in service, the head of the office under whom he was last serving, or is not subordinate to the head of such office, the appeal shall be submitted to the head of such office who shall forward it forthwith to the said authority.

215.

Withholding of appeals.

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215.1

The authority which made the order appealed against may withhold the appeal

if-

(a)

it is appeal against an order from which no appeal lies; or

(b)

it does not comply with any of the provisions of rule 213; or

(c)

it is not submitted within the period specified in sub-section 9 and no cause is shown for the delay; or

(d)

it is a second appeal where original appeal has already been decided by the competent authority:

Provide that an appeal withheld on the ground that it does not comply with the provisions or rule 213 shall be returned to the appellant and, if re-submitted within thirty days of such communication, after compliance with the said provisions, shall not be withheld,

215.2

Where an appeal is withheld the appellant shall be informed of the fact within thirty days together with brief reasons therefore. The appellant may, thereafter submit the appeal to the appellate authority concerned within thirty days of the date of communication of the order withholding the appeal.

215.3

A quarterly statement of all appeals withheld with brief reasons in respect of each appeal shall be furnished by the withholding authority to its superior authority.

216.

Transmission of appeals.

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216.1

The authority which made the order appealed against shall, without any avoidable delay, transmit to the appellate authority every appeal which is not withheld under rule 215 together with the following particulars and records:

(a)

brief history of the case:

(b)

parwise comments on the appeal;

(c)

disciplinary case file in original, with all its connected papers;

(d)

service book;

(e)

confidential rolls folder, if maintained.

216.2

The authority to which the appeal lies may direct transmission of any appeal withheld under rule 215 and thereupon such appeal shall be transmitted to that authority together with the comments of the authority withholding the appeal and the relevant records.

217.

Consideration of appeals.

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217.1

While considering the appeal, the appellate authority may, on request, grant personal hearing to the aggrieved enrolled member of the Force in case it considers it in the interest of administration and justice.

217.2

In the case of an appeal against an order of suspension, the appellate authority shall consider whether, in the light of the provisions of rules 134 and 135 and having regard to the circumstances of the case, the order of suspension is justified or not and confirm or revoke the order accordingly.

217.3

In the case of an appeal against an order imposing any of the punishments specified in rules 148 and 149 or enhancing any penalty imposed under the said rules the appellate authority shall consider:-

(a)

Whether the procedure prescribed in these rules has been complied with, and if not whether such non-compliance has resulted in violation of any constitutional provisions or in miscarriage of Justice;

(b)

Whether the findings are warranted and based on evidence on record; and

(c)

Whether the punishment or the enhanced punishment imposed is adequate or inadequate or severe and pass speaking orders for-

(i)

setting aside, confirming, reducing or enhancing the punishment, or

(ii)

remitting the case to the authority which imposed or enhanced the punishment or to any other authority with such directions as it may deem fit in the circumstances of the case:

Provided that -

(i)

no order imposing an enhanced punishment shall be passed unless the appellant is given an opportunity of making any representation which he may wish to make against such enhanced punishment; and

(ii)

if the enhanced punishment, which the appellate authority proposes, is one of the punishments specified in clause (a) to (d) of rule 148.2 and an inquiry under rule 153 has not already been held in the case, the appellate authority shall, subject to the provisions of rule 153 itself hold such inquiry or direct that such inquiry be held and thereafter on a consideration of the proceedings of such inquiry pass such orders as it may deem fit.

218.

Implementation of orders in appeal.

- The authority which made the order appealed against shall give effect to the orders passed by the appellate authority.

219.

Revision.

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219.1

An enrolled member of the Force whose appeal has been rejected by a competent authority may prefer an application for revision to the next superior authority. The powers of revision may be exercised only when,-

(a)
in consequence of some material irregularity, there has been injustice or miscarriage of justice; or

(b)
fresh evidence is disclosed which could not be produced or was not available at the time of passing of the impugned order.

219.2
The procedure prescribed for consideration of appeals under rule 217 shall, so far as may be, apply to application for revision.

219.3
The superior authority while passing orders on the application for revision may at its discretion enhance punishments: Provided that before enhancing the punishment, the aggrieved member shall be given an opportunity to show cause why his punishment should not be enhanced:

Provided further that subject to the provisions of sub-rule (2) of rule 212, an order enhancing the punishment shall be treated as an original order for the purpose of appeal, except when such an order has been passed by the Central Government in which case no further appeal shall lie. Where such order has been passed by the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]
, appeal shall lie to the Director-General and in the case of such order by the Director-General, the appeal shall lie to the Central Government.

219.4
Any authority superior to the authority making the original order may, on its own motion, or otherwise, call for the records of any inquiry and revise any order made under these rules and may:-

(a)
confirm, modify or set aside the order; or

(b)
confirm, enhance, reduce or set aside the punishment imposed by the order, or impose any punishment where no punishment has been imposed; or

(c)
remit the case to the authority which made the order or to any other authority directing such authority to make such further inquiry as it may consider proper in the circumstances of the case; or

(d)
pass such other orders as it may deem fit:

Provided that no action under this sub-rule shall be initiated after the expiry of one year from the date of the order aforesaid:

Provided further that no proceeding for revision shall be commenced until after-

(i)
the expiry of the period for making an appeal specified in sub-section (2) of section 9; Or

(ii)
the disposal of the appeal, where any such appeal has been preferred:

Provided further that in a case in which it is proposed to enhance punishment further, the aggrieved member shall be given an opportunity to show cause either orally or in writing as to why his punishment should not be enhanced.

220.
Time limit for disposal of appeal or revision.

220.1
Every appeal or application for revision submitted by an enrolled member of the Force shall, as far as possible, be disposed of within a period of three months from the date of its receipt by the authority competent to decide it.

220.2
When more than one enrolled member in the same case are awarded punishment against which an appeal lies, all appeals should be forwarded together. If any one of such members does not wish to appeal, the fact shall be noted.

Chapter XIV

Investigation And Prosecution

221.

General.

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221.1

Every Post Commander shall enter or cause to be entered reports of all special occurrences on railways and all crimes against railway property in such records and registers and in such manner as are specified in these rules, or as may be specified by the Directives.

221.2

The post Commander shall:

(a)

convey a gist of each such report in writing to higher authorities in such forms as may be specified by Directives;

(b)

in case of crime against railway property make or cause to be made without any delay all possible efforts to detect the case, recover stolen railway property, arrest the offenders and put them up for trial before a court; and

(c)

enter the records as specified in these rules or Directives the day to day progress made in the inquiry into the matter and shall submit without avoidable delay continuation report at the close of the day to such superior offices as may be specified by Directives.

221.3

Where the Post Commander is not empowered to take action for any crime against railway property, he shall lodge a report at the Police Station having jurisdiction.

221.4

Expunction of crime:- After registration of a case of an offence against railway property, if as a result of inquiry, it is found that no such offence actually took place, the Post Commander after obtaining orders from the Divisional Security Commissioner, shall expunge the case from his records and inform the Police Station where such case may have been registered. In Special report cases, sanction of the Security Commissioner shall be required for expunging the cases.

222.

Registration of crime.

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222.1

All cases of crime affecting railway property shall be entered at the Post where the crime is first detected either in the "Localised Crime Register" or in the "Unlocalised Crime Register" as the case may be. "Localised" crimes are those crimes where the actual place of theft or pilferages or mis-appropriation, etc. of railway property namely, booked consignment and railway material, is known or is prima facie apparent from the inspection of the scene to have taken place within the jurisdiction of the post concerned while the "unlocalised" crimes are those crimes where the actual place of crime cannot be immediately known or cannot be thus ascertained.

222.2

In both the registers, the crime shall be entered in chronological order and numbered serially.

222.3

In case the "unlocalised" crime after inquiry appears to have taken place within the jurisdiction of the Post, the same shall be transferred to the "Localised Crime Register" of the Post on the day on which this localization takes place and given the next serial number. The same shall be expunged from the "Unlocalised Crime Register".

222.4

At the end of each month, a summary shall be prepared in the "unlocalised Crime Register" indicating the number of cases transferred to -

(a)

Localised Crime Register,

(b)

Other Posts of the same division.

(c)

Other divisions,

(d)

Other zonal railways, and

(e)

Pending inquiry of localization.

222.5

For the "Localisation Crime Register", two summaries shall be prepared - one shall be cause-wise and the other commodity-wise. The cause-wise summary shall have its subheading as -

(a)

Running Train Thefts;

(b)

Yard Thefts;

(c)

Good shed, Parcel godowns and platform Thefts;

(d)

Pilferages;

(e)

Thefts of fittings from rolling stock;

(f)

thefts of Railway material including coal (except theft of fittings from rolling stock);

(g)

Miscellaneous.

Each summary may have further sub-classifications as may be prescribed through the Directives.

222.6

The list of the Commodities for which summary may be prepared shall be specified by the concerned [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

keeping in view the commodities generally affected in that zonal railway.

223.

Seizures and recoveries of railway property.

223.1

All seizure or recoveries of railway property shall be entered in Malkhana Register and an entry to this effect made in the concerned Crime Register after its classification as-

(a)

pertaining to cases in which theft or shortage memo has been issued or received; and

(b)

where no such memo has been issued or received.

In respect of the first category, whenever any property is recovered or criminals are taken into custody, relevant entries shall be made in the "Localised Crime Register" against the particular crime already registered. Such a seizure shall not be reflected separately in the RP(UP) Act Register though such seizures shall invariably be taken into account for compilation of statistics in respect of action under the Railway property (Unlawful Possession) Act, 1966.

223.2

In all other cases, where the seized property cannot be linked to the railway property for which theft or shortage memo has been issued or received shall be entered in the Railway Property (Unlawful Possession) Act Register maintained for this purpose and dealt with further.

223.3

In cases where the property recovered is partly connected to theft or shortage and partly is seized as having been unlawfully obtained, then such a haul shall be split into two for purposes of registration. But if the criminal happens to be one and the same person, then his name shall be entered in the register in which the bulk of the property recovered or seized is reflected and a cross-reference made in the Railway Property (Unlawful Possession) Act Register.

223.4

Any railway property recovered by the Police shall also be reflected in the record of the Post along with the particulars of the criminal(s) for purposes of accounting.

224.

Procedure for dealing with shortages.

-

(a)

All such shortages which are discovered either at unloading or repacking or transshipment or at destination station from resealed wagons shall be entered in the "Unlocalised Crime Register" of the Post unless the same appears to have taken place within the jurisdiction of the Post when it should be entered in the "Localised Crime Register".

(b)

After preliminary inquiry, the case may be transferred as per procedure given in rule 226 to the Post in whose jurisdiction the crime is suspected to have taken place or the last resealing station in case the wagon was resealed at more than one station en route.

224. 2 Shortage from seal intact wagons:

(a)

Full packages shortages:- All cases of full packages shortages shall be entered in a separate register and report sent to the loading station. Subsequently, if the consignment is received, a remark to that effect shall be made in the register and the case expunged. If the consignment is not received within thirty days, the Post concerned to whom the case has been transferred shall register the case in separate Register and make enquiries accordingly. This procedure shall apply mutatis mutandis to wagons which are loaded at transshipment points.

(b)

Partial shortages: All case of partial shortages from seal intact wagons, in which criminal interference is suspected, shall be registered at the unloading point in "Unlocalised Crime Register" and transferred to the Post concerned in which the loading stations fall, who shall note it in the "Localised Crime Register" for further action.

224.3

Shortages from open wagons or body panel cut or crevices - Cases of shortages from open wagons or body panel cut of door crevices, etc. shall be registered in the "Unlocalised Crime Register" of the Post at the point of unloading or transshipment or re-packing or destination where these are reported in the first instance if on inquiry, it is proved that the occurrence took place in the jurisdiction of another Post, which the train or wagon passed, the case shall be transferred to that Post registration in the "Localised Crime Register".

224.4

Shortages reported from the brake vans

(a)

Sealed vans. All cases of shortages from the Seal intact Vans shall be dealt with as per procedure laid down for seal intact wagons.

(b)

Shortages from the charges of Assistant Guard in-charge of the brake van: All such shortages shall be registered and proceeded as in the case of shortages from resealed wagons.

225.

Nature of action to be taken where the wagons are resealed during transit.

-

225.1

In all cases of resealing of wagons, the Post Commander shall conduct or institute immediate inquiries to ascertain whether criminal interference be taken place with the wagon or not.

225.2

If so and in case the criminal interference appears to have place within his jurisdiction, he shall immediately take measures or cause the means to be taken to recover the stolen property.

225.3

In case, the criminal interference appears to have taken place outside his jurisdiction, he shall send the communication to his concerned counterpart by the quickest possible means who shall take actions as above. In either case, an intimation shall also be sent to the destination station. The above procedure shall also apply to cases where the

wagon already possess one or more reseals.

226.

Transfer of cases.

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226.1

Whenever a case is registered in an "Unlocalised Crime Register", the Post Commander concerned shall make or shall cause to be made inquiries upto the placewhere the criminal interference prima facie appears to have taken place and transfer the case to the Post having jurisdiction:

Provided that depending on the nature and value of the property lost , the Director-General may extend or limit the extent of the place to which such inquiriesbe made before transferring the case.

226.2

From one Post to another Post in the same divisions:-If on inquiry, the Post Commander of a Post where the case has beenregistered, comes to the conclusion that criminal interference took place in anotherPost of the same division, the Post Commander shall immediately inform the officerin-charge of that Post and transfer the case to him under intimation to his Divisional Security Commissioner . The Post Commander to whom the case has been thustransferred shall register it in the "Localised Crime Register" and intimate the crimenumber to the Post concerned which has transferred the case for record.

226.3

Cases to be transferred to other division:

(a)

In the case pertains to the adjoining division of the same zonal railway, thepost Commander shall intimate the facts of the case and send all papers to the Post concerned of the division under intimation to his Divisional SecurityCommissioner. If the Post is not of adjoining division, then the papers shallbe routed through his Divisional Security Commissioner but an intimationshall also be given by quickest possible means by the Post Commander to hiscounterpart for taking immediate action, if any. The Post Commander towhom the case has been referred shall register the case in the "LocalisedRegister".

(b)

At the end of the month, the Divisional Security Commissioner shall senddetails of such cases to the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]
for information andfollow up action.

226.4

Cases to be transferred to other zonal railways:

(a)

If the case pertains to another zonal railway, the papers shall be sent by the Post Commander to his Divisional Security Commissioner who in turn shallpass them to his [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

. How ever, an intimation shallalso be sent by the quickest possible means by the Post Commander to theconcerned Post Commander of that railway for action, if any.

(b)

At the end of the month, each [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

shall send a consolidated statement of such transferred cases to the Chief Security Commissioner(Railway Security) in the office or the Director-General forinformation and follow up action.

227.

Reconcilliation of transferred cases.

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227.1

A Post Commander, to whom the case has been transferred, shall at onceregister the case.

227.2

In case after inquiry, a Post Commander finds that the claim did not occur in his jurisdiction, he shall report full to his

Divisional Security Commissioner whose decision pertaining to such disputed cases of his division shall be final., The decision of the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

in any inter-divisional disputed case of his zonal railway and of the Director-General in an inter-zonal disputed case shall be final.

227.3

During January, April, July and October of each year, each Divisional Security Commissioner, zonal [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

and the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

(Railway Security) shall convene a meeting of the respective officers dealing with crime statistics to reconcile the figures of transferred cases, involving loss of railway property exceeding a value to be specified by the Director-General.

228.

Investigation or inquiry into important cases of crime involving railway property.

- Inquiry or investigation into important cases of crime involving railway property those having inter-Post, inter divisional or inter-zonal ramifications may be entrusted to the personnel of the central Crime Bureau, Crime Wing of the Security Commissariat or the division respectively by the Director-General, [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

or the Divisional Security Commissioner as the case may be.

229.

Special Reports.

- In cases of thefts registered at the Post involving loss of booked consignments or railway material exceeding the value to be fixed by the Director General from time to time the Divisional Security Commissioner shall submit special report addressed to the Director-General with copy to the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

and to concerned officers as may be specified through the Directives.

230.

Special Occurrences.

- Whenever and occurrence takes place on railways under any of the following categories, the Divisional Security Commissioner concerned shall submit a special occurrence report addressed to the Director-General with copy to the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

and to other officers as may be specified through the Directives.

(a)

dacoity;

(b)

robbery

(c)

murder;

(d)

fire incidents involving loss of railway property of a value to be fixed by the Director-General or explosion involving loss of life or damage to railway property;

(e)

tampering with track, sabotage and serious accidents;

(f)

serious cases of hooliganism and rowdyism with in railway premises and prolonged holding up of trains due to agitations, dharnas etc.;

(g)

cases in which a railway employer or a member of the Force in duty has been assaulted or arrested or has opened fire;

(h)

theft of arms, ammunitions and explosives;

(i)
any other case which in the opinion of the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]
is fit to be classified as such.

231.

Prosecution of cases and disposal of seized or recovered property.

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[***]

[Omitted by Notification No. 719(E) dated by 31.10.2013 (w.e.f. 3.12.1987)]

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231.2

The Public Prosecutor of the Assistant Public Prosecutor as may be detailed for the purpose shall represent the railways on all matters connected with that case.

231.3

Custody and disposal of seized or recovered property: The custody and disposal of seized or recovered property shall be in accordance with the provisions contained in the Police Regulation of the State in which a Post is located. The [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]
shall issue detailed instructions on the subject on that and in conformity with these rules.

232.

Monthly Crime Review.

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232.1

A monthly Crime Review giving a factual picture of the working of the Force in regard to its statutory duties and functions shall be prepared by the Divisional Security Commissioner and submitted to the concerned [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]
so as to reach him by 7th of the month following the month to which it relates.

232.2

The [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]
shall prepare a similar review for his zonal railway and shall submit it to the Director-General so as to reach him by the 15th of the month following the month to which it relates.

232.3

The monthly Crime Review shall be prepared in accordance with the instructions issued by the Director-General from time to time.

Chapter XV

Rewards And Awards

233.

Power to grant monetary rewards.

- Monetary rewards may be granted out of the sanctioned grants to the enrolled members including direct recruits of the Force, non-gazetted government servants, members of State Police and the railway servants of the public in accordance with the provisions hereinafter contained.

234.

Eligibility for monetary rewards.

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234.1

Monetary rewards may be granted to the enrolled members of the Force for -

(a)

doing outside work requiring special courage, skill or initiative, such as -

- (i)
the arrest of a criminal; or
- (ii)
securing information leading to the detection of a crime or matters connected therewith; or
- (iii)
making exceptionally good inquiries; or
- (iv)
an encounter with a criminal in connection with protection and security of the railway property.
- (c)
doing work requiring prompt, honest and intelligent observance of and obedience to orders so as to be of material assistance in the protection and security of railway property.
- (d)
Doing extra hard work in connection with the protection security of railway property or in connection with a big operation against hostile or lawless elements;
- (e)
Smartness, marksmanship, diligence, praise-worthy attention to the railway users or for any other purpose which is calculated to promote the efficiency of the Force:
Provided that "general good work" of efficient discharge of ordinary duties shall not be a ground for grant of monetary rewards nor monetary rewards be granted on request.

234.2

Monetary rewards may be granted to the non-gazetted government servants including members of the State Police and other railway servants and the members of the public as an incentive for assisting the Force-

- (a)
in the detection of any serious case; or
- (b)
in the apprehension of an offender; or
- (c)
in resisting a criminal or an anti-social element; or
- (d)
for any other purpose, which is for better protection and security of the railway property.

234.3

Monetary rewards in the form of books or articles of value to be fixed through the Directives for such prize may also be granted to enrolled members (including direct recruits) of the Force for proficiency during for every batch of trainees who pass out of the training college of training centre, as specified below:

- I. Prize - for all-round efficiency.
- II. Prize - for all-round proficiency in indoor subjects.
- III. Prize - for proficiency in parade, musketry and sports:

Provided that it shall be permissible to grant III prize to a trainee who has also been granted first prize and of the second prize.

235.

Authorities competent to grant monetary rewards.

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235.1

The powers of various superior officer competent to grant monetary rewards under rule 234 shall be as specified in Schedule II.

235.2

A monetary reward under rule 234 shall be granted by an officer competent to grant the same if he is of opinion, for reasons to be recorded in writing, that the person fulfils the requirements in this behalf.

235.3

The order granting such monetary reward shall indicate the reasons therefore and the provision of the sub-rule under which it is granted.

235.4

The procedure for payment of rewards to the recipients shall be such as maybe specified by the Directives.

236.

Monetary rewards offered by the General Manager..

- Superior officer of the Force may permit an enrolled member of the Force to accept monetary reward offered by the General Manager or by any other authority in case he is of the opinion that it falls within the purview of rule 234.

237.

Awards of decorations and medals.

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237.1

All the members of the Force, irrespective of their ranks shall also be eligible to all such awards, decorations and medals to which members of other armed forces of the Union and personnel of the State Police are entitled.

237.2

The conditions of eligibility and the order of procedure of wearing of such medals and decorations shall be such as may be determined by the President from time to time.

237.3

The members of the Force shall also be eligible to receive other medals and decorations as railway servants.

238.

Award of Director-General's commendation letter and insignia.

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238.1

The Director-General may issue commendation letters to such members of the Force who may have done exceedingly well in the performance of their duties in operations as well as during peace time. Such Commendation letters may be issued for-

- (a) any conspicuous achievement during operation;
- (b) doing any commendable work in natural calamities;
- (c) any outstanding achievements in sports international level;
- (d) effecting any innovation which may bring significant improvement in the working of the Force;
- (e) maintaining clean and good record of service for 25 years;
- (f) accident free driving and good record for a continuous period of 20 years.

(g)

Processing of difficult cases;

(h)

Any other conspicuous and outstanding work which may be considered of a commendable nature; and awarded on the eve of the anniversary day of the Force.

238.2

Such awardee shall wear an insignia - a blue elliptical disc- on the upper right hand side pocket above name plate on his uniform. For each commendation, the awardee shall be entitled to put one star on the disc.

239.

Entry of rewards and awards in service records.

- Rewards, or awards whether in cash or in the form of decorations, medals and commendations shall be duly entered in the Character and service Roll of the member concerned and shall always be taken into consideration in any affecting his placement and promotion.

Chapter XVI

Aid To Civil Power

240.

. The Central Government or the Director-General or the [Principal Chief Security Commissioner]
[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]
or any other officer acting on their behalf may order any member of the Force to proceed to any place in India for duty in aid to civil power or for any other purpose.

241.

Formation of Mobilisation Detachments.

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241.1

Whenever such an eventuality arises the [Principal Chief Security Commissioner]
[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]
may order mobilization with his zonal railway. On such order, mobilisation Detachment shall be formed by withdrawing ,
preferable young and healthy members, from desired ranks of the Force the Posts and other units. As far as may be
possible, each section of 10 men shall be provided with a Naib Subedar. Platoons shall be permanently numbered and
shall correspond to the groups of Posts or Companies from which they are drawn and shall take positions according to
that numbering whenever the Force is mobilized.

241.2

Senior officer to command:-Subject to rule 24, whenever a Mobilisation Detachment is raised or deputed , the
senior most officer of the Force present in that detachment shall take command and
shall be responsible for the proper supervision, discipline, conduct and control of the
members under his command.

241.3

It shall be duty of the Detachment Commander to-

(a)

carry out all instructions regarding training, kit inspection, maintenance of arms and ammunitions and other stores etc.
issued from time to time by the headquarters;

(b)

ensure that no article of stores from the headquarters is loaned out or given to any other organisation without the
express sanction of the headquarters; and

(c)

ensure that all stores of the Force shall be used only for government duties.

242.

Deployment at the destination station.

-

242.1

On arrival at destination station, the Detachment Commander shall report to the accredited officer of the State
Government under whose general report and directions he is required to work.

242.2

The Detachment Commander shall maintain a close contact with the local authorities and carry out to the best of his
ability their requests in regard to mutual cooperation and the maintenance of law and order.

242.3

Under no circumstances shall the Force interfere with the internal administration of the State and shall limit its operation
within the role assigned by the State authorities. Ordinarily, the Force shall not undertake any of the normal routine
duties of the State Police without the approval of the [Principal Chief Security Commissioner]
[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]
, who in doubtful cases, may refer the matter to the Director-General for orders.

243.

Dispersal of unlawful assembly.

-

243.1

Deputation of Magistrate:-When the Detachment Commander is of opinion that the use of force or opposition to the Mobilisation detachment is probable or when a detachment is deputed for a protective duty during a strike or insurgency or any other uprising, he may move that a Magistrate be deputed with it.

243.2

Action in the absence of Magistrate:-Whenever the public security and peace shall be manifestly by an unlawful assembly or any human obstruction in the movement of railway property shall have to be removed and no Executive Magistrate can be communicated with without jeopardizing the situation further, any superior officer of the Force may disperse such an unlawful assembly or remove the obstruction by force and may arrest and confine any person constituting that unlawful assembly or obstruction.

Provided that before using force, the superior officer of the Force shall command the unlawful assembly of person constituting the obstruction to disperse and give a warning that if they do not disperse, they shall be dispersed by force.

243.3

Use of Force:-If upon being so commanded any such assembly does not disperse or if without being so commanded the assembly conducts itself in such a manner as to show determination not to disperse, such officer shall proceed to disperse such an assembly by force:

Provided that care shall be taken to use minimum force which is necessary to disperse the assembly or to protect the life and property and secure safety of the contingent of the Force.

243.4

Opening of Fire: Fire shall only be opened under instruction from an Executive Magistrate or when acting in his own discretion such officer deems it absolutely necessary to do so for the protection of life and property.

243.5

Responsibility of Executive Magistrate:

If the Executive Magistrate is present, the responsibility for using force against or opening fire on, unlawful assembly shall rest with him and he alone shall direct the Detachment Commander (in writing, if possible) to use force or open fire. When the Executive Magistrate shall not fetter the discretion of the Detachment Commander in making his dispositions.;

243.6

Responsibility of Detachment Commander. -

(a)

Actual order to fire invariably be given by-

(i)

Detachment Commander or under his special instructions by any junior officer; or

(ii)

an officer-in-command of a party further detached from the main body.

(b)

Order to cease fire shall be given by the Detachment Commander or such other Officer-in-command as soon as the mob shows disposition to retire or disperse. The Executive Magistrate, if present, shall also have the powers to order fire to cease.

243.7

Action after the dispersal of the mob:-When an unlawful assembly has been dispersed, first aid shall be rendered to the wounded who shall then be sent to the nearest hospital for treatment. Thereafter, the Executive Magistrate or officer-in-command shall draw up an accurate report of all that transpired, noting the rounds served out and expended and all the details. The officer-in-command shall then transmit copies of the report by the quickest means to the officer-in-command of the nearest Police Station as well as to such other officers as may be specified in the Directives.

244.

Limitations to inquiry.

- No inquiry by a State Government shall be ordered, without consultation with the Central Government, into any action taken by an officer of the Force in pursuance of duty in aid to civil power.

245.

Expenditure incurred in providing aid to Civil Power.

- All expenditure incurred in aid to civil power shall be borne and recoverable from the State Government concerned unless such expenditure is waived fully or partly by the Central Government. Such claims shall be preferred by the

[Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]
in consultation with Financial Adviser-cum-Chief Accounts Officer concerned in whose jurisdiction Mobilisation Detachment was deployed.

246.

Procedure when Force open fire in exercise of the right of defence of person or property.

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246.1

Whenever the Force uses fire arms in exercise of right of defence of person or property, a court of Inquiry referred to in rule 265 shall invariably be ordered by the [Principal Chief Security Commissioner]
[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

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246.2

Soon after the Force has opened fire, the senior-most member present on the occasion shall-

(a)

immediately send an intimation to the nearest Police Station and arrange to cordon off the area so that the scene is preserved intact. He shall, however, render first aid to the injured and arrange to send them to the nearest hospital;

(b)

cause the empty cartridge cases to be picked up and checked with the number of rounds served out;

(c)

draw up a concise but accurate report of the occurrence with minute details of all the relevant facts;

(d)

send copies of such concise report by quickest means to the District Magistrate, the Superintendent of Police of the District concerned besides sending them to his [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

and the Divisional Security Commissioner.

Chapter XVII

Plaints And Protection

247.

Plaints.

- Every member of the Force against whom any criminal prosecution or a civil suit is instituted shall at once inform the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

, or, as the case may be, his controlling office.

248.

Public complaints against misconduct of the members of the Force..

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248.1

Whenever a complaint against the misconduct of any member of the Force is received from the members of the Public or where such complaint is received through a court wherein civil or criminal proceedings against a member of the Force have been instituted or otherwise, and controlling officer of such member of the Force is of the opinion that allegation are verifiable or otherwise an inquiry is called for he may proceed to inquire himself into the complaint against a member of the Force specified in column (1) of the table below or depute any other officer as specified in the corresponding entry in column (2) of the said table:

TABLE

Members of the Force against whom complaints received

Inquiry Officer

(1)

(2)

Constables/ [***]/ Head Constables

Of and above the rank of Inspectors.

Sub-Inspector/Assistant Sub-Inspector

Of and above the rank of Assistant Commandant

Inspector/Assistant Security Commissioner

Of and above the rank of Security Commissioner.

Security Commissioner or above

Chief Security Commissioner or the Additional or the Deputy Chief Security commissioner, if so authorized by him.

248.2

Complaints cells. - -There shall be separate complaint cells at the head quarters each of the Director-General, [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]
and the Commanding officer for handling, monitoring and ensuring the expeditious disposal of such complaints.

248.3

Manner of conducting inquiries. - -While conducting, the inquiries the Inquiry shall so far as may be possible, proceed as under:

(i)

Complaints shall be heard in detail and every effort shall be made by the Inquiry Officer himself to ascertain the truth by examining such of the witnesses as he may deem necessary, without insisting on the complaints himself to secure the presence of witness;

(ii)

Important witness shall as far as possible be examined in the presence of the complaints so that he has the satisfaction of what they depose;

(iii)

through out the conduct of inquiry Officer shall scrupulously avoid going anything might create a doubt in the mind of the complaint about the objectivity and impartiality of the inquiry.

(iv)

the inquiry shall, as far as practicable be conducted at an appropriate public building of place in or near the complaint's place of residence.

248.4

The report of the Inquiry Officer may be treated as classified where the controlling officer for reasons to be recorded in writing so direct.

249.

Prosecution by a public servant.

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249.1

Proceedings initiated by Government shall not give any assistance to a member of the Force for his defence in any proceedings, civil or criminal instituted against him by the State in respect of matters arising out of defence shall be paid to him in the event of his acquittal and where it is shown that his conduct through out was free from blame and that the member acted or purported to have acted in good faith in discharge of his official duties. If, through acquitted of the offence charged, his conduct does not appear to be free blame, he shall receive only such portion, if any, of the costs incurred by him, as the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]
may deem fit.

249.2

TO enable the member of the Force to meet the expenses of his defence, the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]
may sanction at his discretion, an interest free advance of an amount to the extent of three month's substantive pay of the member, a bond in the form given in Schedule XI. The amount so advanced shall be subjected to adjustment subsequently against the amount, if any, to be reimbursed to the member under sub-rule (1).

250.

Prosecution by private person.

-

250.1

A member of the Force shall always be defended in a civil suit or a criminal complaint instituted by a private person when it appears to the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

concerned that he had acted or purported to have acted in good faith in discharge of his official duties. The member thus being defended shall be deemed to be defending himself as on duty.

250.2

In all other cases arising out of employment where the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

declines to defend, the member concerned may take such measures, as he considers necessary, at his own expenses, but the reasonable costs of defence shall be paid to him in the event of his acquittal and where it is shown that his conduct throughout had been free from all blame. If, though acquitted of the offence charged, his conduct does not appear to be free from blame, reimbursement of cost shall be allowed in the manner prescribed under sub-rule (1) of rule 249.

250.3

In either case, the member of the Force may be allowed a monetary advance as prescribed under sub-rule (2) of rule 249.

251.

Procedure for undertaking defence.

- Whenever the cost of defence of the member of the Force is sanctioned to be borne by the railway administration, it shall be left to the member concerned to engage Government Pleader, a public Prosecutor or a private legal practitioner of his choice:

Provided that if a legal practitioner is engaged, the scale of fees to be reimbursed to the member by the Railway administration shall be limited to the amount fixed by the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

in consultation with the Law Officer of the zonal railway.

252.

Refund of cost of Railways.

- If the member of the Force succeeds in the legal proceedings, and is awarded costs or damages or compensation by the court, the member shall refund the amount to the extent of expenditure incurred by the railway administration.

253.

Proceedings initiated by a member of the Force to vindicate his official conduct.

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253.1

If a member of the Force is allowed to vindicate his conduct in a Court of law when specific allegations are made in the press or otherwise against him as an individual member of the Force, the Railway administration shall defray reasonable costs of his defence subject to the provision of rule 249 provided that the member concerned is fully and honourably discharged of the allegation made against him.

253.2

The [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

may sanction advance as provided under sub-rule 249.

253.3

A member shall not be entitled to receive any reimbursement of the cost or expenditure if he resorts to such litigation of his own and without the sanction to the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

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254.

Cost of filing appeal, etc..

- Where the Railway administration has undertaken the defence of a member of the Force, but the decision of the first court is against him, the question whether an appeal should be filed at the cost of Railway administration or whether

the damages awarded to the plaintiff or the fine imposed on the member should be paid by the railway administration, shall be decided by the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

either on the application of the member concerned who should move his immediate superior officer in the matter or on the recommendation of his superior officer.

Protection.

255.

Protection being an armed force of the Union.

- In any suit or proceeding against any member of the Railway Protection Force, being an armed force of the Union, he shall in addition to the provision of section 20, be eligible for protection under-

(a)

section 45, 132 and 197 of the Code of Criminal Procedure, 1973;

(b)

the Judicial Officers Protection Act, 1850 in so far as the members discharging magisterial powers and functions under 17 are concerned.

256.

Protection where a member of the Force has opened fire.

- Whenever a member of the Force has opened fire in pursuance of his statutory duties of providing better protection and security to railway property and for matters connected therewith or in exercise of the right of defence of person or property, resulting in such or injury to the other party, the result of the magisterial or judicial inquiry instituted in this behalf shall be awaited. A member of the Force shall ordinarily be prosecuted and/or disciplinary proceeding instituted against him only when he is adversely commented upon in that inquiry or when the Court of Inquiry instituted under rule 265 finds his conduct suspicious.

Chapter XVIII

Liaison

257.

Liaison with civil administration of the State.

- The Railway Protection Force shall act as a bridge between the railway administration and the State's civil administration and Police (including railway Police) for providing better protection and security to railway property and for matters connected therewith.

258.

Liaison with Police.

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258.1

General.- Whenever any person arrested under section 12 is handed over, or any property recovered under section 13 is given, to the Police, or any other report relating to an offence is lodged with them, an acknowledgement shall be taken by the concerned member of the Force along with a true copy of the report recorded in the First Information Book. The Post Commander shall subsequently monitor the progress.

258.2

Whenever approached by the Police (including railway Police) to keep unobtrusive watch at places within railway premises to detect crime against railway property or to cause the arrest of culprits or recovery of property involved in an offence, the Post Commander or Company Commander may depute the available men to assist such Police after recording a report in the Daily diary.

259.

Periodical meeting with Police.

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259.

1.

Every Post Commander shall hold regular monthly meeting with the officer-in-charge of the Railway Police Station in his jurisdiction to -

(a)

review the crime situation;

(b)

exchange information useful and necessary for better control, prevention and detection of crime affecting railway property; and

(c)

maintain law and order in railway trains and railway premises.

259.2

The Post Commander shall also attend the monthly crime meeting of the Superintendent of Police of the district in which his post is situated and exchange information about-

(i)

Criminals operating on the railways;

(ii)

activities of receiver of stolen railway property;

(iii)

absconders and wanted persons and progress achieved in their arrests during the previous month.

(iv)

action being taken or proposed to be taken at vulnerable or black spots and the co-operation or assistance required by the Force from the district Police in this regard.

259.3

The Asst. Security Commissioner shall hold co-operation meetings with the concerned Sub-Divisional Police Officer of the Railway Police once in two months and its minutes shall be submitted to the Divisional Security Commissioner.

259.4

The Divisional Security Commissioner shall hold co-ordination meetings with the Superintendent Railway Police and Superintendent of Police of the district falling in his jurisdiction once in three months for ensuring better co-operation and coordination between the Force, the Railway Police and the District Police. These meetings shall also be the forum for exchange of information and intelligence about crime, criminals and other matters relating to maintenance of law and order on railways and crime affecting the security and movement of railway property.

259.5

The [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

with a view to maintaining close liaison with the State Police authorities:

(a)

Shall hold periodical meetings and conference with his counterparts in State Police including railway Police and the civil administration for discussing all matters affecting railway security;

(b)

Avail himself of every opportunity to exchange information relating to crime on the railways with his counterparts; and

(c)

Exchange crime reviews with the State and the Railway Police;

259.6

Any differences which may arise between the Force and the Railway Police shall be promptly and judiciously dealt with by superior officers of both the Forces and a joint inquiry, if necessary, be held to resolve the matter.

260.

Liaison with other railway departments.

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260.1

in the performance of their statutory duties, all members of the Force shall maintain close contact and co-ordination with offices of other departments of the Railways.

260.2

The [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

, in consultation with the heads of other departments, shall issue orders for such joint action by officers and men of

other departments and members of the Force as may be conducive to the better protection and security of railway property.

260.3

All such differences as may arise between the members of the Force and other Railway servants shall be promptly and judiciously dealt with by an officer superior in rank to the member of the Force concerned, and, if deemed necessary by such superior officer, a joint inquiry may be held to resolve the matter.

260.4

All complaints of recriminatory nature shall be disposed of departmentally and in no case recourse to legal action be taken without first obtaining permission from the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

or the Director-General as the case may be.

261.

Miscellaneous.

- Detailed procedure for holding such periodical meetings and conferences at different levels, recording of minutes and their distribution for reviewing results obtained through joint efforts of the Force and other departments as well as for devising such methods as are considered necessary and proper to bring forth further improvements shall be specified through the Directives.

Chapter XIX

Special Welfare Measures

262.

Institution and regulation of welfare funds and schemes.

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262.1

The Central Government or the Director-General may, looking to the onerous and arduous nature of duties of the members of the Force, create any special fund or launch any special welfare measures or insurance scheme or any other scheme or co-operative society and provide for funding of such measures on a continuing basis or on any other basis.

262.2

Such Special measures may include(

(a)

Providing for adequate living accommodation for the personnel and their families;

(b)

Provision of recreational facilities in the shape of indoor games and equipping recreation rooms with radio and television;

(c)

Provision of libraries both static and mobiles;

(d)

Provision of canteens and departmentally run grocery and allied stores;

(e)

Providing spare time employment for the members of the families to augment incomes;

(f)

Financial assistance to the families and dependents and to those who are disabled due to the rigours of service;

(g)

Rehabilitation of those who retire or are medically invalidated for active service;

(h)

Provision of vocational training for the handicapped;

(i)

Provision of schools with or without boarding facilities;

(j)

Sponsoring and running of correspondence course for the personnel both in academic and technical fields,

(k)

Arranging subsidized technical and vocational training of the wards of the personnel and providing employment

opportunities for them;

(l)

Encouraging group insurance and savings schemes;

(m)

Establishment of family welfare centres, crèches and maternity centers;

(n)

Establishment of hospitals and dispensaries; and

(o)

To alleviate distress arising from terminal and prolonged illness like tuberculosis, paralysis, cancer, etc.

262.3

Whenever such a scheme is launched or a special fund is constituted for the purposes of any of the measures specified in sub-rule (2), it shall be lawful for any member of the Force to participate in planning of such welfare measures, suggesting fresh schemes to meet their needs, make contributions or collect subscriptions from the beneficiaries for the purpose and to manage, operate and to administer such a scheme or a fund:

Provided that for ensuring adequate utilization of any such fund for genuine welfare needs, its management shall be vested in a committee preliminary comprising of beneficiaries:

Provided further that adequate arrangements shall be made for regular audit of the fund by a committee comprising of members from different ranks of the Force.

263.

Co-Operative housing society.

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263.1

It shall be lawful for the members of the Force to set-up co-operative housing societies in any area or district and so to secure financial assistance from public financial institutions.

263. 2 The Central Government or the Director-General may provide the services of expert personnel to such societies to meet their objectives.

264.

Mess and canteens.

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264.1

The Central Government may run messes and canteens for the benefit of the members of the Force where articles shall be sold at no profit basis.

264.2

Wherever such messes and canteens are provided with suitable buildings on hire or otherwise shall be preferred and financial and other paraphernalia provided for the purpose.

264.3

The Director-General may prescribe the registers to be maintained and the manner in which the supervision is to be effected on such messes and canteens.

Chapter XX

Miscellaneous

265.

Court of Inquiry.

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265.1

When to be held - A Court of Inquiry may be held to investigate into any offence alleged to have been committed by any enrolled member of the Force or into any disciplinary matter of importance relating to the Force.

265.2

A Court of Inquiry shall invariably be held in cases of

(a)

Unnatural death of person subject to the Act or of other persons within the Force Lines. At the same time, an immediate report shall be sent through the messenger to the officer-in-charge of the Police Station within whose jurisdiction such

unnatural death has taken place;

(b)

Each and every case of opening of fire by members of the Force, whether operational or accidental;

(c)

Injuries sustained by persons subject to the Act which are likely to cause full or partial disability. The court of Inquiry shall in such cases determine whether such injuries were attributable to exigencies of service or not;

(d)

Financial irregularities, losses, thefts and misappropriation of property, whether of public or Force, including arms and ammunitions;

(e)

case in which any pet animals of the Force is lost, strayed or dies from or is destroyed on account of an incurable injury, in circumstances not arising out of operational conditions;

(f)

loss of secret documents and any other material of secret or above security classification. Such a Court of Inquiry shall be ordered by an officer authority superior to the person having lost the document or material on his charge;

(g)

damage to person or property of an individual, in respect of which there is likely to be a claim against the Railways or the Force; and

(h)

accident of motor vehicles of the force.

265.3

Composition. - A Court of Inquiry shall consist of an officer as presiding officer, not below the rank of Inspector and at least two other members of appropriate ranks, persons not subject to the Act may be appointed as members when the court is to investigate matters of a specified nature and members of the Force with specialist qualifications are not available to the members.

265.4

Assembly. - A Court of Inquiry may be assembled by order of an Assistance Security Commissioner or any officer or authority superior to him.

265.5

Assembly order. - The order assembling the Court of Inquiry shall state the composition of the Court, the time and place for its assembly and clearly state the matters which the Court will investigate. It will also provide for the administrative requirements of such Court.

265.6

Procedure of Court of Inquiry. -

(a)

The proceedings of Court of Inquiry shall generally not be open to public. Only such persons may attend the proceedings as are permitted by the Court to do so.

(b)

The evidence of all witness shall be taken on oath or affirmation.

(c)

Evidence given by witness shall be recorded in narrative form unless the Court considers that any questions and answers may be recorded as such.

(d)

The Court may take into consideration any documents even though they are not formally proved.

(e)

The Court may ask witness any questions and in any form, which it considers necessary to elicit the truth and may take into consideration any available evidence.

(f)

No Counsel or legal practitioner shall be permitted to appear before a Court of Inquiry in that capacity.

(g)

The provisions of section 69 of the Code of Criminal Procedure, 1973 shall apply for procuring the attendance of witness

before the Court of Inquiry.

(h)

Before giving an opinion against any person subject to the Act, the Court may afford that person a reasonable opportunity of being heard.

(i)

The records of Court of Inquiry shall be admissible in evidence in any subsequent proceedings:

Provided that the answers given by a witness to any question asked before the Court shall not be admissible against such a witness on any charge at any subsequent occasion except a charge of giving false evidence before such Court.

265.7

Time limit for completion of Inquiry. - Every Inquiry shall be completed as expeditiously as possible and in any case within a period of three weeks from the date of assembly of the Court of Inquiry, unless for reasons to be recorded by the Presiding Officer, it is not possible to do so due to circumstances beyond his control.

265.8

Action on the proceedings of a Court of Inquiry. - The Proceedings of a court on Inquiry shall be submitted by the Presiding Officer to the officer or be submitted by the presiding officer to the officer or authority who ordered the Court of Inquiry. Such officer or authority on receiving the proceedings may either pass final orders on the proceedings himself, if he is empowered to do so, or refer them to a superior authority.

265.9

Copies of Court of Inquiry proceedings. - A person subject to the Act against whom the Court of Inquiry has given an opinion or who is being tried by a Security Court on a charge relating to matters investigated by the Court of Inquiry, shall be entitled to copies of the proceedings of the Court of Inquiry unless the [Principal Chief Security Commissioner] [Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)] or the Director-General orders otherwise in public interest.

266.

Inspection of offices and units of the Forces.

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266.1

The inspection of the Post and other subordinate units by various officers of the hierarchy shall be so rationalized as to reduce to the minimum the load of scriptory work in these formations.

266.2

Detailed periodical inspections shall be made by one officer only shall be a rank superior to the incumbent holding charge of that unit. Officers in higher levels shall preliminary confine their attention to such aspects with a view to:

(a)

having an overall view of the functioning of the inspected unit and to check that the orders and instructions issued from time to time are being duly observed.

(b)

Studying whether the existing basic security arrangements against thefts or pilferages of railway property, leakage of railway revenue, fire hazards etc. are adequate and acquainting themselves with the crime positions of their charge;

(c)

Ensuring that various records kept at the unit are being correctly and neatly maintained and that the full advantage is being taken by the staff of the collated information in crime prevention and control;

(d)

Seeing that clothing, equipments, furniture service and residential buildings are in good order and properly maintained;

(e)

Developing personnel contact with members and to acquaint themselves with difficulties being faced by them in the field, assess the state of morale of the unit personnel and work out the nature of administrative assistance required from the headquarters in improving the overall effectivity of the units; and

(f)

Having an idea of the quality of supervision being effected by the supervisory officers and to suggest improvements where considered necessary.

267.

Scriptory at the field units.

-

267.1

A Standing Committee comprising among others of Post Commanders or Company Commanders shall be formed in every Security Commissariat for examining once in three years whether-

(a)

Some of the returns can be altered or lumped together or even discontinued; and

(b)

For standardising and updating the proforma for collection of data with a view of reducing the load of respective and purposeless scriptory work in the field formations.

267.2

A small statistical cell under the direct charge of [Chief Security Commissioner]

[Substituted 'Additional' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

or the Deputy Security Commissioner shall be constituted at the Security Commissariat to compile information from the material already there, for answering questions raised in Parliament or State Legislatures. Reference to the subordinate units in the field may only be made when the required information is not available at the Security Commissariat.

268.

Records and Registers.

- The records and registers to be maintained in the office of superior officers, Posts, Companies out-posts detachments and other units and the proforma therefor shall be such as may be specified by the Director-General from time to time.

269.

Guards of Honour.

-

269.1

Guard of Honour shall be detailed to -

(i)

attend the arrival and departure by railway train of the President, Vice-President, Prime Minister and the Governor of a State; and

(ii)

for the independence and Republic Day celebrations or other ceremonial functions of national importance.

269.2

Guard of Honour shall not be detailed for the reception of any other dignitary without the express orders of the Director-General.

Provided that no Guard of Honour shall be supplied after "Retreat" or before "Reveille":

Provided further all other instructions or orders issued by Central Government in the Ministry of Home Affairs to other armed forces of the Union regarding detailing of ceremonial and security guards shall also apply mutatis mutandis to ceremonial guards to be provided by the force.

269.3

Compliments where not entitled. - An officer below the rank of [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

is not entitled to the compliments of the bugle sounding the salute or the drum beating a rattle when a guard "presents arms" to him. Similarly, an officer not in uniform is not entitled to the compliments of a guard turning out except on occasions specified in sub-rule (1)

270.

Static guards.

-

270.1

Static guards consisting of 1 Head Constable and 3 Constables or as may be necessary, shall be detailed for guarding the unit magazine, stores, Lines etc. as per requirements. The area of duty for a particular guard, the duties of the Guard Commander and sentry shall be clearly exhibited in the Guard Room.

270.2

Special guards shall be provided for the officers of the rank of and above the [Principal Chief Security Commissioner] [Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)] or Deputy Inspector General of Railway Protection Special Force and at places where the officers are camping (residence).

270.3

The color of the Force shall be hoisted at the residence of the [Principal Chief Security Commissioner] [Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)] and other higher offices of the Force. In case of others, their standard shall be hoisted. In operational areas, the Security Commissioner do away with hoisting of the color if conditions so require after obtaining permission of the [Principal Chief Security Commissioner] [Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

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270.4

When the officer for whom the guard is provided is present and if any officer junior to him passes by the side of the VIP guard, the guard shall not turn out but the sentry shall come to attention.

271.

Security aids.

-

271.1

An enrolled member of the Force attached with any officer for purposes of subrule (3) shall be called Security aide.

271.2

Entitlement. - Entitlement of assistance of Security aide shall be determined by the Director General not by the rank of the officer but by the actual need for such assistance with reference to the nature of duties and responsibilities of the officer.

271.3

Entitlement of assistance to each officer shall be worked out by keeping the following duties of the Security aide in view-
(i)

to attend to petitioners, complaints and other visitors who come to see the officer;

(ii)

to attend to telephone calls, particularly during the officer's absence, and furnish helpful replies to enable the caller to speak to some other appropriate functionary for action;

(iii)

to pass on message on telephone to subordinate officers;

(iv)

to accompany the officer on his field work and be present with him to afford security and assistance in dealing with any situation;

(v)

to carry messages and files from the officer to the local staff stationed nearby;

(vi)

to maintain the officer's reception room and office premises in a neat and tidy condition for receiving visitors and transacting official business:

Provided the duties mentioned at (i) to (iv) may also be performed by other ranks while the rest may be entrusted to ancillary staff.

272.

Members of the Force on sick list.

-

272.1

Notwithstanding anything contained in these rules, no members of the Force shall be taken on sick list by any Railway Medical Officer unless such member comes with a written reference known as 'Sick Memo' from his controlling officer: Provided that in case of any emergency, a number may be given necessary treatment but Railway Medical Certificate (RMC) shall be issued only after receiving the sick memo.

Provided further that a member who is on leave out of his headquarters maybe taken on sick list in emergent cases for a period not exceeding 7 days or the duration of his sanctioned leave . Within that period, the member shall be asked to procure a 'Sick Memo' from his controlling officer and further extension shall be allowed only after receipt of the 'Sick Memo' .

272.2

No Railway Medical Officer shall issue a certificate for change of air or recuperation under rule 537 of the India Railway Medical Manual without getting a Sick Memo from the controlling officer.

272.3

The Assistant Divisional Medical Officer or Divisional medical Officers at health units, sub-divisional and zonal hospitals shall be competent to issue Railway Medical Certificate. The Chief Medical Officer, shall nominate the Asst. Divisional Medical Officers or Divisional Medical Officers for this purpose at each such unit or hospital.

272.4

If the nominated Railway Medical Officer on physical examination of a member finds any positive findings he may issue Railway Medical Certificate from the Outdoor Patient Department. Otherwise, the members shall be admitted as an indoor patient for verification of his illness and if necessary the Railway Medical Certificate issued under intimation to the authority who issue the Sick Memo.

272.5

No Railway Medical Certificate shall be issued for more than 3 days at a time, unless a member is admitted in the hospital as an indoor patient. Similarly, after discharge from the hospital, a member shall not be kept on sick list for more than 7 days at a time.

272.6

A member who has been issued Railway Medical Certificate shall be examined regularly during his follow up by the Railway Medical Officers. If the illness is likely to last for more than fourteen days that Asst. Divisional Medical Officer or Divisional Medical Officer shall refer the case to the Medical Officer in charge of the division who shall issue further Railway Medical Certificate.

272.7

Whenever any Sick Certificate or Extension Certificate is issued by the Railway Medical Officer, the duration of sick leave recommended shall invariably be mentioned therein along with date.

272.8

Whenever any Sick Certificate, Extension Certificate or Fit Certificate is issued by the Railway Medical Officer, he shall invariably obtain the signature of the member concerned on the certificate before handing it to him.

272.9

A member of the Force on sick list shall not leave his place of treatment without the written approval of the leave sanctioning except for such exercise as may be prescribed and notified in the order by his appointed medical attendant.

273.

Benefits on account of risk of office.

- If in the discharge of his duty or as consequent of anything done by him in the discharge of his duty or on account of the special risks of his office, a member of the Force is permanently or temporarily disabled or his condition aggravated, he shall be governed by the Central Civil Service (Extraordinary person) Rules as amended from time to time.

274.

Discharge certificate.

- A person ceasing to be a member of the Force shall surrender to his immediate superior, his certificate of appointment and thereafter he shall be issued a Discharge Certificate as specified in Schedule XII.

275.

Re-enlistment.

- A member of the Force, who has ceased to be a member of the Force as a result of resignation or removal from service and whose previous service had been assessed as a good and who immediately fit may be re-enlisted, with the sanction of the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

within a period of two years of his ceasing to be a member of the Force. Such re-enlistment shall be treated as fresh appointment.

276.

Ministerial Staff.

-

276.1

In view of the strictly confidential and technical nature of work the ministerial staff shall be required to handle, the Force may have a ministerial staff shall be required to handle, the Force may have ministerial cadre of its own, though in the initial stages persons may be taken on deputation also. The ranks of the cadre shall be-

(a)

Superintendents.

(b)

Assistants.

(c)

Stenographers.

(d)

Senior Clerks.

(e)

Clerk-cum-Typist.

276.2

The method of recruitment and other conditions of service relating to the said posts shall be in accordance with the rules and procedure laid down in the Railway Establishment code.

276.3

The Ministerial cadre presently posted with the Security Department shall be subject to the control of [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)] who shall be their head of the department.

277.

Powers of Central Government to absorb in the force any officer on deputation.

- Nothing contained in these rules shall be deemed to affect the right of the Central Government to absorb in the Force, for reasons to be recorded in writing and in exceptional circumstances, any officer on deputation to the Force, where in the opinion of the Central Government such officer has given a creditable account of himself in the post or posts held by him for a minimum period of three years, if such deputationist officer has a minimum of three years service left for his attaining the normal age of retirement prescribed for the post held by him

278.

Railway Protection Force Band

278.

1.

A band shall be maintained on each zonal Railway and each Railway Protection Special Force battalion and shall consist of such number of members of the Force as may be determined by the [Principal Chief Security Commissioner] [Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

.

278.2

The bandsmen shall be drawn from the regular cadre of the Force and shall play the band in addition to their normal duties till separate provision is made for the purpose.

278.3

The aims and objects for raising the band shall be-

(i)

to facilitate the training of the members of the Force:

(ii)

to function as the official band in all ceremonial occasions like Independence Day, Republic Day and other such important functions; and

(iii)

to provide entertainment in the field of staff welfare.

278.4

The band may be permitted to play at private functions on payment of charges as may be determined by the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

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279.

Relation with Press.

- Subject to the restrictions specified in Section 15A, the Divisional Security Commissioners and officers of higher rank are permitted to give to the press statistical and other relevant details concerning crime against railway property and obstruction to its movement as well as details concerning all other important and sensational cases under investigation or inquiry with the Force and shall endorse a copy of such communique to the Public Relations Department of the Railway:

Provided that nothing contained herein shall authorize any officer to divulge the details of :-

(i)

any operation to be undertaken by the Force;

(ii)

the intelligence on the basis of which such operation is being or was planned;

(iii)

privacy of any individual; and

(iv)

the judicial requirement of any case

Chapter Repeal

And Savings

280.

Repeal and Savings.

-

280.1

The Railway Protection Force Rules, 1959 and the Railway Protection Force Regulations, 1966 are hereby repealed.

280.2

Notwithstanding such repeal anything done or any action taken under the provisions of the said rules or regulations shall in so far as such thing or action is not inconsistent with the provisions of these rules, be deemed to have been done or taken under the provision of these rules as if these rules were in force when such thing was done or such action was taken and shall continue to be in force accordingly until superseded by anything done or any action taken under these rules.

[Schedule I]

[Substituted by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

(See rule 4)

Office And Designation

S. No

Office

Designation

(1)

(2)

(3)

I. Superior Officers

1.

Director General

Director General

2.

Additional Director General

Additional Director General

3.
Additional Director General/Inspector
General/Deputy Inspector General (when posted as Zonal RPF Chief
or as Head of RPSF)
Principal Chief Security Commissioner
4.
Deputy Inspector General (when posted as 2 I/C
in the Zone or RPSF)
Chief Security Commissioner
5.
Additional Director General/Inspector
General/Deputy Inspector General (when posted as Head of J.R. RPF
Academy)
Director/J.R. RPF Academy
6.
Senior Commandant (when posted at zonal railway
headquarters)
Deputy Chief Security Commissioner
7.
Senior Commandant (when posted as head of a
security division)
Senior Divisional Security Commissioner
8.
Senior Commandant in Production Unit
Senior Security Commissioner
9.
Commandant (when posted as head of a security
division)
Divisional Security Commissioner
10.
Commandant/RPF
Security Commissioner
11.
Senior Commandant/ Commandant/RPSF
Commanding Officer
12.
Senior Commandant/Commandant as Staff Officer to
Director General/ Additional Director General/ Inspector General/
Deputy Inspector General
Staff Officer
13.
Commandant (Small Arms)
Commanding Officer (Small Arms)
14.
Assistant Commandant
Assistant Security Commissioner
15.
Assistant Commandant /RPSF
Assistant Commandant
16.
Assistant Commandant (Adjutant)

Adjutant

17.

Assistant Commandant (Principal Training School)

Assistant Security Commissioner (Principal Zonal
Training Institute)

II. Subordinate Officers

18.

Inspector (Post)

Post Commander

19.

Inspector (Mobile Wing)

Company Commander

20.

Inspector (HQrs)

Divisional Inspector

21.

Inspector (Stores)

Quarter Master

22.

Inspector (Crime Wing)

Crime Inspector

23.

Inspector (Special Wing)

Special Inspector

24.

Sub-Inspector

Sub-Inspector

25.

Sub-Inspector (Mobile Wing)

Assistant Company Commander

26.

Sub-Inspector (Reader)

Crime Reader

27.

Assistant Sub-Inspector

Assistant Sub-Inspector

28.

Driver Grade I

Driver Grade I

III. Under Officer

29.

Head Constable

Head Constable

30.

Driver Grade II

Driver Grade II

31.

Driver Grade III

Driver Grade III

IV. Other Member of the Force

32.

Constable

Constable

V. Ancillary Staff (Enrolled Member)

33.

Head Constable (Kahar)

Head Cook

34.

Head Constable (Tailor)

Head Tailor

35.

Head Constable (Barber)

Head Barber

36.

Head Constable (Mali)

Head Mali

37.

Head Constable (Dhobi)

Head Dhobi

38.

Head Constable (Safaiwala)

Head Safawala

39.

Head Constable (Cobbler)

Head Cobbler

40.

Constable (Kahar)

(Kahar)

41.

Constable (Tailor)

Tailor

42.

Constable (Barber)

Barbar

43.

Constable (Mali)

Mali

44.

Constable (Dhobi)

Dhobi

45.

Constable (Safaiwala)

Safaiwala

46.

Constable (Cobbler)

Cobbler

47.

Constable (Motor Cleaner)

Motor Cleaner.?

II

Administrative Powers Of Superior Officers

(See rule 25)

Sl.No.

Nature of powers

Director-General

Chief Security Commissioner

Additional/Dy.Chief Security Commissioner Principal RPF. Academy.

Divisional Security Commissioner/Security Commissioner/Commanding Officer Senior Security Commissioner

[***]

[Omitted 'Deputy' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

Assistant Security Commissioner/Assitant Commandant of RPSF/Adjutant

1

2

3

4

5

6

7

1.

Appointment

-

All enrolled members

All enrolled members of the Force below the rank of Inspector

All enrolled members of the Force below the rank of Sub-Inspector

No powers

2.

Confirmation

-

-do-

-do-

-do-

-do-

3.

Promotion

-

Upto the rank of Inspector

Upto the rank of Sub-Inspector

Upto the rank of Asstt. Sub-Inspector

No powers

4.

Acceptance of resignation

-

-do-

-do-

-do-

-do-

5.

Transfer

5(1)

From one cadre to the other in the Railway Protection Force

(See rule 16.4)

All enrolled member of the Force

No powers

No powers

No powers

-do-

5(2)

From the station to another in the same Division or unit.

-do-

Member of the Force

All enrolled members of the Force

All enrolled member of the Force below the rank of Inspector

All enrolled members of the force below the rank of Inspector

-do-

5(3)

From one division to the other division of the same railway or from on RPSF Bn to the other

-do-

-do-

-do-

No powers

-do-

5(4)

From one Railway to another railway or from Railway Protection Special Force to Zonal railway and vice versa.

All enrolled members of the force

All enrolled member of the Force after obtaining the concurrence of the Director-General in conformity with the rules on the subject

No powers

-do-

-do-

6.

Grant of leave

All member of the Force

All members of the Force

All members of the Force

All members of the Force

All enrolled members of the force.

7.

Crossing of Efficiency Bar

--

All enrolled member of the force

All enrolled members of the force

All enrolled members of the Force

All under Officer and below

8.

Grant of allowance including travelling

All member of the Force

All members of the Force

All members of the Force

All members of the Force

All enrolled member of Force

9(1)

Grant of rewards (Individual)

Full powers upto Rs. 4,000 in any one case

Full powers upto Rs. 2,000 (within the sanctioned allocation) in each case

Full powers upto Rs. 1,000 (subject to availability of funds) in each case

Full powers upto the extent of Rs. 500 in each case (within the sanctioned allocation) provided that the Commanding Officer of the Railway Protection Special Force Battalion may sanction rewards upto Rs. 1,000 in each case

Full powers upto Rs. 2000 in each case (within the sanctioned allocation) provided that an Assistant Commandant or Adjutant of a Railway Protection special Force Battalion may sanction rewards upto Rs.500 in each case.

9(2)

Group rewards

[Full powers upto Rs. 30,000]

[Substituted by Notification No. G.S.R. 400 (E) dated 12.5.2010 (w.e.f. 3.12.1987)]

Full powers upto Rs. 10,000

Full powers upto Rs. 5,000

Full powers upto Rs. 3,000

Full powers upto Rs. 1,000]

10.

Grant of advance on transfer

All member of the force

All member of the force

All member of the force

All member of the force

All under officers

11.

Issue of passes and Privilege Ticket Orders to Serving and retired employees (Home and foreign line)

Full powers in accordance with Pass Rules

Full powers in accordance with Pass Rules

Full powers in accordance with Pass Rules

Full powers in accordance with Pass Rules

Full powers in accordance with Pass Rules

12.

Passes to informers, witnesses in cases under RP (UP) Act andr DAR cases.

Full powers in accordance with Pass Rules

Full powers in accordance with Pass Rules

Full powers in accordance with Pass Rules

Full powers in accordance with Pass Rules

Full powers in accordance with Pass Rules

Notes.-1. An Inspector may sanction full casual leave to the enrolled members of the Force working under his command.

2. All Inspectors may issue privilege, duty, medical passes in accordance iwht Pass Rules to the enrolled members of the Force under their command.

Sl.No

Nature of powers

Director General

Chief Security Commissioner

Additional/Dy.Chief Security commissioner/Principal, RPF Academy

Divisional security Commissioner/Security Commissioner Commanding Officer/Senior Seurity Commissioner.

[***]

[Omitted 'Deputy' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

/Assistnat Security Commissioner/Assistant Commandant of RPSF/Adjutant

1

2

3

4

5

6

7

1.

Suspension

All enrolled members of the Force

All enrolled members of the Force

All enrolled members of the Force

All enrolled members of the Force

All under officers and below

2.

Dismissal

-do-

-do-

All enrolled members of the Force below the rank of Inspector

All enrolled members of the Force below the rank of Sub-Inspector

No powers

3.

Removal

-do-

-do-

-do-

-do-

-do-

4.

Compulsory retirement

-do-

-do-

-do-

-do-

-do-

5.

Reduction in rank or grade

-do-

-do-

All enrolled members of the Force

All enrolled members of the force

All under officers and below

6.

Reduction to a lower stage in the existing scale of pay

-do-

-do-

-do-

-do-

-do-

7.

Withholding of increment with or without corresponding postponement of subsequent increment

-do-

-do-

-do-

-do-

All enrolled members of the force below the rank of Assistant Sub-Inspector

8.

Withholding of Promotion.

-do-

-do-

-do-

-do-

-do-

9.

Removal from any office of distinction or deprivation of special emoluments

-do-

-do-

-do-

-do-

-do-

10.

Censure

-do-

-do-

-do-

-do-

All enrolled members of the Force below the rank of Inspector.

11.

Fine to any amount not exceeding 7 days pay

All enrolled member of the Force

All enrolled members of the Force

All enrolled members of the Force

All enrolled members of the Force

All enrolled members of the Force below the rank of assistant Sub-Inspector.

12.

Confinement to quarters for a period not exceeding 14 days with or without punishment drill, extra guard duty, fatigue duty or any other punitive duty.

-do-

(Subject to rule 160)

-do-

(Subject to rule 160)

-do-

(Subject to rule 160)

-do-

(Subject to rule 160)

-do-

(Subject to rule 160)

13.

Reprimand

-do-

-do-

-do-

-do-

-do-

14.

Withholding of privilege passes/or PTOs.

All enrolled member of the Force

All enrolled member of the Force

All enrolled member of the Force

All enrolled member of the Force

All enrolled member of the Force

15.

Reduction or withholding of the maximum pension admissible under the rules

All enrolled member of the Force as per Pension Rules

All enrolled member of the Force as per Pension Rules

All enrolled member of the Force as per Pension Rules

All enrolled member of the Force as per Pension Rules

No powers

16.

Appellate Authority against the orders of....

Central Government

Director-General

Chief Security Commissioner

[***]

[Omitted 'Additional' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

Chief Security Commissioner against the orders of Security Commissioner of selection grade and Deputy Chief Security Commissioner against the orders of other Security Commissioner and Chief Security Commissioner/RPSF against the orders of a Commanding Officer

Divisional Security Commissioner/Security Commissioner/Commanding Officer.

Notes.-1. In exceptional Circumstances, but subject to rule 133, an Assistant Security Commissioner/Assistant Commandant may place a Sub-Inspector under suspension and an Inspector may place any member of and below the rank of under officer under suspension.

2. Inspectors may award punishment of confinement to quarters for a period not exceeding 14 days with or without punishment drill, extra guard, fatigue or other duty to members of and below the rank of under officers.

3. Inspectors may reprimand members of and below the rank of Asstt. Sub-Inspector.

4. Powers of appellate authority mentioned under clause 16 shall be exercised by such officers only who are holding their appointments on a regular basis:

Provided that the Director-General may, looking to the nature and duration of the appointment, authorise any superior officer of the Force promoted under rule 74 to exercise powers of appellate authority as may be admissible for the higher appointment.

IV

Appointments And Promotions

(See rule 25)

Sl.No

Description

[***]

[Entries relating to Inspector Grade I omitted and heading 'Inspector Gr. II' substituted as 'Inspector' vide GSR 14, dated 24.1.2007.]

[Inspector]

[Entries relating to Inspector Grade I omitted and heading 'Inspector Gr. II' substituted as 'Inspector' vide GSR 14, dated 24.1.2007.]

Sub-Inspector

(Executive)

1.

No. of posts

[***]

[Omitted by Notification No. G.S.R. 14, dated 24.1.2007.]

As may be decided from time to time

As may be decided from time to time

2.

Selection post non-selection post

[***]

[Omitted by Notification No. G.S.R. 14, dated 24.1.2007.]

Selection

Selection

3.

Method of recruitment

[***]

[Omitted by Notification No. G.S.R. 14, dated 24.1.2007.]

By promotion rule 70 failing which by deputation

(a) By direct recruitment under rule 49-50%

(b) By promotion under rule 70-50%

4.

In case of recruitment by promotion, deputation or transfer grades from which promotion, deputation or transfer to be made

[***]

[Omitted by Notification No. G.S.R. 14, dated 24.1.2007.]

(i) Promotion:

Sub-Inspector with 8 years regular service as Sub-Inspectors

(ii) Deputation:

Inspectors or Sub-Inspectors approved for promotion as Inspectors from the Police.

Promotion:

Assistant Sub-Inspectors with 5 years regular service in that rank.

Sl.No.

Description

Asstt. Sub-Inspector (Executive)

Head Constable (Executive)

[***]

1.

No. of posts

As may be decided from time to time

As may be decided from time to time

[***]

2.

Selection post/non-selection post

Selection

Seventy-five percent-Non-selection, twenty-five percent-selection]

3.

Method of recruitment

By promotion under rule 70=60% under rule 72-40%

[Seventy-five per cent by promotion on the basis of seniority subject to rejection of unfit and twenty-five percent by promotion in accordance with the provisions of rule 72]

[***]

4.

In case of recruitment by promotion, deputation or transfer, grades from which promotion, deputation or transfer to be made

Promotion: (i) For rule 70- Head Constables who have completed their probation.

(ii) For rules 72- Head Constables, [***]

[Omitted 'Naik' by Notification No. G.S.R. 1067(E), dated 25.10.2018 (w.e.f. 3.12.1987).]

and Constables who have put in 10 years Service in the Force on the date of notification ([Four chances]
[Substituted 'Two chances' by Notification No. G.S.R. 1067(E), dated 25.10.2018 (w.e.f. 3.12.1987).]
only for promotion under this rule)

Promotion:(i) Non selection- Constables who have completed probation.[++]

[Modified vide G.S.R. 286, dated 20.7.2000.]

[
]

[the word 'Naik' and entries relating thereto omitted vide G.S.R. 229, dated 15.7.1999.]

(ii) Under Rules 72- Constables who have put in 8 years service in the Force on the date of notification. ([Four chances]
[Substituted 'Two chances' by Notification No. G.S.R. 1067(E), dated 25.10.2018 (w.e.f. 3.12.1987).]
to be given for promotion under this rule)[

]

[the word 'Naik' and entries relating thereto omitted vide G.S.R. 229, dated 15.7.1999.]

[***]

Sl.No.

Description

Sergeant Driver (Driver Grade I)

Head Driver (Driver Grade II)

Naik Driver (Driver Grade III)

1.

No. of posts.

30%

of the total number of post of drivers in a zonal railway or in RPSF.

35%

of the total number of posts of drivers in a zonal railway or in RPSF.

35%

of the total number of posts of drivers in a zonal railway or in RPSF which may be decided from time to time.

2.

Technical qualifications

Passed Trade Test an may be specified in the Directives

Passed Trade Test as may be specified in the Directives

Passed Trade Test as may be specified in the Directives

3.

Selection/Non-Selection

Selection

Selection

Selection

4.

Method of recruitment

By promotion under rule 70

By promotion under rule 70

By promotion under rule 72

5.

In case of recruitment by promotion, deputation or transfer grade from which promotions, deputation or transfer to be made.

Promotion under rule 70:

Drivers Grade II who have completed their probation

Promotion under Rule 70:

Drivers Grade II who have completed their probation

[By promotion under rule 72: ending with the words "Regular service in Force"]

[Substituted by Notification No. G.S.R. 127 (E) dated 25.2.2009 (w.e.f. 3.12.1987)]

- (a) [Constable who possesses a valid heavy vehicle driving license and have put in 2 years of service in Force, or]
[Substituted by Notification No. G.S.R. 127 (E) dated 25.2.2009 (w.e.f. 3.12.1987)]
- (b) [ancillary staff who possesses a valid heavy vehicle driving licence and has put in five years regular service in Force, falling which by direct recruitment as per directives.]
[Substituted by Notification No. G.S.R. 127 (E) dated 25.2.2009 (w.e.f. 3.12.1987)]

Sl.No.

Description

[***]

[***]

[Omitted by Notification No. G.S.R. 719(E) dated by 31.10.2013 (w.e.f. 3.12.1987)]

[***]

[Omitted by Notification No. G.S.R. 719(E) dated by 31.10.2013 (w.e.f. 3.12.1987)]

1.

No.of posts

[***]

[***]

[Omitted by Notification No. G.S.R. 719(E) dated by 31.10.2013 (w.e.f. 3.12.1987)]

[***]

[Omitted by Notification No. G.S.R. 719(E) dated by 31.10.2013 (w.e.f. 3.12.1987)]

2.

Age

[***]

[***]

[Omitted by Notification No. G.S.R. 719(E) dated by 31.10.2013 (w.e.f. 3.12.1987)]

[***]

[Omitted by Notification No. G.S.R. 719(E) dated by 31.10.2013 (w.e.f. 3.12.1987)]

[***]

[Omitted by Notification No. G.S.R. 719(E) dated by 31.10.2013 (w.e.f. 3.12.1987)]

[***]

[Omitted by Notification No. G.S.R. 719(E) dated by 31.10.2013 (w.e.f. 3.12.1987)]

[***]

[Omitted by Notification No. G.S.R. 719(E) dated by 31.10.2013 (w.e.f. 3.12.1987)]

[***]

[Omitted by Notification No. G.S.R. 719(E) dated by 31.10.2013 (w.e.f. 3.12.1987)]

The benefit of added years of service under rule 45 of the Railway Services (Pension) Rules, 1993, shall be admissible to those recruited directly as [Inspector] (Prosecution), on and after 1st April, 1968, subject or fulfilment of the conditions stipulated in the said rules.]

4.

Selection Post/Non-Selection Post

[***]

[***]

[Omitted by Notification No. G.S.R. 719(E) dated by 31.10.2013 (w.e.f. 3.12.1987)]

[***]

[Omitted by Notification No. G.S.R. 719(E) dated by 31.10.2013 (w.e.f. 3.12.1987)]

5.

Method of recruitment

[***]

[***]

[Omitted by Notification No. G.S.R. 719(E) dated by 31.10.2013 (w.e.f. 3.12.1987)]

[***]

[Omitted by Notification No. G.S.R. 719(E) dated by 31.10.2013 (w.e.f. 3.12.1987)]

[***]

[Omitted by Notification No. G.S.R. 719(E) dated by 31.10.2013 (w.e.f. 3.12.1987)]

[***]

[Omitted by Notification No. G.S.R. 719(E) dated by 31.10.2013 (w.e.f. 3.12.1987)]

6.

In case of recruitment by promotion, deputation or transfer, grades from which promotion deputation or transfer to be made

[***]

[***]

[Omitted by Notification No. G.S.R. 719(E) dated by 31.10.2013 (w.e.f. 3.12.1987)]

[***]

[Omitted by Notification No. G.S.R. 719(E) dated by 31.10.2013 (w.e.f. 3.12.1987)]

[***]

[Omitted by Notification No. G.S.R. 719(E) dated by 31.10.2013 (w.e.f. 3.12.1987)]

V

Judicial Powers Of Security Court

(See rule 30)

Part I

1.

Power to arrest or direct arrest of and commit to custody a person committing an offence in his presence.

Section 44 (1)

2.

Power to arrest or direct the arrest in his presence of any person for whose arrest he is competent at the time and in the circumstances to issue a warrant.

Section 44(2)

3.

Power to forward warrant for execution outside jurisdiction.

Section 78

4.

Power to issue proclamation for person absconding.

Section 82

5.

Power to order attachment of property of person absconding and scrutiny of claims or objections to attachment.

Sections 83 84

6.

Power to release, sale and restoration of attached property.

Section 85

7.

Power to issue search warrant.

Section 93

8.

Power to issue search warrants in relation to places suspected to contain stolen property, forged documents, etc.

Section 94

9.

Power to issue search warrants for discovery of persons wrongly confined.

Section 97

10.

Power to dispose of things found in search beyond jurisdiction.

Section 101

11.

Power to record confessions and statements.

Section 164

12.

Power to authorise detention when investigation cannot be completed within twenty-four hours.

Section 167

13.

Power to take cognizance of offences upon complaint, police report or upon his own knowledge.

Section 190(1)

14.

Powers to postpone issue of process.

Section 202

15.

Power to stop proceedings in certain cases.

Section 258

16.

Power to require attendance of prisoners.

Section 267

17.

Power to examine witnesses on commission.

Section 287

18.

Power to allow affidavit to be sworn or affirmed before him.

Section 297

19.

Power to tender pardons to accomplices.

Section 306

20.

Power to make local inspection.

Section 310

21.

Power to make order for release on probation of good conduct or after admonition.

Section 360

22.

Power to recover penalty on forfeited bond.

Section 446

23.

Power to require fresh security.

Section 447

24.

Power to pass orders for custody and disposal of property pending trial in certain cases.

Section 451

25.

Power for disposal of property at the conclusion of trial.

Section 452

26.

Power to dispose off property seized or recovered under the Act.

Section 457

27.

Power to sell perishable property.

Section 459

PART II

1.

Power to require the postal or telegraph authority to cause search to be made and to detain any document, parcel or thing.

Section 92

2.

Power to make over cases after taking cognizance for inquiry or trial to another Magistrate.

Section 192

VI

Form Of Agreement

[See rule 53(a)]

To:

The President of India.

In consideration of the President of India having agreed to appoint me as in the Railway Protection Force, Ison/daughter of.....hereby agree and undertake to:

(i)

Serve in the Railway Protection Force for a period of not less than three years with effect from the date of my appointment in the Force;

(ii)

carry out all duties and functions entrusted to me and all lawful orders given to me by members of the Force superior me in rank;

(iii)

refund all the cost of training imparted to me in the Force or a sum equal to three months pay and allowance whichever less in the event of tendering my resignation from the Force for any reason or reasons whatsoever during the aforesaid period of three years; and if after three years I desire to resign, I shall submit my request in writing and will not withdraw from any duties until I am duly relieved.

2. I understand and agree that my services can be terminated by:

(i)

the [Principal Chief Security Commissioner]

[Substituted 'Chief Security Commissioner' by Notification No. G.S.R. 140(E), dated 2.2.2018 (w.e.f. 3.12.1987)]

without giving me any notice under sub-rule (2) of rule 67 or under the second proviso to sub-rule (3) of rule 57:

(a)

at any time during the period of my initial training; or

(b)

on my failure to pass the final examination of initial training course; and

(ii)

the appointing authority under sub-rule (3) of rule 57 during the period of my probation or any extension thereof on issue of notice of one month's or the tender of one months pay and allowances in lieu of such notice.

Note.-The term "pay and allowances", used in clause (iii) of para 1 and clause (ii) of para 2 mean the usual pay and allowances paid to me immediately prior to the date of my resignation or termination from service.

Witness

Signature of the recruit.

Signature

Designation

Designation

Date

Date

Place

Place

Accepted

For and on behalf of the President of India

(Signature of the Accepting Authority)

SEAL

VII

Form Of Affirmation Of Allegiance

[See rule 53 (b)]

Ison/daughter of.....do solemnly affirm that I will be faithful and bear true allegiance to India and to the Constitution of India as by law established and that I will carry out the duties of my office loyally, honestly and with impartiality.

Date

Place

Signature of the enrolled

member of the Force.....

Signature and designation of the Superior Officer

(in whose presence the affirmation is made)

VIII

Badges Of Ranks

(See rule 121)

Sl.No

Rank

Badges of rank

1.

Director-General

Crossed sword and baton and one Star to be worn in a manner that the point of sword is to the front.

2.

Inspector-General

Addl. Inspector General

Crossed sword and baton and one Star to be worn in a manner that the point of sword is to the front.

3.

Dy. Inspector General

The State Emblem and three Stars to be worn in a triangle

4.

(i) Senior Commandant

(ii) Commandants who have put in 15 years of service

The State Emblem and two Stars

5.

Asstt. Inspector General/Commandant

The State Emblem and one Star.

6.

Deputy Commandant

The State Emblem.

7.

Asstt. Commandant with more than 5 years service or Asstt. Commandant in independent charge of a division.

Three stars

8.

Asstt. Commandant with less than 5 years but above 2 years.

Two Star.

9.

Asstt. commandant with less than 2 years service or on probation.

One Star

10.

Inspector

Three 5-pointed Stars of yellow metal with a navy blue silken bar one cm. in width.

11.

Sub-Inspector

Two 5-pointed Stars of yellow metal with a navy blue silken bar one cm. in width.

12.

Asstt. Sub-Inspector

One 5-pointed Stars of yellow metal with a navy blue silken bar one cm. in width.

13.

Head Constable

Chevrons white cloth 3-stripes to be worn on the right upper arm and entering between the elbow and shoulder joints.

14.

Naik

Chevrons white cotton 2-stripes to be worn on the right upper arm and entering between the elbow and the shoulder joints.

Note.-1. The Stars worn by superior officers shall be of white metal/silver 5-pointed (Star of India).

2. Assistant Commandant and Adjutant in the Railway Protection Special Force shall be entitled to wear 3 Stars and 2 Stars respectively irrespective of their length of service unless they are entitled to higher badges by virtue of their length of service.

3. Officers wearing the State Emblem and two Stars and officers wearing the State Emblem and three Stars shall wear gorget patches of dark blue woollen material with a central silver stripe; and officers of higher rank shall wear similar gorget patches with a silver oak-leaf pattern central stripes.

4. Officers of and above the entitlement of State Emblem and two Stars shall wear a dark blue band of woollen material to be placed between the two lower wealts with silver embroidered Railway Protection Force crest on their peak caps with chain strap of brown leather. The above shall be worm on Pagri by entitled officers.

5. The term "service" for the purpose of badges of rank shall mean the length of non-fortuitous service rendered as a superior officer in Group "A".

6. The navy blue silken bar shall be stitched to the material of the shirt by the subordinate officers. Similarly, chevron shall be stitched to the material of the shirt, jersey and, as the case may be, overcoat by under officers.

7. Superior officers on deputation from the Indian Police Service or the State Police Services shall wear the uniform and badges of the rank held by them before their deputation or of such higher ranks to which they may be appointed by the Central Government.

IX

Form Of Oath For Court

(See rule 188)

Ido swear in the name of Almighty God that I will well and truly try the accused (or accused persons) before the Security Court according to the evidence, and that I will duly administer justice according to Railway Protection Force Act, 1957 and RPF Rules. 1987 made thereunder without partiality, favour or affection and to the best of my understanding of the law and the tradition of the Force.

Form Of Affirmation For Court

(See rule 188)

Isolemnly, sincerely and truly declare and affirm that I will well and truly, try the accused (or accused persons) before the Security Court according to the evidence and that I will truly administer justice according to the Railway Protection Force Act, 1957 and RPF Rules, 1987 made thereunder without partiality favour or affection and to the best of my understanding of the law and the tradition of the Force.

Form Of Oath For Interpreter

(See rule 188)

Ido swear in the name of Almighty God that I will well and truly interpret and explain all questions put to, and evidence given by, witnesses and translate correctly and accurately all documents given to me for translation as I shall be required to do touching the matter before this Security Court.

Form Of Affirmation For Interpreter

(See rule 188)

Isolemnly affirm that I will well and truly declare and affirm that I will well truly interpret and explain all questions put to and evidence given by, witnesses and translate correctly and accurately all documents given to me

for translation as I shall be required to do touching the matters before this Security Court.

X

FORM A

Warrant Of Commitment On A Sentence Of Imprisonment

(See rule 208)

To

The Superintendent

..... Prison

(Give address)

Whereas at a Security Court presided over by Shriheld at..... on theday of.....20..... Name of the accused..... staff Norank.....unit.....having..... as his identification mark was duly convicted of(state the offence) under section 17 of the Railway Protection Force Act, 1957 read with rule 147 of Railway Protection Force Rules, 1987.

And whereas the said Security Court on theday of.....20..... passed the following sentence upon the said (Name) that is to say

(Sentence to be entered in full but without signature)

This is to authorise and require you to receive the said prisoner (Name into your custody in the said jail together with the warrant, and thereby carry the aforesaid sentence of imprisonment into execution according to law. The sentence has effect from the(given the date on which the original sentence was signed).

The prisoner shall be entitled to all remissions /benefits by the State/Central Government from time to time by special or a general order and also benefit of set off in terms of section 428 of Code of Criminal Procedure, 1973.

Given under my hand and seal aton this.....day of.....20.....

SEAL OF THE.....

SECURITY COURT (Signature of Authorised Officer)

FORM B

Warrant After A Commutation Of A Sentence

(See rule 208)

To

The Superintendent

..... Prison

(Give address)

Whereas at a Security Court presided over by Shriheld at..... on theday of.....20.....(No.....Rank..... NameUnit.....) was duly convicted for..... (state the offence)under section 17 of the Railway Protection Force Act, 1957 read with rule 147 of the Railway Protection Force Rules, 1987.

And Whereas the said Security Court on theday of.....20..... passed the following sentence upon the said (name) that is to say (sentence to be entered in full but without signature) and thereupon committed to your custody; and whereas by order of the Petitionary Authority (a duplicate copy of which is hereto annexed), the punishment adjudged by the said sentence has been commuted to the punishment of

This is to require and authorise you to *send back the said(Prison's name) for Force custody/*safety to keep the said(Prison's name) in your custody in the said jail and thereby carry into execution the punishment of imprisonment under the said order according to law.

Date, thisday of.....20.....

.....

(Signature of Authorised Officer)

*Delete whichever is inapplicable.

FORM C

Warrant When A Prisoner Is Pardoned Or His Trial Is Set Aside, Or When The Unexpired Portion Of The Sentence Is

Remitted.

(See rule 208)

To

The Superintendent

..... Prison

(Give address)

Whereas (NoRank.....Name.....of the Unit
.....) is confined in the.....prison under a warrant issued by the Security Court presided
over by Shri n pursuance of a sentence ofpassed upon him by said Security Court held
at..... onand whereas the Penitentiary Authority has in exercise of powers conferred
upon him by rules 206 and 210 of the Railway Protection Force Rules, 1987 passed the following order regarding the
aforesaid sentence that is to say

This is to require and authorise you to forthwith discharge the said(name) from your custody unless he
is liable to be detained for some other cause, and for your so discharging him this shall be your sufficient warrant.

Given under my hand atthis the.....day of.....20.....

.....
(Signature of Authorised Officer)

Seal

XI

Form Of Bond For Taking Advance

(See rule 249)

By the bond, Ihaving taken an advance of Rs.....(Rupeesonly) from the
President of India, (hereinafter called the "Government") promise to pay to the Government the said sum of Rs
.....in.....equal monthly instalments of Rspayable by the 10th of
every month commencing from

2. And I agree that in case I cease to be in Government service for any reason whatsoever, the entire balance of the
amount become at once due and payable and that in case I fail to pay by the same before the date of expiry of six
months from the date on which the payment of last instalment under this bond would have become due but for my
ceasing to be in Government service, whichever date is earlier the Government without prejudice to any other right to
which it shall be entitled under any law for the time being in Force shall recover the entire balance of the amount from
me.

Dated thisday of.....20.....

.....
(Signature of the Member of the Force)

Witnesses:

.....
.....
.....

XII

Form Of Discharge Certificate

(See rule 244)

.....Railway/RPSF Bn.

1. NoRank.....
2. Name
3. Father's name
4. Postal address
5. Date of birth
6. Identification marks (if any)
7. Period of service fromto.....
8. Certificate of appointment surrendered on
9. Post held immediately prior to ceasing to be a member of the Force

10. Branch of the Force in which employed
11. Division or battalion
12. Last pay drawn
13. Grounds for termination/ ceasing to be a member of the Force
14. Conduct and character at the time of his leaving the Force
15. Signature of the member discharged from service
- Office seal

.....
Signature and designation of superior officer

Station:

Dated:

[ANNEXURE "A"]

Declaration to be given by the Member of the Force at the time of reporting sick

I am not feeling well. I may please be issued a Medical certificate w.e.fI shall bring the Sick Memo/I have brought Sick Memo from my authorised Departmental Officer/ Supervisor i.e(Mention designation, Headquarter/state of Departmental Officer/ Supervisor where intimation of sickness is required to be sent).

I declare that: (Strike/out whichever is not applicable)

(i)

I am/I am not under order of transfer, temporary/ Emergency duty or under DAR action.

(ii)

That I am on sanctioned casual Leave/Leave on average Pay w.e.f to

(iii)

I was not on sick list/declared fit by any railway/Private doctor immediately prior to this date.

OR

I was on sick list withand have been given fit/Transfer certificate on

Signature/LTI of the employee

Name:

Rank Number:

Place of Posting:

Divn. Rly.:]

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Translation